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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

FEBRUARY 11, 2025

>> CITY CLERK: YOU OKAY? THANK YOU.

>> MAYOR ISHII: HELLO, GOOD EVENING. I JUST WANT TO MAKE SURE STAFF IS ALL READY. COUNCILMEMBERS? OKAY. HELLO, I WOULD LIKE TO CALL TO ORDER THE REGULAR MEETING OF BERKELEY CITY COUNCIL, TUESDAY FEBRUARY 11TH, 2025. I JUST WANT TO RECOGNIZE THAT THERE ARE A LOT OF FOLKS HERE TONIGHT TO SPEAK ON NON-AGENDA ITEMS. I JUST WANT TO SET EXPECTATIONS SO FOLKS KNOW HOW THAT WORKS. THERE'S A SECTION FOR PUBLIC COMMENT ON NON-AGENDA ITEMS EARLY ON IN THE MEETINGS. YOU MUST SUBMIT A CARD TO SPEAK BEFORE I CALL FOR PUBLIC COMMENT, TEN PEOPLE WILL BE SELECTED FOR IN-PERSON AND ONLINE ATTENDEES AND EACH WILL BE GIVEN A MINUTE TO SPEAK. IF YOU INTEND TO CEDE YOUR TIME TO SOMEONE PLEASE SAY THAT IN ADVANCE SO WE CAN KEEP IT MOVING. IF YOU AREN'T ONE OF THESE TEN SPEAKERS, THERE IS AN OPPORTUNITY AT THE END. IF YOU HAVEN'T BEEN TO A MEETING WITH ME YET, I'M A STICKLER FOR TIMING SO PLEASE STICK TO YOUR MINUTE. I WILL ASK YOU TO FINISH YOUR SENTENCE AND THEN ASK YOU TO STOP. I KNOW SOME OF YOU ARE HERE FOR THE PEACE AND JUSTICE RESOLUTION. I

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JUST WANT TO LET YOU KNOW THAT MY STAFF AND I HAVE BEEN MEETING WITH VARIOUS STAKEHOLDERS. WE HAVE MORE MEETINGS SET UP THE NEXT MONTH, THE RESOLUTION WILL BE BROUGHT BACK UP AT THE NEXT PEACE AND JUSTICE MEETING. I'M LOOKING FORWARD TO SEE WHAT COMES BACK. THANK YOU FOR SHARING YOUR OPINIONS NO MATTER WHAT YOU ARE HERE FOR. I APPRECIATE YOU ARE HERE TO SPEND YOUR TIME WITH US THIS EVENING. I WILL PASS IT TO CITY CLERK FOR A ROLL CALL.

>> CITY CLERK: KESARWANI?

>> HERE.

>> TAPLIN?

>> PRESENT.

>> BARTLETT?

>> HERE.

>> TREGUB?

>> PRESENT.

>> O'KEEFE?

>> PRESENT.

>> BLACKABY?

>> HERE.

>> LUNAPARRA?

>> HERE.

>> HUMBERT?

>> HERE.

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>> AND MAYOR ISHII?

>> MAYOR ISHII: HERE. OKAY, SO AT THE FIRST MEETING OF THE MONTH WE HAVE A LAND ACKNOWLEDGMENT STATEMENT AND AGREE EACH OF OUR COUNCILMEMBERS WILL TAKE TURNS READING. SO WE ARE ON COUNCILMEMBER BARTLETT FOR DISTRICT 3 READING THE LAND ACKNOWLEDGMENT. VICE MAYOR, I'M SORRY. VICE MAYOR BARTLETT.

>> B. BARTLETT: NOBODY CARES. JUST KIDDING. NOBODY CARES. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LEJON TRIBE.

>> MAYOR ISHII: THANK YOU. FOR CEREMONIAL MATTERS WE WILL BE ADJOURNING IN MEMORY OF THE STABBING VICTIM FROM SAN PABLO PARK. AND ALSO ADJOURNING IN MEMORY OF ELISE LUSK WHO WAS A TRAFFIC VIOLENCE VICTIM AT ADA AND CALIFORNIA STREET. CITY MANAGER, DO YOU HAVE COMMENTS?

>> I DO NOT HAVE COMMENTS TONIGHT, MADAM MAYOR.

>> MAYOR ISHII: OKAY, WE WILL BE TAKING PUBLIC COMMENT ON NON-AGENDA MATTERS. A REMINDER WE WILL BE TAKING TEN IN-PERSON AND ONLINE AND YOU HAVE A MINUTE TO SPEAK.

>> CITY CLERK: FIVE IN PERSON AND FIVE ONLINE. TOTAL 10.

>> MAYOR ISHII: TOTAL 10. FIVE IN PERSON, FIVE ONLINE. WITH AN OPPORTUNITY TO SPEAK AGAIN AT THE END.

>> CITY CLERK: THERE'S A LOT IN HERE. OKAY, THE FIVE IN-PERSON SPEAKERS, AND YOU CAN COME UP IN ANY ORDER, LINE UP ON THIS SIDE

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OF THE ROOM. JESSICA PRADO, CARROL MARASOVIC, ALLISON LEVANT, MICHELLE OREM, AND ALEX PELNEZ? LOOKS LIKE WHAT IT IS. SO CAN COME UP IN ANY ORDER. BE ONE MINUTE EACH.

>> MAYOR ISHII: OKAY, FOR OUR FIRST SPEAKER, ARE YOU WAITING FOR SOME FOLKS? OKAY.

>> HI, YOU HAVE A PIECE OF PAPER IN FRONT OF YOU THAT SUMMARIZES MY POINT. I GREW UP BY ROUND PARK AND I NOW LIVE IN ANOTHER, WESTERN QUADRANT OF THE CITY, YOU ALLOCATED $150,000 TO DEVELOP AN IMPROVEMENT FOR A PARK THAT NO ONE IN THE NEIGHBORHOOD HAS GOTTEN TOGETHER AND SAID THEY WANTED. IT WILL NOT INCREASE GEOGRAPHIC EQUITY GOALS. THIS IS WHERE I TAKE MY CHILDREN TO PLAY BECAUSE MY NEIGHBORHOOD DOESN'T HAVE ANYWHERE TO PLAY. IT SAYS IT IS SUPPOSED TO HELP THE GROWING POPULATION. THE GROWING POPULATION IS WHERE I AM, IF YOU LOOK IN THIS CORNER THAT'S WHERE YOU ARE OPTING TO STUDY FOR A $150,000 A PARK. YOU CAN ALSO SEE THAT NEIGHBORHOOD IS SUPER DIFFUSE. IT'S NOT CROWDED. NO NEW HOUSING IS GOING IN THERE. YOU CAN SEE HOW WELL-USED THE PARK IS IN MY PICTURES HERE. THAT'S IT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. NEXT SPEAKER?

>> MAY I START? HELLO, COUNCILMEMBERS, MAYOR. MY NAME IS ALEX PELEZ, I'M A SECOND YEAR STUDENT AT U.C. BERKELEY AND I'M HERE TO ASK THE COUNCILMEMBERS RATING REFERRALS DUE JANUARY 21ST LIMITING CARS ON TELEGRAPH A FIVE OUT OF FIVE. I'M SURE AS MANY OF YOU KNOW, IN 2022, THE COUNCIL PASSED UNANIMOUSLY LEGISLATION TO KEEP CARS

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OFF TELEGRAPH. BUT IN THE YEARS SINCE, THERE HAS NOT BEEN ANY PROGRESS TOWARDS THAT GOAL. IN ORDER TO ENSURE THAT THE CITY BEGINS MAKING PROGRESS I ASK THAT YOU RATE THE REFERRAL A 5/5, SOUTH SIDE COMPLETE STREETS LIMITING CARS ON TELEGRAPH. MR. BLACKABY, I'M IN YOUR DISTRICT, DISTRICT 6, I KNOW YOU RAN ON PROGRESSIVE POLICIES INCLUDING MAKING OUR STREETS SAFER AND BETTERING OUR TRANSPORT SYSTEMS AND TELEGRAPH IS WHERE DOZENS OF PEDESTRIANS WALK EVERY DAY AND I'M ONE OF THOSE PEDESTRIANS AND THIS MEASURE WOULD HELP US. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> SPEAKING TO THE EARLIER FIRE ISSUE, EMBERS DO TRAVEL WHICH IS WHY IT'S IMPORTANT TO GO THROUGH ALL THE DISTRICTS. BUT I WANT TO SPEAK TO THE IMPORTANCE OF HAVING A VOLUNTEER REGISTRY FOR THE MOST VULNERABLE PERSONS WHO NEED ASSISTANCE DURING A FIRE OR ANY DISASTER. EVACUATION PLANS DON'T ALWAYS WORK, LOOKING OUT FOR YOUR NEIGHBOR UNFORTUNATELY DON'T ALWAYS WORK. 15 YEARS AGO I HAD A BOTCHED SURGERY. I WAS IN A WHEELCHAIR BUT I WAS SLEEPING 13 HOURS A DAY BECAUSE JUST THE PAIN WOULD KNOCK ME OUT. ONE DAY I HEAR A FIRE ALARM AND I LOOK OUT, I'M HEARING THIS PERSISTENT FIRE ALARM THAT WAKENS ME UP. I LOOK OUT THE WINDOW AND MY WHOLE APARTMENT BUILDING IS ACROSS THE STREET, BUT I'M ON THE FOURTH FLOOR WITH NO WAY TO GET OUT, NOT KNOWING WHAT'S GOING ON, I GO OUTSIDE AND I CALL THE FIRE DEPARTMENT, I REALIZE I CAN'T LEAVE THE FOURTH FLOOR.

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I'M FINISHING, CAN'T LEAVE THE FOURTH FLOOR AND I CALL THE FIRE DEPARTMENT AND FORTUNATELY THEY HAD THE FIRE UNDER CONTROL. THIS IS AN EXAMPLE WHEN IT COMES TO AN ACTUAL DISASTER, PEOPLE THINK OF THEMSELVES FIRST. THANK YOU. REGISTRY.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, COUNCILMEMBERS, MY NAME IS ALLISON LE BONT, I'M A BERKELEY RESIDENT AND LGBTQ+IA ALLY. SINCE THE DEVASTATING RESULTS OF THE PRESIDENTIAL ELECTION I HAVE PLEDGED ALONGSIDE OTHER COMMUNITY MEMBERS AND PEOPLE LIKE COUNCILMEMBER TREGUB TO SHOW UP FOR THE SAFETY DIGNITY OF PEOPLE IN MY COMMUNITY. I'M AWARE AND VERY GRATEFUL TO THIS COUNCIL FOR YOUR ACTION IN THE JANUARY CITY COUNCIL MEETING TO REAFFIRM BERKELEY AS A SANCTUARY CITY. I HAVE LEARNED TODAY THAT THERE ARE CITIES LIKE OLIMPIA, MOST RECENTLY TO EXTEND TO INCLUDE TRANS AND QUEER PEOPLE. I REVIEWED THE CITY'S SANCTUARY RESOLUTION FROM LAST MONTH, IT APPEARED TO ONLY BE FOR IMMIGRANTS. I ENCOURAGE AND URGE YOU TO EXPAND AND I WOULD BE HAPPY TO SHARE THE RESOLUTION FROM OLIMPIA CITY WITH YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH FOR YOUR COMMENT. [RECORDING IN PROGRESS] [OFF MIC] HELLO, OKAY, NOW WE CAN HEAR. THANK YOU. MY NAME IS JESSICA PRADO, I'M HERE TO RAISE SERIOUS CONCERNS ABOUT THE CITY OF BERKELEY'S FAILURE TO COMPLY WITH THE AMERICANS WITH DISABILITIES ACT IN TREATMENT OF UNHOUSED RESIDENTS. THE CITY'S A.D.A. PROCESS IS BROKEN, INACCESSIBLE AND

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DESIGNED TO DENY ACCOMMODATIONS RATHER THAN PROVIDE THEM. OVER THE LAST FEW WEEKS THE BERKELEY HOMELESS UNION SUBMITTED OVER 60 REQUESTS ON BEHALF OF DISABLED AND ENCAMPMENT RESIDENTS ALL OF THEM DENIED WITHOUT A MEANINGFUL REVIEW. THOMAS GREGORY OUTRIGHT REFUSED TO ENGAGE IN THE PROCESS, AS REQUIRED BY LAW. MOREOVER HIS RESPONSE TO LEGITIMATE REQUESTS HAVE BEEN HOSTILE, DISMISSIVE AND LEGALLY INSUFFICIENT. THE CITY CLAIMS ITS FOLLOWING THE A.D.A., YET IT'S OFFERED NO A.D.A. COMPLIANCE SHELTER OR ALTERNATIVE HOUSING TO RESIDENTS FACING EVICTION AT 8TH AND HARRISON STREETS. INSTEAD DISABLED PEOPLE ARE BEING PUSHED IN STREETS, WITH ATMOSPHERIC RIVER STORM COMING TOMORROW WITH NO PLAN TO WHERE THEY CAN GO. THE CITY HAS IGNORED ITS OBLIGATIONS WE ARE FORCED TO FILE LEGAL ACTION, WE FILE A TEMPORARY RESTRAINING ORDER FOR THE DISPLACEMENT OF ENCAMPMENT RESIDENTS. WE ARE STILL HERE WILLING TO COLLABORATE. OVER THE LAST FEW WEEKS CAMP RESIDENTS AND VOLUNTEERS.

>> MAYOR ISHII: I'M SORRY, YOUR TIME IS ACTUALLY UP.

>> I'M FINISHING.

>> MAYOR ISHII: I UNDERSTAND BUT I'M TRYING TO BE CONSISTENT ACROSS-THE-BOARD.

>> I'M TRYING TO ASK PLEASE BE LEGALLY COMPLIANT WITH THE A.D.A., PEOPLE ARE WAITING FOR HELP. DON'T DISPLACE THE RESIDENTS OF 8TH AND HARRIS THIS WEEK. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. OKAY.

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>> CITY CLERK: OKAY, AND THE FIRST FIVE RAISED HANDS-ON ZOOM, THE FIRST ONE IS -- THAT WAS FIVE. I BELIEVE SO.

>> MAYOR ISHII: YEAH, I BELIEVE WE HAVE HAD FIVE COMMENTS, SO WE WILL TAKE FIVE ONLINE NOW.

>> CITY CLERK: THE FIRST IS STACEY ZOLT HARA.

>> THANK YOU VERY MUCH. MY NAME IS STACEY ZOLT HARA, I'M A BERKELEY RESIDENT. I'M HERE BECAUSE I FEEL THE EFFORTS HAVE BEEN WHOLLY INADEQUATE AND FAIL TO MEET THE URGENCY OF THE MOMENT. GOVERNING IS ABOUT CHOICES. WE UNDERSTAND THAT THE SITUATION FACING NON-HOUSED IS INCREDIBLY COMPLICATED AS THE LAST SPEAKER SPOKE ABOUT BUT THIS IS NOT A HYPOTHETICAL OR POTENTIAL RISK IT'S A REAL DANGER THAT'S RESULTED IN SEXUAL ASSAULT OF A STUDENT, A DOG ATTACKING AN OFFICER. THE PLIGHT OF UNHOUSED PEOPLE IS TRAGIC AND IT REQUIRES A LONG-TERM SOLUTION. BUT THIS IS AN IMMEDIATE DANGER TO OUR STUDENTS. GOVERNING AGAIN IS ABOUT CHOICES AND WE LOOK TO OUR CITY OFFICIALS TO BALANCE THE RIGHTS OF ALL CITIZENS. THE FAILURE TO SHUT DOWN THE ENCAMPMENT IS CHOOSING THE COMMUNITY OVER OUR CHILDREN. I UNDERSTAND THERE'S A PLAN TO ADDRESS THE UNHOUSED SITUATION ON HARRISON. I URGE YOU TO REALLOCATE THOSE RESOURCES AND INSTEAD -- [OFF MIC]

>> CITY CLERK: NEXT IS PHONE NUMBER ENDING IN 191. PRESS *6 TO UNMUTE.

>> GOOD EVENING. [INDISCERNIBLE] FOR CITY OF BERKELEY. FOR

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$1,080,000 FOR THE DAMAGE DONE TO US, NEVER MIND THE DAMAGE DONE TO YOU, NO ONE DOES BUSINESS FOR 51 YEARS. EVERYONE IS TIRED OF TAXES THIS ONE IS IMPOSING TAXES ON THE PERSON PEOPLE ALSO CREATING A TRADE WAR ACROSS THE WHOLE WORLD. YOU WILL PAY MORE FOR EVERYTHING. THIS MAN SHOULD BE IN A MENTAL HOSPITAL, IN PRISON, NOT IN THE WHITE HOUSE AND WE ARE ALL GOING TO PAY FOR IT, AND HIS CLAIM ABOUT GAZA IS IDIOCRASY, JUST AS WHEN YOU VOTED TO STOP THE BUTCHERING IN GAZA AND GUESS WHAT HAPPENED? HARRIS LOST BECAUSE OF THAT. YOU WERE TRICKED BY THE ZIONIST. YOU WERE TRICKED -- BIDEN. WAKE UP PEOPLE, BE HUMANS. I HAVE NO CHOICE WHERE I'M BORN, WHO WHAT, BE A HUMAN. WHAT IS HAPPENING IN GAZA FOR THE LAST 14-15 MONTHS.

>> CITY CLERK: THANK YOU.

>> THE WHOLE THING WAS AN INSIDE JOB CREATED BY[OFF MIC]

>> CITY CLERK: AND NEXT IS THE SPEAKER WITH THE PHONE NUMBER ENDING IN 538. WHERE DID YOU GO? HOLD ON, THERE YOU GO. PHONE NUMBER ENDING IN 538. PRESS *6 TO UNMUTE. ARE YOU THERE, PHONE NUMBER ENDING IN 538? PRESS *6 TO UNMUTE. THEY LOWERED THEIR HAND. OKAY. NEXT IS MADELEINE'S IPHONE.

>> OKAY, THANK YOU VERY MUCH. CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> MY NAME IS MADELEINE RICH, I'M A BERKELEY HIGH ALUM FROM 2012. I'M CALLING ABOUT THE MATTER THAT WILL BE IN FRONT OF YOU TWO

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MONTHS FROM NOW, APPEAL AT 227 SHATTUCK, THE UNITED ARTIST CINEMA. I JUST WANTED TO SAY THIS IS HISTORICALLY PROTECTED BUILDING ON THE CALIFORNIA REGISTER OF HISTORIC PLACES, IT SHOULD NOT BE EXEMPT FROM CEQA. PLANNING AND ZAB ISSUED A RULING THAT IS LEGALLY UNSOUND. I WILL REQUEST THE TWO PEER REVIEWED HISTORICAL REPORTS COMMISSIONED BY PLANNER SHARON GONG BOTH BY RINKEN CONSULTANTS THAT CLEARLY SHARE WITH PLANNING THIS IS NOT A CEQA EXEMPT PROJECT WHATSOEVER BECAUSE IT'S HISTORICALLY PROTECTED. THE THOSE REPORTS WERE NOT DISCLOSED TO THE PUBLIC, DESPITE MANY REQUESTS TO OUR GROUP NOR WERE THEY SHARED WITH ZAB AND NOWHERE TO BE SEEN IN THE STAFF REPORT. FOR ALL INTENTS AND PURPOSES THOSE PEER REVIEWED REPORTS PAID FOR BY THE BERKELEY TAXPAYERS WERE WITHHELD AND CLEARLY DEMONSTRATE THIS BUILDING[OFF MIC]

>> CITY CLERK: FINAL SPEAKER ON ZOOM, IS RUSS. YOU COULD UNMUTE TO SPEAK.

>> ALL RIGHT, HELLO THERE FOLKS. RUSSELL BATES HERE. IT'S INTERESTING TO WATCH THE PEOPLE RETURNING TO GAZA, AFTER THE ZIONISTS, MURDERING AND DESTROYING HOMES AND FAMILIES. COMMUNITY IS A WONDERFUL THING. THERE'S A COMMUNITY AT 8TH AND HARRIS ALSO THAT'S BEEN KICKED AROUND, SHOVED AROUND AND PUSHED AROUND. AND THEY ARE PEOPLE. AND THEY ARE COMMUNITY. I WAS FORTUNATE ENOUGH TO BE THERE SUNDAY DOCUMENTING TO HELP COMMUNITY MEMBERS GIVEN TO THE UNHOUSED COMMUNITY THERE AND I'M HONORED TO BE A PART OF THAT

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COMMUNITY. AND I WOULD SUGGEST VERY STRONGLY THAT PROVISION BE MADE TO LOOK AT THE CLEAN UP THAT WENT ON HOW COMMUNITY MEMBERS HELPED AND HOW COMMUNITY MEMBERS WILL STAND BY THEM IN THEIR TIMES OF NEED. SANCTUARY CITY SHOULD APPLY TO UNHOUSED PEOPLE AS WELL. THANK YOU.

>> CITY CLERK: OKAY, THAT'S ALL THE NON-AGENDA PUBLIC COMMENTERS FOR THE PORTION AT THE BEGINNING. OF COURSE THERE'S AT THE END AS WELL.

>> MAYOR ISHII: THAT'S EXACTLY WHAT I WAS GOING TO SAY. DO WE HAVE PUBLIC COMMENT BY EMPLOYEE UNIONS? THIS ALSO HAPPENS THE FIRST REGULAR MEETING OF THE MONTH.

>>[OFF MIC]

>> CITY CLERK: THIS COMMENT PERIOD IS COMMENTS FROM UNIONS. BUT NOT IF YOU ARE SPEAKING TO AN ITEM ON THE AGENDA, IT'S IF YOU ARE A DELEGATED REPRESENTATIVE TO SPEAK ABOUT UNION ISSUES.

>> MAYOR ISHII: OKAY, WE WILL BE MOVING ON TO THE CONSENT CALENDAR THEN. AND I WILL NOW, WE WILL NOW TAKE PUBLIC COMMENT ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY.

>> CITY CLERK: DO THE COUNCIL DISCUSSION FIRST. IF ANYTHING WANTS TO BE MOVED ON OR OFF.

>> MAYOR ISHII: THANK YOU. YES. SHALL WE? DO FOLKS HAVE COMMENTS?

>> R. KESARWANI: OKAY, THANK YOU VERY MUCH, MADAM MAYOR.

>> CITY CLERK: SORRY, MAYOR, I GUESS THERE'S, THE UNION

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REPRESENTATIVE WHO IS ON ZOOM. BUT I DON'T -- OH, JOCYLYN DE SENA.

>> MAYOR ISHII: THANK YOU, SARAH. WE MISSED A COMMENT FROM A UNION REPRESENTATIVE ON ZOOM. SO FOLKS, WE WILL BE HEARING FROM THAT UNION REPRESENTATIVE.

>> CITY CLERK: OKAY, JOCELYN DE SENA, YOU SHOULD BE ABLE TO UNMUTE.

>> THANK YOU VERY MUCH PT CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> MY NAME IS JOCELYN, I’M THE CO-COORDINATOR FOR THE U.S.P.T.U.R.L.A.221, BERKELEY COMMUNITY MEMBER AND JEWISH PERSON OF CONSCIENCE, WHILE I'M PROUD TO BE A PUBLIC HEALTH WORKER, I'M NOT SPEAKING AS MY CAPACITY AS A CITY EMPLOYEE. I'M EXPRESSING ABOUT THE PEACE AND JUSTICE RESOLUTION, MANY IS THE POSITION OF MY LOCAL 1021 WHICH REPRESENTS ABOUT 60,000 WORKERS IN NORTHERN CALIFORNIA IN PUBLIC SECTOR, HEALTHCARE, EDUCATION, ET CETERA. WE HAVE A PROUD HISTORY OF STANDING WITH OPPRESSED PEOPLE WORLDWIDE AND COMMITTED TO USING OUR UNION POWER TO DELIVER JUSTICE AND COLLABORATION. WE ARE FLAGGING WITH SOLIDARITY WITH THE PEOPLE OF PALESTINE, SUDAN, CONGO AND HAITI AND WE DON'T PLAN TO DIAL BACK ANY TIME SOON. THESE ARE SIEU 1021'S CORE VALUES. MY CHAPTER DEDICATED A PORTION OF OUR UNION COMMENTS MONTH AFTER MONTH TO URGE BERKELEY CITY COUNCIL TO TAKE A PRINCIPLED STANCE AND ADOPT A BASIC CEASE-FIRE RESOLUTION. WHEN BACK IN DECEMBER 2023 SEIU 1021 PASSED OUR RESOLUTION CALLING FOR A CEASE-FIRE, HUMANITARIAN

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AID PART OF WHAT WE RESOLVED IS TO USE OUR UNION POWER TO HOLD OUR ELECTED OFFICIALS ACCOUNTABLE. SINCE THAT TIME WE HAVE NOT RESTED. SEIU 1021 PASSED A RESOLUTION TO DIVEST UNION DUES FROM FOSSIL FUELS, WEAPONS MANUFACTURING AND PRIVATE PRISONS AS AN ETHICAL POLICY. RANK AND FILE, STAFF AND EXECUTIVE BOARD HAVE JOINED WITH OTHER UNIONS IN THE ALAMEDA LABOR COUNCIL TO PLAY AN INSTRUMENTAL ROLE IN THE ALAMEDA SUPERVISOR'S HISTORIC DECISION FOR INVESTMENT POLICY AND DECISION TO DIVEST FROM CATERPILLAR. WE PASSED A RESOLUTION WHICH REPRESENTS TWO MILLION, AND SIEU INTERNATIONAL CALLS FOR AN ARMS EMBARGO. I LIST THESE ACCOMPLISHMENTS NOT TO BRAG THOUGH I'M VERY PROUD OF MY UNION BUT DEMONSTRATE OUR MEMBERS ARE DETERMINED AND STEADFAST AND WE AREN'T GOING ANYWHERE ON THIS. MAYOR ISHII I APPRECIATE IN OUR INTERVIEW WITH YOU, YOU SPOKE FRANKLY RESOLUTION ON PALESTINE SHOULD HAVE HAPPENED A LONG TIME AGO. AND MYSELF AND OTHER SEIU 1021 MEMBERS WOULD LOVE TO MEET WITH YOU TO TALK ABOUT HOW WE CAN WORK TOGETHER TO GET A TRUE PRINCIPLED MOTION PASS WHICH THE PEACE AND JUSTICE COMMISSION HAS ALREADY LAID OUT FOR YOU. BERKELEY HAS FALLEN PRETTY EMBARRASSINGLY BEHIND ON THIS. FRANKLY, THE PRIOR MAYOR AND COUNCIL SULLIED OUR STANCE AND ALLOWED US TO FALL FURTHER AND FURTHER ON THE WRONG SIDE OF HISTORY. THANKFULLY THE PEACE AND JUSTICE COMMISSION HAS THE MORAL COURAGE TO TRY TO RIGHT BERKELEY'S COURSE ON THIS, AS LATE AS WE ARE TO THE GAME AT THIS POINT, I'M URGING YOU, THIS

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CURRENT COUNCIL TO REMEDY THIS. MAKE THIS A PRIORITY AND ACT SWIFTLY. DO NOT COVER UP THIS RESOLUTION BY BOWING TO THE MISGUIDED BULLIES WHO WILL TRY TO INSERT LANGUAGE THAT NORMALIZES APARTHEID. COUNCILMEMBERS I CAN ASSURE YOU, SIEU 1021 WILL CONTINUE TO SHOW UP AND PUT ON THE PRESSURE. YOU HAVE SEEN US FILL UP THIS ROOM WITH A SEA OF PURPLE TO CAPACITY AND INTO THE OVERFLOW ROOM TO STAND UP FOR THE RIGHTS OF WORKERS AND WE WILL FOR WORKERS WORLDWIDE. WE ARE ORGANIZED. WE AREN'T GOING ANYWHERE, SIEU 1021 WILL CONTINUE TO FIGHT ON THIS, AND WHEN WE FIGHT WE WIN. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. WE'VE ADDED YOU TO OUR LIST. APPRECIATE IT. COUNCILMEMBER, YES?

>> R. KESARWANI: THANK YOU VERY MUCH MADAM MAYOR. I AM #2 THOUGH.

>> MAYOR ISHII: I CALLED ON YOU EARLIER.

>> R. KESARWANI: OKAY, WE ARE GOING TO DO IT. I DON'T HAVE ANY COMMENTS ON THE CONSENT CALENDAR BUT I WOULD LIKE TO ASK THAT WE ALSO ADJOURN IN MEMORY OF GWEN MCNEILL. POPULARLY KNOWN AS GWEN SADLY PERISHED AS A RESULT OF EARLY MORNING FIRE FEBRUARY 3RD AT HER HOME AT 10TH AND CEDAR STREET. GWEN AND HER MOTHER LOVIE MOVED TO THAT HOUSE IN 1974, SHE ATTENDED BERKELEY SCHOOLS AND LATER BECAME AN ACCOUNTANT. GWEN RAISED HER DAUGHTER TEQUILA WARNER IN THAT APARTMENT AND OFTEN CARED FOR HER GRANDSON. SHE BECAME A CARETAKER TO HER MOTHER GWEN WHO HAD MOBILITY CHALLENGES AFTER A

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SURGERY AND ALSO STRUGGLED WITH DEMENTIA. THE FIRE IGNITED IN GWEN'S MOTHER'S BEDROOM, LOVIE'S BEDROOM AND DESPITE HER BURNS WHAT'S BEEN REPORTED IS LOVIE WAS ABLE TO MAKE IT OUT OF HER ROOM AND WAKE UP OTHER FAMILY MEMBERS BEFORE COLLAPSING. AND SADLY GWEN'S ROOM WAS IN THE OPPOSITE DIRECTION. FIREFIGHTERS ARRIVED TO RESCUE THE FAMILY AND GET THEM ALL OUT INCLUDING THEIR SMALL DOG TO HIGHLAND HOSPITAL. GWEN AND THE DOG ULTIMATELY DIDN'T SURVIVE AND LOVIE MCNEILL REMAINS IN INTENSIVE CARE IN SAN JOSE. TEQUILA, THE DAUGHTER OF GWEN SET UP A GOFUNDME CAMPAIGN TO DEFRAY FUNERAL COSTS FOR GWEN. IF YOU ARE INTERESTED IN CONTRIBUTING THE LINK IS AVAILABLE ON "BERKELEYSIDE" AND A MEMORIAL NEAR THE HOME'S BACK ENTRANCE ON 10TH STREET FOR THOSE WHO WANT TO PAY THEIR RESPECTS. THANK YOU SO MUP.

>> MAYOR ISHII: THANK YOU SO MUCH. I'M ALSO MISTAKEN, I MEANT TO INCLUDE U.C. BERKELEY SOCIOLOGY PROFESSOR MICHAEL BURROWAY. MY APOLOGIES, WE UNFORTUNATELY HAVE MANY ADJOURNMENTS IN MEMORY THIS EVENING. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I HAVE ONE COMMENT ON THE CONSENT CALENDAR, #7 REFER INTERSECTIONS WITH TRAFFIC DIVERTERS. AFTER THE MOST RECENT HEARTBREAKING FATAL CRASH WHICH TOOK THE LIFE OF OUR NEIGHBOR ELISE LUSK, OUR OFFICE, AND THE OFFICES OF COUNCILMEMBERS O'KEEFE AND BLACKABY SPRUNG INTO ACTION TO PREPARE AN ITEM REQUESTING THE REVIEW OF INTERSECTIONS SIMILAR TO THE ONE

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WHICH ELISE WAS KILLED AND MAY HER MEMORY BE A BLESSING. THESE WERE BARRIER INTERSECTIONS WITH NO STOP SIGNS OR OTHER TRAFFIC CALMING MEASURES INSTALLED. THE INTERSECTIONS CAN BE PERCEIVED BY DRIVERS AS FUNCTIONING LIKE SLIP LANES POTENTIALLY MAKING DRIVERS INCORRECTLY BELIEVE THEY CAN SPEED THROUGH THEM ON A WIDE CURVE. SEE THIS EVERY DAY IN MY NEIGHBORHOOD AT RUSSELL AND PIEDMONT. WE NEED TO BEAR DOWN WITH ALL FORCE TO END THE TRAFFIC VIOLENCE ON OUR STREETS. MEASURE FF IS A MANDATE IN THAT REGARD. IT PASSED OVERWHELMINGLY. BUT BEFORE THOSE FUNDS COME IN, WE NEED TO CONTINUE A PACE TO DO WHATEVER WE CAN TO PROTECT THE LIVES OF PEDESTRIANS, CYCLISTS AND DRIVERS AS WELL. THIS IS JUST ONE MORE STEP IN THAT DIRECTION, AND OUR GOAL IS VISION ZERO. DAYLIGHTING INTERSECTIONS PURSUANT TO ORDINANCE AND STATE LAWS IS ANOTHER. AND IN GENERAL CORRECTING OUR INTERSECTIONS THAT IN ANY RESPECT HAVE THE POTENTIAL FOR HIGH-SPEED TURNS WHERE THE TURN RADIUS IS TOO WIDE. MY OWN BELOVED WIFE WAS ALMOST HIT AND HAD SHE BEEN HIT SHE WOULD HAVE BEEN SERIOUSLY INJURED FROM AN IMPAIRED DRIVER. THE INTERSECTION WHERE SHARON SPENCE WAS KILLED SO MANY YEARS AGO IN 1999 AS SHE WAS CROSSING A DIFFERENT LINK OF THE INTERSECTION IN HER WHEELCHAIR. IT'S A BIG INTERSECTION WITH TOO MUCH ASPHALT AND ROUNDED CORNERS AND WE SEE LOTS OF THOSE IN BERKELEY. THERE'S AN RRFB, FLASHING BEACONS INSTALLED THERE, WHICH TOOK US YEARS TO GET INSTALLED AFTER SHARON WAS KILLED. BUT THE FACT THERE'S A MARKED

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PEDESTRIAN CROSSING THERE DID NOT SLOW THIS DRIVER DOWN. THE SLIP RIGHT TURNS ARE ANOTHER RISK FOR PEOPLE WALKING. USUALLY, IN MY VIEW, ELEVATING CONVENIENCE AND TIME SAVINGS FOR DRIVERS OVER PEDESTRIAN LIFE AND LIMB. I KNOW IN SOME CASES THEY MAY BE NECESSARY FOR BUSES BUT THEY NEED TO BE MODIFIED AND WE ARE STARTING WITH THE FIRST LEVEL PRIORITY PROJECT OF REDESIGNING AND RECONSTRUCTING THE SLIP TURN AT ZACKARY'S CORNER. THANKS A LOT. THAT'S ALL I HAVE NOW ON THE CONSENT CALENDAR.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. CAN I MOVE TO COUNCILMEMBER O'KEEFE, PLEASE?

>> S. O'KEEFE: THANK YOU, MAYOR. I WANT TO THANK COUNCILMEMBER HUMBERT FOR YOUR COMMENTS AND ALSO AUTHORING THAT ITEM WHICH I'M HONORED TO CO-SPONSOR ALONG WITH COUNCILMEMBER BLACKABY. IT'S IMPORTANT BUT SADLY TOO LATE IMPROVEMENT IN SAFETY THAT I NONETHELESS HOPE WILL MAKE OUR STREETS SAFER FOR PEDESTRIANS GOING FORWARD. AND WHILE I OBVIOUSLY SUPPORT THIS ITEM, I WOULD LIKE TO NAME THAT IT'S REACTIVE, RATHER THAN PROACTIVE. AND I WANT TO CALL FOR A RENEWED COMMITMENT TO FINDING WAYS TO USING OUR RESOURCES TO MAKE OUR STREETS SAFER AND TO PREVENT TRAGEDIES LIKE THE DEATHS OF ELISE LUSK AND BEN BROWN AND SO MANY OTHERS. SO THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I HAVE TWO QUICK COMMENTS. ON ITEM #6, SO EXCITING TO SEE HOW MANY PEOPLE CAME OUT TO SUPPORT IT. TO

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SUPPORT WHICH ENCOURAGES THE STATE TO STUDY NOT-FOR-PROFIT PUBLIC UTILITY MODEL, SHIFTING THE POWER BACK INTO HANDS OF THE PUBLIC ENSURES A COMMUNITY DRIVEN APPROACH TO ENERGY ONE THAT PUTS PEOPLE'S NEEDS FIRST, NOT PROFIT. BERKELEY WILL REMAIN UNWAVERING IN ITS COMMITMENT TO BUILDING A RESILIENT STATE IN THE FACE OF DISASTER. THANK YOU, COUNCILMEMBER TREGUB FOR CO-AUTHORING THIS INITIATIVE. AND FOR ITEM 7, WITHOUT A TRANSFORMATIVE APPROACH WE RISK THE MOST SEVERE CONSEQUENCES. THE SOUTH SIDE SAFE STREETS IS NEARING COMPLETION AND THERE'S BEEN OVERWHELMING WAVE OF POSITIVE FEEDBACK, THIS IS THE STANDARD WE MUST DEMAND EVERYWHERE. THANK YOU.

>> MAYOR ISHII: THANK YOU VERY MUCH. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU SO MUCH. YEAH, I AM PLEASED TO CO-AUTHOR ITEM 6 ALONG WITH COUNCILMEMBER LUNAPARRA, AND EXPRESS MY THANKS TO COMMUNITY MEMBERS COMING OUT TODAY. THE FAILURES OF PG&E AND BROADER INVESTOR UTILITY MODEL DEMONSTRATE PRIORITIZED PUBLIC INTEREST OVER SHAREHOLDER PROFITS. THE GOLDEN STATE ENERGY ACT WAS ALREADY SIGNED INTO LAW IN 2020 AND WAS A CRITICAL FIRST STEP IN PLANNING TO REPLACE INVESTOR-OWNED UTILITIES SUCH AS PG&E WITH A MORE AFFORDABLE, SUSTAINABLE AND PUBLIC-SERVING MODEL THAT ENSURES AT LEAST THE SAME, IF NOT GREATER PROTECTIONS AND SUPPORT FOR THE HARD WORKING MEN AND WOMEN WHO WORK THERE. AS CALIFORNIA ACCELERATES ITS TRANSITION TO A CLEAN ENERGY FUTURE, IT'S

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IMPERATIVE THAT THE STATE MOVES BEYOND INVESTOR-OWNED UTILITIES TOWARD A MORE DEMOCRATIC AND RESILIENT ENERGY MODEL. WE HAVE AN OPPORTUNITY TONIGHT TO JOIN OUR NEIGHBORS IN RICHMOND AND SAN FRANCISCO AND OTHER MUNICIPALITIES TO HELP DRIVE THIS TRANSITION FORWARD BY ADVOCATING FOR STRUCTURAL REFORMS AND ENSURING ALL RESIDENTS HAVE ACCESS TO SAFE, AFFORDABLE AND CLEAN ELECTRICITY. AND JUST TO, IN ANTICIPATION OF WHAT MIGHT COME UP TONIGHT, I JUST WANT TO CLARIFY THAT THIS IS A LETTER TO SACRAMENTO, TO OUR LEGISLATORS IN SACRAMENTO AND THE GOVERNOR, IN SUPPORT OF ANY POTENTIAL IMPLEMENTING LEGISLATION OR STUDY BILLS. IT DOES NOT PROPOSE ANY CHANGES TO BERKELEY'S SPECIFIC MODEL. AND SO I JUST WANTED TO CLARIFY THAT. ALL CLEAN POWER TO THE PEOPLE.

>> MAYOR ISHII: THANK YOU. THANK YOU ALL SO MUCH. I ALSO JUST WANTED TO VOICE MY SUPPORT FOR ITEM #7. AND ACTUALLY ASK TO BE ADDED AS A CO-SPONSOR AS WELL, IF THAT'S OKAY WITH YOU, COUNCILMEMBER HUMBERT?

>> M. HUMBERT: UNFORTUNATELY, WE ALREADY HAVE FOUR.

>> MAYOR ISHII: YOU DO. OKAY, YES. WELL IN THAT CASE, ANY OTHER COMMENTS? WELL, I WILL TAKE COMMENTS FROM THE PUBLIC ON INFORMATION AND CONSENT ITEMS ONLY.

>> HELLO. OH, THANK YOU. I APOLOGIZE FOR BEING LATE. I'M NOT NECESSARILY HERE TO COMMENT ON THE CONSENT ITEM.

>> MAYOR ISHII: I'M SO SORRY, BUT THIS IS ACTUALLY THE TIME TO

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JUST SPEAK ABOUT CONSENT AND INFORMATION ITEMS.

>> HOLD ON, OKAY. BUT I'M HERE TO GO AND COMMENT ON THE STATE OF THE CITY.

>> MAYOR ISHII: THERE'S ACTUALLY A TIME AT THE END WHERE YOU CAN COMMENT ABOUT NON-AGENDA ITEMS. I WANT TO BE REALLY CONSCIOUS OF THE FACT WE HAVE A LOT OF STAFF THAT ARE WAITING TO PRESENT. AND IT'S ALREADY 7:30. SO IF YOU CAN WAIT, PLEASE, FOR YOUR COMMENT. THIS IS JUST FOR CONSENT AND INFORMATION ITEMS ONLY.

>> ACTUALLY, I CAN'T WAIT. I CAN'T WAIT BECAUSE --

>> MAYOR ISHII: I WOULD LIKE TO ASK YOU TO WAIT THEN, PLEASE.

>> WE ARE IN AN EMERGENCY.

>> MAYOR ISHII: THANK YOU SO MUCH FOR BEING HERE, I DO APPRECIATE -- I'M SURE YOU CAN, BUT I REALLY WANT TO GIVE FOLKS AN OPPORTUNITY TO SPEAK.

>> I HAVE ASKED MY OWN REPRESENTATIVE, IGOR TO SUPPORT --

>> MAYOR ISHII: CAN I ASK YOU HAVE THIS CONVERSATION AT ANOTHER POINT? BECAUSE WE HAVE MANY PEOPLE WHO ARE HERE TO SPEAK ABOUT THESE CONSENT ITEMS. AND I WANT TO BE RESPECTFUL OF THEIR TIME AS WELL. THANK YOU VERY MUCH. I REALLY APPRECIATE YOU BEING HERE.

>> FOR ALL THE PROPERTY THAT WAS TAKEN.

>> MAYOR ISHII: I KNOW YOU HAD SPOKEN TO SOME OF OUR STAFF ABOUT THIS BEFORE. I'M GOING TO ASK THAT YOU ACTUALLY SPEAK WITH THEM AGAIN. THEY ARE WAITING RIGHT THERE JUST TO SPEAK WITH YOU, RIGHT

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BEHIND YOU. EXCUSE ME, MA'AM, I'M SO SORRY. WILL YOU PLEASE SPEAK WITH OUR STAFF BACK HERE, PLEASE? THEY ARE WAITING TO SPEAK WITH YOU. THEY ARE TRYING TO GET YOUR ATTENTION. THEY ARE RIGHT HERE. WHY DON'T YOU SIT WITH THEM AND THEY WILL CHAT WITH YOU.

>>[OFF MIC]

>> MAYOR ISHII: I'M SORRY, IT'S NOT APPROPRIATE TO USE PROFANITY DURING THIS MEETING. I KNOW OUR CITY MANAGER IS ACTUALLY, I KNOW THAT OUR CITY MANAGER HAS ACTUALLY SPOKEN WITH YOU, ALREADY MA'AM. MARIAN.

>> I HAD MY COMPUTER TAKEN.

>> MAYOR ISHII: MARIAN?

>> I HAVEN'T BEEN ABLE TO GET IT BACK.

>> MAYOR ISHII: THERE ARE MANY PEOPLE HERE WAITING TO SPEAK. I WOULD LIKE TO -- I WOULD LIKE TO ASK THAT YOU SPEAK WITH OUR STAFF. AND ACTUALLY, THIS IS COUNCILMEMBER TREGUB'S CHIEF OF STAFF RIGHT HERE WHO IS READY TO SPEAK WITH YOU. SO THANK YOU SO MUCH FOR YOUR COMMENTS. I REALLY APPRECIATE IT. THANK YOU FOR BEING HERE. SHE IS GOING TO SPEAK WITH YOU NOW. THANK YOU. THANK YOU SO MUCH. PLEASE, I'M SURE YOU DO, AND THANK YOU FOR BEING HERE. APPRECIATE IT. THANK YOU, OLGA. MAYBE YOU CAN UNHOOK THE -- THANK YOU. ALL RIGHT. TO OUR NEXT SPEAKER ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY.

>> THANK YOU, GOOD EVENING, COUNCIL. I'M AL FORTIER, WITH IBEW 1245, I RISE TO SPEAK AGAINST CONSENT ITEM #6 AND REQUEST YOU MOVE

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IT TO OUT OF CONSENT AND PUT IT ON THE AGENDA SO THAT YOU CAN VOTE ON IT. THE GOLDEN STATE ENERGY STATEWIDE UTILITY SYSTEM. THE RESOLUTION ASKS THAT THE STATE SPENDS VALUABLE RESOURCES TO STUDY THE PLAN TO TAKE OVER PRIVATE UTILITIES UNDER THE GUISE OF PROVIDING BETTER RATES FOR CUSTOMERS. THE POINT OF FACT THE GAS RATES IN ELECTRIC AND GAS LARGELY TO THE HARDENING AND GRID PROTECTION EFFORTS AGAINST CLIMATE CHANGE AND THE COSTS WILL STILL BE INCURRED BY THE STATE, EVEN IF IT DOES SWITCH OVER TO A STATE-OWNED UTILITY. A STATE TAKE OVER DOES NOTHING TO ADDRESS THE DANGERS ASSOCIATED WITH CLIMATE CHANGE. AND IN FACT WOULD SUBJECT THE STATE TO A HUGE LIABILITY THAT BOTH PRIVATE AND PUBLIC UTILITIES FACE CURRENTLY RIGHT NOW. AND SO WE REPRESENT 14,000 MEMBERS AT PG&E AND THERE'S COUNTLESS OTHER MEMBER AT PGE, STRONG UNION DENSITY COMPANY. WE ASK THAT YOU --

>> MAYOR ISHII: WE ASK YOU TO WRAP UP YOUR SENTENCE.

>> NOT HARM UNION MEMBERS BY TAKING OVER THE PRIVATELY-OWNED UTILITY. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> I THINK THAT WHEN PEOPLE ARE TALKING, AND THEY DON'T WANT TO LEAVE, PEOPLE SHOULDN'T PUT THEIR HANDS ON THEM. I WAS KIND OF OFFENDED BY THAT. I WANT MY TIME BACK, THE 7-9 SECONDS. I WANT TO START MY TIME NOW. SO HAPPY BERKELEY -- I MEAN HAPPY BLACK BERKELEY HISTORY MONTH. I WANT TO TALK TO ITEM 6. IT'S ON THE CONSENT

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CALENDAR SO I DON'T NEED TO PUT TOO MUCH TIME IN THAT. WE ARE IN A HEAP OF TROUBLE, WE HAVE A FASCIST IN THE WHITE HOUSE, NAZI AT THE INAUGURATION, DID YOU SEE THAT COUNCILMEMBER FROM DISTRICT 3 WHO WENT TO THE INAUGURATION? DID YOU SEE HIM? DO THE SALUTE? IT DOESN'T SURPRISE ME THAT YOU WENT TO 47 SWEARING IN. BUT YOU HAVE THE AUDACITY TO ATTEND THE MOST RACIST, FASCIST, NOT MY PRESIDENT WHO IS A SEX OFFENDER, HAS 34 FELONIES AND IS DISMANTLING THIS COUNTRY'S FOUNDATION, ANTI BLACK, ANTI LGBTQ, ANTI IMMIGRANT, DISABILITY, POOR, ANTI HOMELESS, ANTI PALESTINIAN. I PRAY FOR ALL THOSE INCLUDING YOU THAT HAVE BEEN FOOLED BELIEVING HE CARES ABOUT YOUR STUPID BEHIND, BECAUSE HE DOESN'T.

>> MAYOR ISHII: CAN YOU WRAP UP YOUR COMMENTS.

>> CEASE FIRE RESOLUTION. AND YOU KNOW WHAT?

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS.

>> YOU'RE NOT WELCOME. I'M NOT DONE. I WILL BE DONE IN TWO SECONDS.

>> MAYOR ISHII: I APPRECIATE YOUR COMMENTS.

>> CEASE FIRE RESOLUTION, FREE PALESTINE FROM THE RIVER TO THE SEA.

>> HI THERE, CAN YOU HEAR ME? MY NAME IS ROBERT HODGES, I WANT TO COMMENT ON ITEM 7. I HAVE LIVED THE LAST SEVEN YEARS -- MY KIDS WENT TO SCHOOL AT MARTIN LUTHER KING JUNIOR WHERE BEN BROWN WAS KILLED A COUPLE MONTHS AGO. I LIVE TWO BLOCKS FROM WHERE JULIA ELKIN WAS KILLED ON OXFORD AND MARIN. ALL OF THESE PLACES STILL

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LOOK THE SAME AS THEY DID WHEN THOSE TERRIBLE ACCIDENTS TOOK PLACE. SO MY COMMENT ON ITEM #7 IS WHERE ARE THE ACTIONS THAT WILL FIX THIS PROBLEM TOMORROW? WHAT CAN WE DO TOMORROW? WHAT CAN WE DO NEXT WEEK? WHAT CAN WE DO NEXT MONTH THAT WILL GET THESE PROBLEMS FIXED AND STOP PEOPLE FROM BEING KILLED AND INJURED? THANK YOU VERY MUCH FOR ALLOWING ME TO SPEAK.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENTS. NEXT SPEAKER.

>> HELLO, MY NAME IS TRAVIS [INDISCERNIBLE] I'M HERE TO SPEAK ON ITEM 6. THE INVESTOR-OWNED UTILITY MODEL IS STRUCTURED SUCH THAT WHENEVER PG&E BUILDS ANYTHING WE HAVE TO PAY FOR THEIR PROFITS. NOT-FOR-PROFIT UTILITY WOULD TAKE THAT OUT. I JUST WANT TO SPEAK TO THE COMMENT THAT OUR BROTHER AT IBEW MADE ABOUT HOW IT'S ANTI-WORKER. DIVISION FOR TRANSITIONING A UTILITY SYSTEM IS WORKER CENTERED. SO ALL BENEFITS WORKERS CURRENTLY ENJOY WOULD BE SUSTAINED, IF NOT IMPROVED UPON. THIS ITEM IS REALLY FOCUSED ON STUDYING WHAT THE POSSIBILITIES ARE AND TRYING TO DETERMINE WHAT IS IN THE BEST INTEREST OF THE PEOPLE OF CALIFORNIA. YOU CAN ARGUE AGAINST A CHANGE YOU DON'T LIKE. BUT TO GET MORE INFORMATION IS A BEAUTIFUL THING FOR A HEALTHY DEMOCRACY. I SUPPORT CALLING FOR THE STUDY AND KNOWING THAT IT'S WORKER-CENTERED. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO AND GOOD EVENING, COUNCILMEMBERS AND MAYOR. I'M SPEAKING

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ON ITEM #6. I'M HERNANDO SANCHEZ, ENERGY ORGANIZER, WITH LOCAL CLEAN ENERGY ALLIANCE. I URGE BERKELEY TO PASS THE RESOLUTION WHICH WILL SIGNIFICANTLY BENEFIT OUR COMMUNITY. PG&E HAS CONSISTENTLY FAILED US, USING THE POWER SAFETY SHUT OFF PROGRAM TO AVOID NECESSARY REPAIRS WHILE LEAVING COMMUNITIES WITHOUT POWER FOR WEEKS DURING HIGH-RISK CONDITIONS. THIS HAS RESULTED IN EMERGENCIES, SPOILED FOOD AND 2.5 BILLION COST TO CALIFORNIANS. UNLIKE PG&E IT WILL NOT IMPLEMENT POWER SHUT OFFS ENSURING COMMUNITIES CAN ACCESS ESSENTIAL SERVICES AND RENEWABLE ENERGY. RENEWABLE ENERGY IS AN EQUAL RIGHT. WE URGE YOU TO SUPPORT GOLDEN STATE ENERGY, ENERGY JUSTICE, DEMOCRACY AND COMMUNITY RESILIENCE. THANK YOU AND CLEAN POWER TO THE PEOPLE.

>> MAYOR ISHII: THANK YOU.

>> HI, MY NAME IS MEGAN AND I ORGANIZE WITH THE PARTY OF SOCIALISM AND LIBERATION. I'M ALSO HERE IN SUPPORT OF RESOLUTION #6 IN THE FEASIBILITY STUDY FOR GOLDEN STATE ENERGY. PG&E CUSTOMERS, I'M ONE OF THEM, WE PAY THE HIGHEST RATES IN THE COUNTRY. AND WE ARE STILL REELING FROM THE DEVASTATING IMPACTS OF PREVIOUS FIRES. SB 350, WHICH IS OUR MOVING TOWARDS WORKER-OWNED, WORKER-CENTERED GOLDEN STATE ENERGY, THIS FEASIBILITY STUDY SUPPORTS THAT. AND WE BELIEVE ENERGY SHOULD BE OWNED BY THE PEOPLE, NOT BY THE SHAREHOLDERS. AND WE ALSO BELIEVE THAT AS PART OF GOLDEN STATE ENERGY WE SHOULD BE RESPONSIBLE FOR THE DIRECTORS THAT OVERSEE OUR RATE PAYER HIKES,

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CPUC PASSED SIX RATE PAYER HIKES LAST YEAR. WE ARE TIRED OF THE RATE PAYER HIKES. WE ARE LOOKING FOR MORE JUST, MORE CLEAN, MORE WORKER-CENTERED ENERGY. THANK YOU.

>> MAYOR ISHII: THANK YOU. I THINK OUR FINAL IN-PERSON SPEAKER.

>> HI, MY NAME IS JEFF BAKER, I WOULD LIKE TO SPEAK TO ITEM #10, THAT'S IN THE INFORMATION. IT'S A LANDMARK NOTIFICATION OF DECISION, I WOULD LIKE TO ASK YOU TO PLEASE MOVE IT TO THE ACTION CALENDAR SO YOU CAN EXERCISE YOUR PROPER OVERSIGHT OF THE LANDMARKS PRESERVATION COMMISSION. THIS IS AN IMPROPER ATTEMPT TO STALL DEVELOPMENT IN WHAT WILL BECOME THE SAN PABLO AVENUE SPECIFIC PLAN. WHERE WE ARE UNDERGOING TWO YEARS OF PUBLIC COMMENT AND REVIEW IN ORDER TO PRODUCE A BETTER PLAN. AS SOON AS ANY BUILDING APPEARS TO BE ON THE MARKET FOR DEVELOPMENT, THE LANDMARKS PEOPLE SWOOP IN. ONE OF THE ITEMS THAT IS SUPPOSEDLY LANDMARKED IN THIS DECISION IS THE ONE-STORY MASSING WHICH IS THE A TOTALLY INAPPROPRIATE EXERCISE OF THE LANDMARK ORDINANCE. SO I ASK YOU TO PLEASE MOVE IT TO THE ACTION CALENDAR.

>> MAYOR ISHII: SORRY, WERE YOU REFERRING TO INFORMATION REPORT ITEM #10. 12. SORRY, I WAS TRYING TO FIGURE OUT WHICH ITEM YOU WERE REFERRING TO. DO WE HAVE ONLINE COMMENTS?

>> CITY CLERK: YES. WE HAVE NINE HANDS RAISED. THE FIRST IS SAMUEL SIEGEL. YOU HAVE ONE MINUTE.

>> HI, I'M SAM SIEGEL, CAL ALUM AND SAVE THE UA BERKELEY. NOT

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COMMENTING ON ANYTHING ON THE AGENDA, JUST EXPRESSING MY SUPPORT OF THE APPEAL OF 224 SHATTUCK AND COUNCIL LOOKING INTO WAYS TO REJUVENATE SUCH A LANDMARK, FOR OPERA, THEATER, MUSIC CONCERTS, COMEDY SHOWS, LECTURES, WHAT HAVE YOU.

>> MAYOR ISHII: HI, SORRY. THESE ARE ACTUALLY, IT'S SUPPOSED TO BE -- ON CONSENT AND INFORMATION ITEMS ONLY. BUT THANK YOU FOR YOUR COMMENTS.

>> CITY CLERK: NEXT UP IS REN FITZGERALD.

>> GOOD EVENING, COUNCIL, REIGN FITZGERALD, COMMISSION INFRASTRUCTURE TELEGRAPH FOR PEOPLE. I'M SPEAKING STRONGLY IN SUPPORT OF COUNCILMEMBERS HUMBERT, O'KEEFE,, LOST E LICE LUSK AFTER A DRIVER KILLED HER AT 8TH AND CALIFORNIA STREET. THIS INTERSECTION HAS A TRAFFIC DIVERTER INTENDED TO CALM TRAFFIC AND KEEP OUR NEIGHBORS' SAFE. WHILE IT TOOK THE DEATH TO ASSESS THE EFFICACY, NOW IS THE TIME TO ACT. PLEASE VOTE YES ON ITEM #7. PLEASE VOTE IN FAVOR OF ITEM 6 SUPPORTING GOLDEN STATE ENERGY, AN INITIATIVE THAT COULD SAVE LIVES AS WELL RESTORING POWER TO EVERYDAY AMERICANS.

>> CITY CLERK: I KNOW WE HAVE MORE IN-PERSON SPEAKERS.

>> MAYOR ISHII: SORRY.

>> CITY CLERK: IS EVERYBODY STANDING AGAINST THE WALL IN LINE TO SPEAK, OR NO? OKAY. THANK YOU.

>> HOPE I DIDN'T START A TREND. HI, MAYOR. HEY.

>> CITY CLERK: GO AHEAD.

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>> TRAFFIC DIVERTERS, I CAME UP TO SPEAK WITH SOMEBODY ELSE, THE TRAFFIC DIVERTERS, I RIDE A BICYCLE, THOSE THINGS DO NOT HELP, I'M WAITING FOR THE DAY I WILL HIT ONE THOSE THINGS. I'M REALLY IN FAVOR OF MOVING THE ENERGY THING TO CONSENT, I MEAN TO THE ACTION AGENDA ITEM THING. I THINK I REMEMBER THESE PLACES BACK EAST, I THINK BOSTON, LONG TIME AGO TEACHING COLLEGE OUT THERE. THEY HAD THEIR OWN MUNICIPAL STEAM. SO YOU PLUGGED INTO THE MUNICIPAL STEAM AND THAT WAS JUST, THAT WAS YOUR ENERGY. I JUST, I WAS ON CAMPUS AND THERE'S A BIG DIG HAPPENING, I COULDN'T FIGURE OUT WHY THE DIG WAS HAPPENING, THEY WERE PUMPING HEAT INTO THE HILL IN THE SUMMERTIME AND TAKING THE HEAT OUT IN THE WINTERTIME. AMAZING. THE SAME KIND OF THING. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> GOOD EVENING. I'M FRAN, I'M A BERKELEY RESIDENT IN DISTRICT 3 AND ORGANIZER WITH THE EAST BAY DEMOCRATIC SOCIALISTS IN AMERICA, PG&E RATE PAYER. I'M AN ENVIRONMENTAL ECONOMIST BY TRAINING. I RUN THOUSANDS OF CLIMATE MODEL SIMULATIONS. WE ARE BARRELING TOWARDS DISASTER ON OUR CURRENT CARBON EMISSIONS PATHWAY. WE WILL CONTINUE TO EXPERIENCE ESCALATING CLIMATE DISASTERS UNTIL WE DRAMATICALLY REDUCE CARBON POLLUTION. PG&E IS ONE OF THE LARGEST CARBON POLLUTERS IN CALIFORNIA. LOBBY TO GUT NET ENERGY METERING AND CALIFORNIA'S ROOFTOP SOLAR INDUSTRY DESTROYING THOUSANDS OF GOOD JOBS. PLEASE SUPPORT RESOLUTION #6. THANK YOU.

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>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MAYOR ISHII, AND COUNCILMEMBERS. THANK YOU SO MUCH FOR YOUR TIME. AND COMMUNITY. MY NAME IS COLLIN COOKMILLER WITH THE RECLAIM OUR ENERGY JUSTICE CAMPAIGN IN STRONG SUPPORT OF AGENDA 6. THE RESOLUTION THAT YOU ALL HAVE BEFORE YOU TO VOTE ON THIS EVENING IS A REALLY IMPORTANT NEXT STEP IN ACHIEVING A MORE SAFE, RELIABLE, AFFORDABLE, RESILIENT EQUITABLE AND JUST ENERGY SYSTEM. AND I JUST WANT TO NAME THAT WITHOUT NEEDING TO GENERATE DIVIDENDS FOR SHAREHOLDERS, A NEW UTILITY THAT'S NOT-FOR-PROFIT COULD ACTUALLY LOWER RATES FOR EVERYONE. I WANT TO BE CRYSTAL CLEAR, AS A CAMPAIGN AND AS A COALITION WE ARE COMMITTED TO ENSURING THAT THE TRANSITION TO A NEW NOT-FOR-PROFIT UTILITY IS JUST AND WORKER CENTERED AND THAT PG&E'S CURRENT UNIONIZED WORKFORCE MUST BE PROTECTED THROUGH ANY TRANSITION, PENSIONS MUST BE AS GOOD OR BETTER UNDER A NEW UTILITY THAN THEY HAVE BEEN UNDER PG&E. ALL CLEAN POWER TO THE PEOPLE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, THANK YOU FOR YOUR TIME. I'M ZOE, I'M LEAD ORGANIZER CLIMATE ADVOCACY GROUP IN THE BAY AREA. I JUST WANTED TO ECHO SENTIMENTS OF MY FRIENDS AND COLLEAGUES HERE IN SUPPORT OF CONSENT ITEM #6. WE BELIEVE THAT PG&E AS A MONOPOLY HAS TOO MUCH POWER AND THEY SHOULDN'T BE MAKING THE PROFIT OFF OUR BACKS WHEN WE ARE PAYING FOR THE FIRES AND DESTRUCTION THEY HAVE CAUSED. AND THAT WE

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ARE STRONGLY IN FAVOR OF A BILL OR SOME KIND OF ACTION FROM THE STATE LEGISLATURE THAT WOULD REQUIRE THEM TO STUDY WHAT IT WOULD ACTUALLY TAKE TO DO THE COMPLICATED JOB OF TRANSITIONING US AWAY FROM PG&E AND TOWARDS A SYSTEM WHERE THE MONEY CAME BACK TO THE COMMUNITY RATHER THAN IN THE POCKETS OF THE SHAREHOLDERS AND THE CEO. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU.

>> HELLO AGAIN, MY NAME IS FERN WILDTRUTH. I'M STRONGLY IN FAVOR OF ITEM 6. AS YOU PROBABLY KNOW, FOR PG&E ANY MITIGATION MEASURES THAT WOULD HURT SHAREHOLDER PROFITS TEND TO BE AVOIDED. AND PG&E ONLY TAKES ACTIONS IT COULD RAISE RATES FOR. SO THIS RESULTS IN ALL KINDS OF TERRIBLE DECISIONS. IT RESULTS IN DECISIONS THAT HAVE A VERY LARGE ENVIRONMENTAL IMPACT WHEN THERE ARE ALTERNATIVES THAT COULD, SUCH AS INFRASTRUCTURE IMPROVEMENTS THAT COULD PREVENT WILDFIRES MUCH BETTER. AND SO PG&E MAKES TERRIBLE DECISIONS, STARTS FIRES, CREATES UNNECESSARY POWER SHUT OFFS TO HOMES. WE NEED A NEW SYSTEM TO AVOID THAT. SO WE ARE IN A CLIMATE OF URGENCY AND RESOLUTION 6 ADDRESSES, WOULD GIVE SUPPORT TO TRANSITION THAT WOULD ADDRESS ECONOMIC SOCIAL AND CLIMATE JUSTICE ISSUES. I URGE YOU ALL TO SUPPORT THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, THANK YOU FOR HOLDING THIS COUNCIL. MY NAME IS GARRETT. I'M FROM U.C. BERKELEY. AND I AM HERE TO SUPPORT ITEM 6 ON PG&E'S

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TRANSITION OVER TO GOLDEN ENERGY POWER. I'VE HEARD SO MUCH ABOUT THE WILDFIRES THAT HAVE BEEN STARTED BY NEGLIGENCE OR INABILITY FOR PG&E TO TAKE INITIATIVE AND BUILD OUT PROTECTION FOR THAT AND BUILDUP THE INFRASTRUCTURE NECESSARY IN ADVANCE. IT WOULD BE REALLY GREAT IF THERE WAS SOME WAY TO IMPROVE THAT PROCESS AND ACTUALLY TRANSITION OVER TO A SYSTEM THAT WOULD INCENTIVIZE MORE REPAIRS AND PREVENT THOSE KINDS OF THINGS FROM HAPPENING IN THE FUTURE. ALL RIGHT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, MY NAME IS JULIAN CARNEY, I'M HERE FOR CONSENT #7. I JUST CAME HERE TO SEE ABOUT CONSENT 7. I'M A FRIEND AND RELATIVE OF ELISE LUSK. YOU KNOW I VISITED WHERE THE ACCIDENT HAPPENED. AND I DON'T KNOW IF ANY OF YOU HAVE BEEN THERE. COUNCILMEMBER HUMBERT YOU SPOKE ON SLIP LANES, I HAVE NEVER HEARD OF SUCH A THING, BUT WHEN I EXPERIENCED IT, I'VE NEVER EXPERIENCED SUCH A DRASTIC SET UP AND THE MAN THAT WAS HERE EARLIER SAID HE HAS SEEN THESE AND THEY HAVEN'T CHANGED OVER YEARS. AND IT'S UNBELIEVABLE THAT SOMETHING LIKE THAT WOULD BE SET UP IN A CITY SO SENSELESS WITH NO STOPS, NO LIGHTS, NO ANYTHING. I THINK ALL OF YOU SHOULD VISIT WHERE THIS ACCIDENT HAPPENED TO SEE HOW DEVASTATING A PLACE THAT IS.

>> MAYOR ISHII: THANK YOU.

>> AND UNDERSTAND HOW SENSELESS OF A DEATH AND HOW MANY FAMILIES

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HAVE BEEN AFFECTED BY THIS.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT. SO SORRY FOR YOUR LOSS.

>> HI, MY NAME IS JANE AND MY HUSBAND AND I LIVE ON THE CORNER OF ADA AND CALIFORNIA STREET. WE HEARD THE ACCIDENT. TO REITERATE WHAT JULIAN SAID, YOU SHOULD ALL GO VISIT IT. AND PLEASE, OUR NEIGHBORHOOD PLEADS WITH YOU TO DO SOMETHING ABOUT IT AND SOONER THAN LATER OKAY? BECAUSE THAT COULD HAVE BEEN AVERTED, THAT DIDN'T NEED TO HAPPEN. OKAY, THANK YOU. I DIDN'T PLAN TO SPEAK, SO. ANYWAY, PLEASE. I DON'T KNOW WHY IT SHOULD TAKE SO LONG. THERE ARE NO CROSSWALKS THERE. NO STOP SIGNS, NOTHING. IT'S RIGHT BY THE MONTEREY MARKET SO IT'S A VERY BUSY INTERSECTION. SO PLEASE, THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> MY NAME IS JACKIE BARSHACK AND I WORK WITH THE RECLAIM OUR POWER CAMPAIGN. I WANT TO SPEAK IN SUPPORT OF ITEM 6. GET THIS: PG&E'S PROFITS TOTALED $694 MILLION ONLY IN THE SECOND QUARTER. AND THIS WAS A 36% INCREASE FROM THE SAME PERIOD A YEAR AGO. GOT THAT? PG&E CHOOSES TO MAKE THE MOST EXPENSIVE, BUT UNNECESSARY INFRASTRUCTURE INVESTMENTS THAT YIELD HIGH PROFITS, NOT FOR US, BUT FOR THEIR SHAREHOLDERS. NOT ONLY THAT, PG&E, THESE ARE JUST SOME OF THE REASONS WHY I ASK FOR YOUR SUPPORT OF THIS RESOLUTION. PG&E PASSES THEIR ADVERTISING AND LOBBYING. DO YOU REALIZE WHEN YOU PAY YOUR

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PG&E BILL YOU ARE PAYING FOR THEIR ADVERTISING? AND THEIR LOBBYING?

>> MAYOR ISHII: THANK YOU SO MUCH.

>> THROUGH THE PASSING OF AB 1054, PG&E WAS ABLE TO PASS ON ALL WILDFIRE MITIGATION COSTS.

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENTS.

>> SO FOR THESE REASONS, NOT INCLUDING THE SHUT OFFS FOR NON-PAYMENT AND THEIR WILDFIRES, I ASK FOR YOUR SUPPORT.

>> MAYOR ISHII: THANK YOU. WE ARE STRICT ABOUT COMMENTS. THANK YOU, I APOLOGIZE FOR INTERRUPTING FOLKS, I KNOW IT FEELS REALLY RUDE BUT I WANT TO BE RESPECTFUL OF EVERYONE WHO WANTS TO MAKE A COMMENT AND ALSO OUR STAFF WHO STAY QUITE LATE FOR THESE MEETINGS. PLEASE, OUR NEXT SPEAKER, YOU HAVE A MINUTE TO SPEAK.

>> HI, MY NAME IS OWEN. I'M A LOCAL BERKELEY RESIDENT WITH THE LONG FELLOW BERKELEY SCHOOL GRADUATE, FORMER J.V. HEAD FOOTBALL COACH AT BERKELEY HIGH, STARTED BLUE JACKET INSTALL, THE NEW NAME IS 1-888-HEAT-PUMPS, DOING THIS ITEM WOULD LOWER THE COST OF ELECTRICITY WHICH WOULD HELP OUR COMPANY GROW AND BUILD THIS TOOL BELT GENERATION, AS I LIKE TO LOOK AT IT INTO ELECTRIFICATION. JUST WANT TO SAY THAT PART. THANK YOU.

>> MAYOR ISHII: THANK YOU. ENTHUSIASTIC SIGN WAFERS IN THE BACK. I KNOW WE STILL HAVE COMMENTS ONLINE. CAN YOU GIVE ME A SENSE HOW MANY ARE LEFT SO I CAN KEEP TRACK.

>> CITY CLERK: THERE ARE CURRENTLY SEVEN HANDS RAISED.

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>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: FIRST UP IS CHRISTOPHER KROLL.

>> HEY THERE, THANK YOU. I WON'T TAKE VERY LONG. I'M HERE ON ITEM 6. I WANT TO THANK COUNCILMEMBERS TREGUB AND LUNAPARRA. IT'S REALLY IMPORTANT THAT BERKELEY GIVE ITS VOICE TO SACRAMENTO ON THIS ISSUE AND TO OUR NEW STATE SENATOR ARREGUIN AND ASSEMBLY MEMBER WICKS THAT THIS CITY IS IN SUPPORT OF MOVING OFF THE 19TH CENTURY, EARLY 20TH CENTURY INVESTOR-OWNED UTILITY MODEL PG&E REPRESENTS WHICH IS NOT IN THE BEST INTEREST OF PEOPLE OF CALIFORNIA MUCH LESS PEOPLE OF BERKELEY. PLEASE SUPPORT ITEM 6 AND ENCOURAGE OUR REPRESENTATIVES IN SACRAMENTO TO WORK TO CREATE A REAL PUBLIC ENERGY ENTITY THAT SERVES THE PEOPLE OF CALIFORNIA, GOLDEN STATE ENERGY. THANK YOU VERY MUCH.

>> CITY CLERK: OKAY, NEXT IS DANIEL TAHARA.

>> HI, MY NAME IS DANIEL TAHARA. RESIDENT OF DISTRICT 8. MEMBER OF CLIMATE COMMISSION. I'M IN SUPPORT OF ITEM 6. WE KNOW ONE OF THE BIGGEST IMPEDIMENTS OF REDUCING GREENHOUSE COMMISSION IS COST OF ENERGY, APPALLINGLY HIGH, THIS PUTS TECHNOLOGIES LIKE E.V. AND HEAT PUMPS AT A COST DISADVANTAGE TO THEIR FOSSIL FUEL COUNTERPARTS. GIVEN WE ARE INCREASINGLY ABLE TO RELY ON REGULATION TO MANDATE, THE ABSOLUTE LEAST WE CAN DO IS TRY TO UNSTACK THE DECK AGAINST THE GREEN TRANSITION. THE COMMENTER FROM IBEW EARLIER MENTIONED A LOT OF THE COST INCREASES ARE LARGELY DUE TO HARDENING

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AND ADDRESSING CLIMATE CHANGE. WHILE THAT MAY BE TRUE, THE PROFIT STRUCTURE IS NEFARIOUS WAYS, OPTING FOR MORE EXPENSIVE WAYS LIKE UNDERGROUNDING INSTEAD OF TREE TRIMMING. WE SEE SMUD HAS SOME OF THE LESS RATES IN THE STATE. I THINK WE HAVE A GOOD EXAMPLE HERE AND I URGE YOU TO PASS THIS RESOLUTION. THANK YOU.

>> CITY CLERK: NEXT IS SHIRLEY KIRSTEN.

>> OKAY, I WANT TO THANK COUNCILMEMBER HUMBERT IN PARTICULAR FOR HIS VALUABLE SUPPORT OF A STOP SIGN INSTALLATION ON HAWKINS MCGHEE. THIS TIES INTO ITEM 7. BUT IT TOOK A LOT OF YEARS TO GET IT. THANK COUNCILMEMBER O'KEEFE FOR RESPONDING TO THE ISSUE OF DELIVERY TRUCKS ON HAWKINS MCKEE THAT WERE BLOCKING THE STOP SIGN. NOW IT'S TIME TO CONTINUE THESE PIVOTAL PEDESTRIAN SAFETY ACTIONS FOR ADA AND CALIFORNIA AND OTHER TRAFFIC DIVERTER INTERSECTIONS BUT PARTICULARLY RIGHT NOW FOR ADA, CALIFORNIA, WHICH IS UNSAFE, NOT ONLY IN THE AREA WHERE ELISE LUSK WAS KILLED BUT ALSO THE OTHER SIDE IS JUST AS DANGEROUS. SO THE WHOLE AREA NEEDS TO BE NOT JUST RESEARCHED BUT THERE NEEDS TO BE IMMEDIATE ACTION. AND I THANK YOU FOR TAKING IMMEDIATE ACTION. THANK YOU VERY MUCH.

>> CITY CLERK: THANK YOU. NEXT IS DANIEL BROWNSON.

>> HELLO, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> SO I GREW UP -- I'M A UNION MAN MYSELF. I GREW UP IN ALAMEDA AND FIRST RENTED AND PAID POWER BILLS THERE BEFORE MOVING INTO THE

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PG&E EMPIRE. THEY HAVE PUBLIC POWER. MY POWER BILL IN A LESS-EFFICIENT, LESS MODERN APARTMENT WAS HALF OF WHAT IT COSTS IN A PG&E AREA. NOT ONLY THAT, THEIR PUBLIC UTILITY IS WAY GREENER THAN PG&E. AND UNLIKE PG&E HASN'T KILLED ANYONE. WHICH IF PG&E WAS A PERSON IT WOULD BE GUILTY OF MASS MURDER, LET'S FACE IT. THERE'S NO SANE ARGUMENT FOR KEEPING THIS PROFIT-CENTERED --

>> CITY CLERK: PLEASE CONCLUDE.

>> THE GUY FROM IBEW IS A CLASS TRADER, HE SHOULD BE ASHAMED OF HIMSELF FOR BEING A --

>> MAYOR ISHII: LET'S KEEP THE INSULTS OUT OF THE COMMENTS, PLEASE.

>> CITY CLERK: NEXT IS ALICE SUNG.

>> YES, THANK YOU. CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> MY NAME IS ALICE SUNG, I'M AN ARCHITECT AND SUSTAINABILITY CONSULTANT. AND I'M ALSO A PG&E RATE PAYER HERE IN UNCEDED OHLONE TERRITORY. WE HAVE HEARD ABOUT HARMS OF PG&E AND INVESTOR-OWNED UTILITY MONOPOLIES, THE RATE HIKES, PROFIT MARGINS, UTILITY SHUT-OFFS FOR NON-PAYMENT, DEATHS, WILDFIRES, OUTAGES, PSPS EVENTS, DEGRADING POWER SUPPRESSION OF RENEWABLES AND SOLAR. I JUST WANT TO SAY THAT YOU HAVE THIS GOLDEN OPPORTUNITY, AND I WANT TO THANK THE CITY COUNCIL AND MAYOR FOR SUPPORT FOR PROGRESSIVE CLIMATE CHANGE ACTION. AND YOU HAVE THIS OPPORTUNITY TO SUPPORT ITEM #6 IN THE CONSENT CALENDAR TONIGHT. FOR THE REASONS, YOU KNOW, HALF A

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DOZEN REASONS FOR THE SAFETY OF NON-PROFIT PUBLIC BENEFITS CORPORATION COULD OFFER US. LIABILITY. RENEWABLE, 100% RENEWABLE AND DISTRIBUTED ENERGY SOLAR OFFER.

>> CITY CLERK: THANK YOU.

>> I WANT TO OFFER MY SUPPORT AND THANK YOU FOR YOUR LEADERSHIP.

>> CITY CLERK: OKAY, NEXT IS BEBR.

>> THANK YOU SO MUCH, THANK YOU, MAYOR, AND MEMBERS OF THE COUNCIL. MY NAME IS BRET BEDIL AND I REPRESENT PG&E ALONG WITH THOUSANDS WHO SHOW UP EVERY DAY TO MAKE SURE WE ARE SERVING OUR HOMETOWNS AND WE DO THAT WITH PRIDE. YOU KNOW, PG&E WE DON'T SUPPORT THE IDEA OF THE STATEWIDE PUBLIC UTILITY AND WE REALLY BELIEVE THIS TYPE OF OWNERSHIP FRAMEWORK WOULD NOT BENEFIT TAXPAYERS, LOCAL COMMUNITIES OR CALIFORNIA'S ECONOMY. AND SO, I WOULD REALLY LIKE TO, YOU KNOW, LET YOU KNOW THAT A STATE OR LOCAL ATTEMPT TO TAKE OVER PG&E ASSETS, ESPECIALLY WHEN WE ARE THINKING ABOUT THE RECENT WILDFIRES IN SOUTHERN CALIFORNIA, THIS WILL MEAN INCREASED STATE TAXPAYER LIABILITY, IN CASE OF FIRES, THAT ARE CAUSED BY EQUIPMENT, OWNED BY A GOVERNMENT-RUN UTILITY SUCH AS THIS. SO TO BE CLEAR, A GOVERNMENT-RUN UTILITY COULD NOT ACCESS THE STATEWIDE WILDFIRE FUND THAT PROTECTS VICTIMS RIGHT NOW. IT WOULD ALSO CREATE A SIGNIFICANT FISCAL BURDEN, IMPOSING TENS OF BILLIONS OF DOLLARS IN LONG-TERM DEBT. AND SPECIFICALLY WHEN SPEAKING ABOUT THE CITY OF BERKELEY --

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>> CITY CLERK: THANK YOU FOR YOUR COMMENTS. NEXT IS LINDA KLEIN.

>> GOOD EVENING, COUNCILMEMBERS. MY NAME IS LINDA KLEIN, I'M A RESIDENT OF DISTRICT 5. I WANTED TO SPEAK ABOUT ITEM #12. WHICH WAS THE LANDMARK DECISION REGARDING 2500-2512 SAN PABLO AVENUE. I REPRESENT THE OWNER OF THAT BUILDING. I WANT TO ECHO WHAT MR. BAKER SAID THAT THE CHARACTER-DEFINING FEATURES ARE NOT WELL SUPPORTED. THE ONE-STORY HEIGHT IN PARTICULAR WILL PREVENT REDEVELOPMENT OF SAN PABLO CORRIDOR, WHICH THE OWNER HAS SOME PLANS. RELATED TO THAT. THE OWNER IS NOT OPPOSED TO KEEPING THE FACADE WHICH IS A VERY HANDSOME BUILDING. ALSO, I JUST WANTED TO SAY I FILED AN APPEAL ON JANUARY 31ST OF A LANDMARK DECISION AND DIDN'T SEE THAT MENTIONED IN THE INFORMATION REPORT. THANK YOU.

>> CITY CLERK: OKAY. LAST SPEAKER IS EDUARDO. EDUARDO? I SEE YOU ARE UNMUTED. YOU SHOULD BE ABLE TO SPEAK. EDUARDO, YOU ARE UNMUTED. BUT WE CAN'T HEAR YOU. LET'S SEE. EDUARDO, ARE YOU THERE?

>> HELLO, CAN YOU HEAR ME?

>> CITY CLERK: YES, YES WE CAN.

>> THANK YOU. YES, I'M CALLING IN, BERKELEY RESIDENT HERE URGING SUPPORT FOR ITEM #6. I REALLY STRONGLY URGE THE CITY COUNCIL TO SUPPORT THIS ITEM. AND I ALSO URGE THE CITY COUNCIL NOT ONLY TO STOP AT CALLING FOR FEASIBILITY STUDY AT THE STATE LEVEL BUT ALSO WOULD URGE THE CITY COUNCIL TO LOOK INTO A FEASIBILITY STUDY AT THE LOCAL LEVEL. WE SEE OUR NEIGHBORS IN ALAMEDA AND IN SACRAMENTO

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WHO HAVE MUNICIPAL CONTROLLED ENERGY SYSTEMS. THEY PAY HALF THE RATES THAT WE DO. I THINK RESIDENTS ARE TIRED OF SEEING OUR BILLS GO UP WITH NO END IN SIGHT. AND OUR LEADERS NOT DOING ANYTHING ABOUT IT. I URGE YOU TO ALSO TAKE ACTION AT THE LOCAL LEVEL AND COMMISSION A FEASIBILITY STUDY ON BERKELEY CREATING ITS OWN MUNICIPAL POWER SYSTEM. THANK YOU.

>> CITY CLERK: OKAY, THANK YOU. THAT'S ALL THE SPEAKERS.

>> MAYOR ISHII: THANK YOU SO MUCH. I HAVE COUNCILMEMBER TAPLIN ACTUALLY ON HERE FIRST.

>> T. TAPLIN: THANK YOU AND THANK YOU EVERYONE. TO THE GENTLEMAN FROM IBEW, I WOULD BE HAPPY TO MEET WITH YOU TO DISCUSS THE CONCERNS YOUR LOCAL, IF YOU GET IN TOUCH WITH MY OFFICE, YOU DON'T HAVE ANY STAFF HERE BUT I'M PRETTY EASY TO FIND OR IF YOU HAVE A CARD I WOULD BE HAPPY TO TAKE THAT BUT I WOULD BE HAPPY TO DISCUSS YOUR CONCERNS AND CONCERNS OF YOUR LOCAL.

>> MAYOR ISHII: COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU. I WANT TO ACKNOWLEDGE, WE HEARD TWO PUBLIC COMMENTERS ON THE 2500-12 SAN PABLO AVENUE LANDMARKING DECISION. I JUST WANT TO SAY FOR THE RECORD IT HAS BEEN APPEALED AS WE HEARD AND THAT WILL BE SCHEDULED. SO THAT'S, I JUST WANTED TO PUT THAT IN THE PUBLIC RECORD. THANK YOU VERY MUCH.

>> MAYOR ISHII: YES, THANK YOU VERY MUCH. SO I BELIEVE NOW WE HAVE FINISHED COUNCIL COMMENTS AND ALSO PUBLIC COMMENTS. IS THERE A

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MOTION?

>> I. TREGUB: SO MOVED.

>> MAYOR ISHII: TO APPROVE THE CONSENT.

>> I. TREGUB: TO APPROVE THE CONSENT WITH ALL THE SUPPLEMENTALS.

>> MAYOR ISHII: THANK YOU. AND IS THERE A SECOND?

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: OKAY. SHOULD WE DO THE ROLL? AS LONG AS THERE ARE NO OBJECTIONS I WILL HAVE US ALL LISTED AS AYES TO APPROVE THE CONSENT.

>> CITY CLERK: OKAY.

>> MAYOR ISHII: GREAT, THANK YOU SO MUCH. THANK YOU ALL SO MUCH. THANK YOU ALL FOR YOUR COMMENTS. I DO WANT TO GIVE US LIKE A 10-MINUTE BIO BREAK. WE ARE TRYING TO MODEL SELF-CARE, IT'S IMPORTANT FOR US TO TAKE A BREAK, STRETCH, DRINK SOME WATER, WE WILL TAKE A 10-MINUTE RECESS. [10-MINUTE BREAK]

>> MAYOR ISHII: COUNCILMEMBER? THANK YOU. OKAY, TRYING TO GET US GOING HERE. ALL RIGHT. I WOULD LIKE TO CALL OUR MEETING BACK INTO SESSION. THANK YOU SO MUCH. I APPRECIATE GETTING TO TAKE A LITTLE BREAK. BEFORE MOVING ONTO OUR ACTION CALENDAR. OH, WAIT. SORRY, SO DO WE HAVE ANY PUBLIC COMMENT? LET'S HEAR THE STAFF REPORT. THANK YOU. YES. FROM OUR AUDITOR'S OFFICE, WE HAVE A PRESENTATION, WE ARE NOW ON ACTION CALENDAR. ITEM #8, 2009 LEASE'S AUDIT FOLLOW-UP. YES, THANK YOU FOR REMINDING. ME OUR CITY AUDITOR JENNY WONG

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WILL BE PRESENTING REMOTELY. THANK YOU SO MUCH FOR JOINING US, AUDITOR.

>> HI, GOOD EVENING. AND THANK YOU FOR LETTING ME DO THIS REMOTELY. I'VE GOT A NOT FEELING WELL AND HOPEFULLY ON THE MEND. SO I JUST WANTED TO START AND JUST MAKE A QUICK COMMENT THAT, AT A TIME OF REALLY THE GUTING OF OVERSIGHT AT THE FEDERAL LEVEL, I JUST WANT TO SAY HOW MUCH I APPRECIATE THE VALUES OF THIS CITY IN BERKELEY I WORK IN, IN SUPPORTING MY OFFICE AND THE WORK ON OVERSIGHT AND ACCOUNTABILITY. AND WITH THAT, I WANTED TO, I'LL LAUNCH RIGHT INTO THIS PRESENTATION OF OUR 2009 LEASES AUDIT FOLLOW-UP. AND SO ON JANUARY 24TH, MY OFFICE RELEASED A SPECIAL FOLLOW-UP REPORT ON THE 2009 AUDIT OF THE CITY'S LEASES. TONIGHT, I WILL PROVIDE SOME HIGHLIGHTS FROM THAT REPORT. I JUST WANT TO MAKE SURE THAT YOU CAN ALL STILL SEE THE PRESENTATION?

>> MAYOR ISHII: I ACTUALLY CAN NO LONGER SEE IT.

>> CITY CLERK: WE WERE SEEING IT. THERE WE GO.

>> GREAT, THANK YOU SO MUCH. AND I'VE GOT MY WONDERFUL STAFF MEMBERS WITH ME, KAITLYN PALMER, AND PAULI MILLER, I WANT TO THANK FOR WORKING ON THIS AUDIT. SO TONIGHT I'LL SHARE SOME HIGHLIGHTS FROM OUR REPORT. THAT INCLUDES RECOMMENDATIONS TO HELP THE CITY ADDRESS SOME OF THE RISKS THAT STILL REMAIN 16 YEARS AFTER THE ORIGINAL AUDIT FROM 2009. I WILL ALSO WALK THROUGH WHY WE DID THIS FOLLOW-UP REPORT, OUR OBJECTIVES, SOME BACKGROUND ON CITY LEASES

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AND LICENSES, OUR FINDINGS AND RECOMMENDATIONS AND MANAGEMENT'S RESPONSE. SO WHY DO WE DO THIS FOLLOW-UP WORK? WE ISSUED THIS REPORT BECAUSE ACCORDING TO THE PUBLIC WORKS DEPARTMENT'S LAST, THE CITY NEVER IMPLEMENTED 7 OF THE 24 RECOMMENDATIONS FROM THE 2009 AUDIT. EXCUSE ME. WE ALSO FOUND THAT THE CITY DID NOT FOLLOW THROUGH WITH ITS 2002 PLAN TO CENTRALIZE LEASE MANAGEMENT. AND THIS RAISED CONCERNS THAT THE STATUS OF SOME OF THE PREVIOUSLY-IMPLEMENTED RECOMMENDATIONS MAY HAVE CHANGED. SO THE OBJECTIVES OF THIS REPORT WAS TO ASSESS WHETHER THE RECOMMENDATIONS FROM THE ORIGINAL 2009 AUDIT WERE IMPLEMENTED AND TO IDENTIFY ANY REMAINING RISKS TO THE CITY AROUND LEASE MANAGEMENT. HOW DO WE DO THAT? WE SELECTED EIGHT RECOMMENDATIONS STILL RELEVANT TO FOLLOW-UP ON AND TO GET AN UPDATE ON THE STATUS WE REVIEWED POLICIES, EXCUSE ME, INTERVIEWED CITY STAFF RESPONSIBLE FOR LEASE MANAGEMENT AS WELL AS LOOK AT SOME LEASES. SINCE THIS WAS A FOLLOW-UP REPORT WITH A MORE LIMITED SCOPE THAN OUR TYPICAL AUDITS WE DID NOT LOOK AT EVERY EXAMPLE AND EVERY DETAIL IN DEPTH. THE ORIGINAL AUDIT FINDINGS WERE ALREADY SUBSTANTIATED AND THE RECOMMENDATIONS WERE AGREED UPON. SO OUR PURPOSE AND OUR JOB WITH THIS REPORT WAS TO ASSESS THE EXTENT TO WHICH THESE RECOMMENDATIONS WERE IMPLEMENTED OR NOT AND IDENTIFY AREAS OF RISK THAT STILL REMAIN TODAY. SO NOW LET ME GIVE YOU A LITTLE BACKGROUND ON WHAT ARE CITY LEASES AND LICENSES? THE CITY RENTS SPACE THROUGH THESE LEASE AND LICENSE AGREEMENTS.

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THE KEY DIFFERENCE IS THAT LEASE AGREEMENTS TYPICALLY ALLOW A TENANT EXCLUSIVE AMOUNTS OF SPACE FOR LONGER PERIODS OF TIME. WHILE LICENSE AGREEMENTS LIKELY ALLOW MULTIPLE TENANTS TO SHARE A SPACE FOR SHORTER PERIODS OF TIME. LICENSES ALSO ALLOW A SIMPLER PROCESS -- TO END THE AGREEMENT. AS YOU CAN SEE ON THE TABLE, THE CITY HAS AT LEAST 49 LEASE AGREEMENTS AND NINE -- EIGHT LICENSE. THE CITY DOESN'T HAVE A COMPLETE LIST. WE KNOW THE CITY RENTS FOR ITS OWN USES BUT WE WERE NOT ABLE TO ESTIMATE THAT NUMBER. I WANT TO NOTE THAT THROUGH THE PRESENTATION I'LL BE USING THE PHRASE LEASE MANAGEMENT TO COVER BOTH LEASES AND LICENSES TOGETHER, WHICH ARE THE TWO DIFFERENT ARRAYS THAT THE CITY RENTS OUT SPACE. EXCUSE ME. TO KIND OF GIVE YOU AN EXAMPLE OF WHAT THESE LEASES INCLUDE. SO THE EXAMPLES OF BUILDINGS THAT THE CITY RENTS OUT TO OTHER ENTITIES INCLUDE OLD CITY HALL, WHICH IS THE IMAGE TO YOUR LEFT. THE VETERANS BUILDING AND TELEGRAPH CHANNING MALL IMAGE ON THE RIGHT. THE CITY ALSO RENTS PROPERTIES TO HOTELS, RESTAURANTS AND SHOPS AT THE BERKELEY MARINA. AN EXAMPLE OF AN A TENANT THE CITY LICENSES DOROTHY DAY HOUSE TO OPERATE THE EMERGENCY STORM SHELTER. AS AN EXAMPLE OF TENANTS THE CITY LEASES TO ARE THE SHOPS AND ORGANIZATIONS LOCATED IN THE TELEGRAPH CHANNING MALL, SUCH AS MO'S FLOWERS, REVOLUTION BOOKS AND WE YIELD THE HAMMER. WHILE WE DID NOT ESTIMATE THE NUMBER OF LEASES AND LICENSES IN WHICH THE CITY IS THE TENANT, WE WEREN'T ABLE TO DO THAT, ONE EXAMPLE OF A BUILDING

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THAT THE CITY LEASES FROM ANOTHER ENTITY IS THE ADULT MENTAL HEALTH CLINIC ON UNIVERSITY AVENUE. SO LET ME GET INTO WHAT WE FOUND. OUR FIRST FINDING IS THAT THE CITY STILL LACKS A CLEAR APPROACH TO LEASE MANAGEMENT. THIS FINDING AND THE OTHER TWO NEXT FINDINGS 2009 AUDIT. SO WE FOUND THAT THERE'S STILL NO CENTRAL OVERSIGHT FOR CITY LEASES AND THE CITY IS LACKING A CLEAR APPROACH TO LEASE MANAGEMENT. THE STAFFING MODEL FOR LEASE MANAGEMENT HAS CHANGED SINCE THE ORIGINAL AUDIT. THE CITY HAD A REAL PROPERTY ADMINISTRATOR FORMALLY IN CHARGE OF CERTIFIED LEASE MANAGEMENT BUT THIS POSITION WAS ELIMINATED IN FISCAL YEAR 2014. AS A RESULT THERE'S CURRENTLY NO CITY STAFF PERSON FORMALLY RESPONSIBLE FOR CENTRAL OVERSIGHT OF LEASES. LIMITED STAFF CAPACITY AND A LACK OF CLEAR DIRECTION FROM CITY MANAGEMENT IMPACT THE CITY'S ABILITY TO STAY ON TOP OF ITS RENTAL AGREEMENTS. WHAT WE DID WITH THIS ONE, WE REOPENED THREE RECOMMENDATIONS UNDER THIS FINDING TO BRING NEEDED CLARITY TO THE CITY'S LEASE MANAGEMENT. RECOMMENDATIONS 1.1 AND 1.2 ASK THE CITY TO FORMALIZE THE DIVISION OF LEASE MANAGEMENT RESPONSIBILITIES BETWEEN DEPARTMENTS AND ESTABLISH THE ROLE OF REAL PROPERTY STAFF. WE SUGGEST THE CITY MANAGER'S OFFICE TAKE THE LEAD ON DEFINING THESE ROLES AND TO WORK WITH EACH DEPARTMENT IN MANAGING LEASES TO IDENTIFY WHERE ADDITIONAL STAFFING RESOURCES ARE NEEDED. AND RECOMMENDATION 1.5 ASKS THE CITY TO COMMUNICATE A PROPERTY MANAGEMENT PLAN WITH ALL AFFECTED CITY DEPARTMENTS. WE

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SUGGEST THE CITY MANAGER'S OFFICE REQUEST RESOURCES AS NEEDED TO DEVELOP A PROPERTY MANAGEMENT PLAN TO IMPLEMENT THIS RECOMMENDATION. ONTO OUR SECOND FINDING. THE SECOND FINDING IS THAT THE CITY'S LEASE POLICY STILL DOES NOT ACCURATELY REFLECT ITS ACTUAL PRACTICES. WE FOUND THAT THE CITY'S LEASE POLICY DOES NOT ALIGN WITH ITS ACTUAL PRACTICES. THIS CAN LEAD TO VARIANCES IN AGREEMENTS WHICH WE WILL COVER IN THE NEXT SLIDE. CITY'S LEASE POLICY A.ER R.6.6. ASSIGNS TO PUBLIC WORKS WHICH INCLUDES REVIEWING LEASE REQUESTS. IT ALSO INCLUDES NEGOTIATING LEASES. AND IT ALSO INCLUDES PREPARING LEASE AGREEMENTS FOR CITY COUNCIL APPROVAL. BASED ON CONVERSATIONS WITH CITY STAFF, WE LEARNED IN ACTUAL PRACTICE PUBLIC WORKS IS NOT ALWAYS CONSULTED IN THE PRACTICE OF ESTABLISHING LEASES. AS A RESULT PUBLIC WORKS MAY NOT KNOW ABOUT LEASING DECISIONS UNTIL IT'S TOO LATE TO PROVIDE DIRECTION ON THE LEASE TERMS LIKE RESPONSIBILITY FOR MAINTENANCE SERVICES. WE ALSO IDENTIFIED GAPS IN THE CITY'S POLICY FOR GUIDANCE FOR LEASES. FOR EXAMPLE, THERE'S NO PROCESS FOR ESTABLISHING BELOW MARKET-RATE RENT. IT WAS NOT CLEAR WHY SOME NONPROFITS RECEIVE BELOW MARKET RATE RENT OPPORTUNITIES AND OTHERS DO NOT. BELOW MARKET RATE OPPORTUNITIES MAY HELP NONPROFITS PROVIDE SERVICES AS WE KNOW IN OUR REPORT. HOWEVER, WE HEARD OF EXAMPLES IN WHICH THE CITY RENTS OUT ITS OWN PROPERTY AT SIGNIFICANT BELOW MARKET RATE BUT STILL PAYS FOR SOME OR ALL UTILITIES AND OTHER SERVICES LIKE MAINTENANCE.

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ACCORDING TO STAFF, RESPONSIBILITIES FOR PAYING UTILITIES AND OTHER FEES IS NOT ALWAYS CONSISTENT ACROSS LEASES. THIS HELPS TO SHOW HOW WITH LIMITED POLICIES AND PROCEDURES FOR DEVELOPING RENTAL AGREEMENTS, RENTAL AGREEMENTS MAY VARY SIGNIFICANTLY AND THE PROCESS COULD RESULT IN ACTUAL OR PERCEIVED UNFAIRNESS. THERE'S ALSO NO GUIDANCE ON WHEN TO LEASE VERSUS LICENSE CITY-OWNED PROPERTY. REGARDING LICENSING, WE LEARNED FROM CITY STAFF THAT PUBLIC WORKS IS MOVING TOWARDS OPTIMIZING USE OF CITY PROPERTY BY ESTABLISHING MORE LICENSE AGREEMENTS WHICH COULD ALLOW TENANTS TO CO-OCCUPY SPACE. HOWEVER, THIS IS NOT AN ADOPTED CITYWIDE APPROACH. TO ADDRESS THESE ISSUES, WE REOPENED A RECOMMENDATION TO HELP PROMOTE A CONSISTENT PROCESS FOR ESTABLISHING AND MANAGING LEASE AGREEMENTS. WE ASK THAT THE CITY UPDATE ITS LEASE POLICY TO GIVE CLEAR DIRECTION FOR DEVELOPING LEASE AGREEMENTS. WE SUGGEST THE CITY MANAGER'S OFFICE WORK WITH THE CITY ATTORNEY'S OFFICE TO REVISE ADMINISTRATIVE REGULATION, EXCUSE ME, 6.6 TO INCLUDE GUIDANCE FOR WHEN TO LEASE AND LICENSE CITY-OWNED PROPERTY. ESTABLISHING BELOW MARKET RATE RENT AGREEMENTS AND ESTABLISHING RESPONSIBILITY FOR UTILITY AND MAINTENANCE COSTS. WE ALSO SUGGEST THAT A.R.6.6 IS LINKED IN CONTRACTS ONLINE ONCE IT HAS BEEN SUBMITTED. SO ONTO OUR THIRD FINDING. EXCUSE ME. OUR THIRD FINDING IS THAT THERE'S NO COMPLETE CENTRAL INVENTORY OF LEASES. WE FOUND THAT THERE IS STILL NO CENTRAL INVENTORY CONTAINING ALL LEASES AND

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LICENSES. THE MASTER LIST WE REVIEWED IN EXCEL FORMAT WAS MISSING THE FOLLOWING. LEASE AGREEMENTS, INCLUDING SOME LEASES MANAGED BY HHCS. AND OF THE AGREEMENTS LIST INCLUDED IN THE SPREADSHEET THERE WERE DETAILS SUCH AS PROPERTY LOCATION, CONTRACT NUMBERS, START AND END DATES, RENT AMOUNTS, DETAILS WHETHER THE CITY OR TENANT IS RESPONSIBLE FOR PAYING UTILITIES AND MAINTENANCE COSTS. IN OUR REPORT WE HIGHLIGHT SOME OF THE CHALLENGES THAT CAN ARISE WITH NO COMPLETE LIST OF CITY LEASES. FIRST AN INCOMPLETE LIST CAN MAKE IT HARD FOR THE CITY TO ASSESS THE COST AND BENEFITS OF RENTING TO OR FROM OTHER ENTITIES. FOR EXAMPLE, THE CITY OWNED COURTHOUSE IS RENTED TO THE JUDICIAL COURT OF CALIFORNIA FOR $1 OR LESS PER YEAR. WHILE THE CITY PAYS U.S.D. $1200 PER DAY TO HOST COUNCIL MEETINGS AND OTHER CITY-SPONSORED MEETINGS. KEEPING INFORMATION LIKE RENT AMOUNT IN ONE CENTRAL LOCATION COULD ALLOW THE CITY A MORE HOLISTIC UNDERSTANDING OF THESE COSTS. SECOND, WITHOUT A COMPLETE LIST OF LEASES AND LICENSES, THE CITY COULD LOSE TRACK OF PROPERTY IT COULD USE TO PROVIDE CITY SERVICES. FOR EXAMPLE, A COMPLETE LIST MAY HAVE HELPED THE CITY KEEP TRACK OF 1890 ALCATRAZ. ACCORDING TO PUBLIC WORKS THIS IS A CITY-OWNED BUILDING WHICH THE CITY LEASED TO AN ORGANIZATION AND LOST TRACK OF IT FOR A PERIOD OF TIME BEFORE IT WANTED TO USE THE PROPERTY AGAIN. FINALLY, DETAILS LIKE START AND END DATES, THE CITY COULD BE MISSING OPPORTUNITIES TO ADJUST RENT AMOUNTS TO BETTER COVER COSTS OR MATCH THE MARKET RATE. THIS

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CAN OCCUR WHEN A LEASE EXTENDS BEYOND THE END DATE WITHOUT BEING RENEWED AND GO INTO THIS HOLDOVER WHICH MEANS THAT IT CONTINUES ON A MONTH-TO-MONTH BASIS UNTIL THEY ARE UPDATED. SO WHAT WE DID WAS WE REOPENED FOUR RECOMMENDATIONS UNDER THIS FINDING TO ENSURE THE CITY CAN TRACK IMPORTANT INFORMATION ABOUT LEASES AND LICENSES. RECOMMENDATIONS 4.1, 3 AND 4 ASKS THE CITY TO DETERMINE THE INFORMATION NEEDED FOR A CENTRAL REPOSITORY OF LEASE INFORMATION TO INCLUDE RELEVANT DETAILS ABOUT LEASE TERMS AND MAKE THE INVENTORY AVAILABLE TO CITY STAFF SO THEY CAN USE IT TO MAKE INFORMED DECISIONS. WE SUGGEST PUBLIC WORKS MEET WITH DEPARTMENTS TO DECIDE WHAT INFORMATION TO INCLUDE IN THE INVENTORY TO MAKE IT ACCESSIBLE AND SET A SCHEDULE FOR UPDATING INFORMATION AS NEEDED. RECOMMENDATION 8.2 ASKS THE CITY TO DETERMINE IF EXISTING SYSTEMS CAN BE USED FOR A LIST OF CITY LEASES. WE SUGGEST THE CITY MANAGER WORK WITH DEPARTMENTS MANAGING LEASES TO DETERMINE WHAT ADDITIONAL RESOURCES ARE NECESSARY FOR A NEW LEASE MANAGEMENT SYSTEM. IN RESPONSE, CITY MANAGEMENT AND THE DEPARTMENT OF PUBLIC WORKS AGREED WITH OUR AUDIT FINDINGS AND GUIDANCE FOR IMPLEMENTATION. THEY PROVIDED A CORRECTIVE ACTION PLAN TO ADDRESS THE REOPEN RECOMMENDATIONS AND RESPONSE TO OUR RECOMMENDATIONS TO FORMALIZE LEASE MANAGEMENT AND RESPONSIBILITIES FOR LEASE MANAGEMENT CITYWIDE THE CITY HAS COMMITTED TO DEVELOPING WRITTEN DIRECTION, PUBLIC WORKS ALSO PLANS TO LEAD AN INTERDEPARTMENTAL TEAM THROUGH

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THE PROCESS OF DEFINING ALL RELEVANT INFORMATION NEEDED AND OVERSEE THE IMPLEMENTATION OF THE LEASE TRACKING TOOL. ADDITIONALLY, PUBLIC WORKS WILL WORK WITH THE CITY ATTORNEY'S OFFICE TO CREATE A TEMPLATE THAT WILL BECOME A MANDATORY PART OF ALL FUTURE LEASES AND LICENSE AGREEMENTS INCLUDING THE DATA NEEDED FOR THE INVENTORY. WE UNDERSTAND THAT IMPLEMENTING SOME RECOMMENDATIONS MAY DEPEND ON ADDITIONAL RESOURCES. BUT WE WANT TO STRESS THE IMPORTANCE OF ENSURING THAT THE MOST IMPORTANT PART IS TO START WITH MAINTAINING A COMPLETE CENTRAL LIST OF LEASES AND LICENSES. FOLLOWING THROUGH ON THESE PLANS WILL STRENGTHEN THE CITY'S ABILITY TO EFFECTIVELY OVERSEE ITS LEASES AND LICENSES. AND FINALLY, I WANT TO EXTEND GRATITUDE TOWARD THE DEPARTMENT OF PUBLIC WORKS AND CITY MANAGER'S OFFICE FOR THEIR COOPERATION WITH THIS FOLLOW-UP REPORT. EXCUSE ME. WE ALSO WORKED WITH THE CITY ATTORNEY'S OFFICE AND THE DEPARTMENT OF PARKS, RECREATION AND WATERFRONT ON THIS PROJECT AND WOULD LIKE TO THANK THEM AS WELL. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU SO MUCH, AUDITOR. I REALLY APPRECIATE YOU BEING HERE, DESPITE BEING, I CAN TELL STILL QUITE SICK. I WANT TO GIVE COUNCIL AN OPPORTUNITY TO ASK ANY CLARIFYING QUESTIONS BEFORE MOVING ONTO PUBLIC COMMENT. DOES ANYBODY HAVE ANY QUESTIONS OR? OKAY. DID YOU HAVE A QUESTION, COUNCILMEMBER? OKAY. IN THAT CASE, ACTUALLY, I SAW COUNCILMEMBER BLACKABY AND I WILL MOVE IT OVER TO COUNCILMEMBER TREGUB.

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>> B. BLACKABY: THANK YOU, MAYOR. AUDITOR WONG, I KNOW YOU HAD CHALLENGES ASSEMBLING THE DATA ON THE LEASES BECAUSE IT WAS INCOMPLETE DATA. IS THERE ANY ESTIMATE OF THE TOTAL VALUE OF LEASES? I'M CURIOUS ABOUT THE MAGNITUDE OF THE DOLLARS. OBVIOUSLY, IT WOULD GIVE US A SENSE IF WE OPTIMIZE THAT PROCESS IS THERE AN OPPORTUNITY TO IMPROVE THE ECONOMICS?

>> SORRY ABOUT THAT. YEAH, THAT'S A REALLY GOOD QUESTION. YOU KNOW, BECAUSE THE SPREADSHEET THAT WE LOOKED AT AND RECEIVED IN RESPONSE TO OUR REQUEST FOR THE CENTRAL LIST OF LEASES WAS MISSING MUCH INFORMATION, WE WERE REALLY LIMITED IN OUR ABILITY TO CONDUCT ANY KIND OF FINANCIAL ANALYSIS. THERE WERE FIELDS FOR MONTHLY AND ANNUAL RENT AMOUNTS AND THEY WERE ALMOST ALL MISSING FROM THE PUBLIC WORKS LEASES. AND THE FINANCIAL INFORMATION ABOUT THE HHCS LEASES WAS MISSING AS WELL. SO WE WERE UNFORTUNATELY UNABLE TO ESTIMATE ANY REVENUE AMOUNTS. I THINK THAT OUR RECOMMENDATIONS AND THE AGREEMENT FROM MANAGEMENT WITH REGARDS TO THE RECOMMENDATIONS IS TO TRACK THIS INFORMATION IN A CENTRAL REPOSITORY AND THE RECOMMENDATION TO ESTABLISH A SCHEDULE FOR UPDATING THIS INFORMATION TO MAKE SURE THAT THE LIST IS UP-TO-DATE IS GOING TO BE RILEY IMPORTANT. WE ALSO IDENTIFIED THE ADDITIONAL FIELDS THAT WOULD BE IMPORTANT IN THIS CENTRALIZED REPOSITORY, INCLUDING THE MARKET RATE VALUE FOR EACH PROPERTY AND SO THAT WE CAN, SO THAT THE CITY CAN CONDUCT THIS KIND OF ANALYSIS AND PROVIDE YOU WITH

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THAT TYPE OF INFORMATION, COUNCILMEMBER.

>> B. BLACKABY: I THINK IT WOULD ALSO HELP JUSTIFY. I THINK IN THE REPORT THERE'S A SENSE THAT MAYBE THERE'S MORE STAFFING SUPPORT NEEDED. AND I'M ALWAYS HESITANT TO, YOU KNOW, ADD MORE STAFF IN THE ABSENCE OF HAVING ECONOMIC RATIONALE BUT KNOWING THE MAGNITUDE OF WHAT'S AT STAKE MAY MAKE THAT AN EASIER DECISION IN TERMS OF HOW TO STAFF IT. THANK YOU.

>> MAYOR ISHII: COUNCILMEMBER TREGUB, YOU HAVE QUESTIONS?

>> I. TREGUB: YEAH, THANK YOU SO MUCH, MADAM AUDITOR. I THINK MY QUESTIONS ARE FOR PAUL OR STAFF. I WANT TO THANK ALL OF YOU FOR JUST, YOU KNOW, WORKING SO CLOSELY WITH THE AUDITOR TO BE RESPONSIVE TO THESE RECOMMENDATIONS AND REOPEN THEM. I WAS HOPING THAT WE COULD GET A QUICK OVERVIEW OF YOUR, YOU KNOW, THE SHORT-TERM AND LONGER-TERM IMPLEMENTATION OF HOW TO REMEDY THESE FINDINGS. AND THEN SPECIFICALLY I'M WONDERING, AND THIS IS PROBABLY ECHOING COUNCILMEMBER BLACKABY'S QUESTION, OR COMMENT. SOME CITIES HAVE A DEDICATED FTE OR MORE SPECIFIC TO MANAGING A REAL ESTATE PORTFOLIO OWNED BY THE CITY. IT SOUNDS LIKE THIS HAS BEEN A LITTLE AD HOC IN BERKELEY. MAYBE KIND OF ACROSS DIFFERENT DEPARTMENTS. AND I'M WONDERING AND BUDGETS ARE TIGHT. HAVING AN INDIVIDUAL OR INDIVIDUALS THAT ARE RESPONSIBLE FOR LEASE AGREEMENTS AND OTHER REAL ESTATE PORTFOLIO-TYPE QUESTIONS AND ISSUES.

>> I'LL DEFER TO OUR PUBLIC WORKS DIRECTOR AND PROPERTY MANAGER

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WHO ARE AT THE TABLE HERE ON THE PROCESS PART OF YOUR QUESTION. I COULD SAY, OVERTIME, AS THE AUDITOR HAS SAID THERE'S BEEN DIFFERENT ITERATIONS OF STAFF IN CHARGE OF LEASES. I DON'T KNOW THE HISTORY OF WHEN IT WAS DECENTRALIZED. I IMAGINE IT WAS A COST-CUTTING THING, CENTRALIZED STAFF, MAYBE A COUPLE PEOPLE, THERE WAS A RECESSION, SO IT WAS DECENTRALIZED AND PUSHED DOWN INTO THE DEPARTMENT. AND TO COUNCILMEMBER BLACKABY'S POINT, WE COULD HAVE A CONVERSATION WHAT IS THE TOTAL VALUE OF LEASE, WHAT MIGHT BE THE MARGIN OF VALUE HAVING ONE OR TWO FTE'S AND WHAT ARE THE COSTS SO YOU CAN BOUNCE THOSE THINGS AGAINST EACH OTHER AND THINK IN CONTEXT OF ALL THE OTHER ASKS. RIGHT BEFORE THIS WE HAD A REQUEST FOR FIRE BATTALION CHIEF AND MORE O.T. FOR FIRE, THERE'S A LOT OF COMPETING PRIORITIES. WE CAN PUT ALL THAT ON THE TABLE AND HAVE THAT CONVERSATION IN THE BUDGET PROCESS. I CAN DEFER TO GET MORE INTO THE DETAILS OF THAT.

>> THANK YOU, CITY MANAGER. TERENCE DAVIS, DIRECTOR OF PUBLIC WORKS, WITH ME IS DIONNE EARLY. WE REFER TO AS OUR REAL PROPERTY ADMINISTRATOR. I THINK THAT'S A WORKING TITLE. SO I WILL SPEAK TO THAT A LITTLE BIT IN TERMS OF THE F.T.E. WE HAVE IN PUBLIC WORKS DEDICATED. COUNCILMEMBER TO YOUR BROADER QUESTION IN TERMS OF THE WORK PLAN THAT WE HAVE PUT FORTH THAT THE AUDITOR HAS CAPTURED IN THE REPORT ESSENTIALLY IS, THERE IS SOME LOWER-HANGING FRUIT THAT IS ADMINISTRATIVE IN NATURE, COORDINATION, COMMUNICATION, SIMPLE

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STUFF THAT AS AN ORGANIZATION WE FELT THAT IN THIS CALENDAR YEAR WE COULD ACHIEVE. SO WILL SEE SOME DATES THAT MAY SEEM SLIGHTLY AGGRESSIVE, IN JUNE, JULY AND LATER IN DECEMBER. AND THAT'S REALLY AROUND CREATING THIS REPOSITORY AND THAT'S JUST A FANCY WAY TO SAY LIKE A REALLY GOOD SPREADSHEET. HAVING ALL THE INFORMATION IN ONE PLACE THAT HAS THE DETAIL. AND THEN FROM THERE WE CAN REALLY BUILD AND LOOK AT OTHER TOOLS TO DETERMINE HOW WE WANT TO GO FORWARD, WHETHER IT'S A LEASE MANAGEMENT SYSTEM. THERE'S REFERENCES TO LINKING IT TO OUR FINANCIAL SYSTEM. OBVIOUSLY, THOSE ARE MUCH LONGER-TERM OBJECTIVES. AR 6.6 THAT THE AUDITOR ALSO REFERENCED IS THE ADOPTED POLICY. I THINK 2000 -- IT GOES BACK TO 1995 WHEN IT WAS ORIGINALLY WRITTEN, MAY HAVE BEEN ADOPTED IN 1995. THERE'S ANOTHER OPPORTUNITY WORKING WITH THE CITY MANAGER TO BRING OTHER DEPARTMENTS, PARKS, REC, WATERFRONT, HHCS, FIRE, WHO ENTER INTO LEASES THROUGH THAT UPDATE OF AR 6.6, THERE'S ANOTHER OPPORTUNITY FOR US TO MEMORIALIZE POLICY. THE LAST PIECE THAT IS IN OUR SHORT-TERM PLAN AND WE HAD SOME CONVERSATIONS WITH THE CITY ATTORNEY'S OFFICE AROUND AND HAD SOME SUPPORT, AS HAS THE CITY MANAGER IS AROUND, YOU KNOW, WHAT WE REFER TO AS OUR BOILER PLATE, SO THAT'S HOW WE ENTER INTO AGREEMENTS. SO REGARDLESS WHETHER CENTRALIZED ANY CITY EMPLOYEE IS NEGOTIATING OR ENTERING INTO A CONTRACT BEFORE THOSE WOULD COME TO THE COUNCIL, IT WOULD ALL LOOK THE SAME. OBVIOUSLY, THE TERMS WOULD BE SUBJECT TO NEGOTIATION BUT THE ACTUAL

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KIND OF FRAMEWORK FOR THAT WOULD ALL BE CONSISTENT. THAT DOESN'T EXIST QUITE RIGHT NOW. WE ARE MOVING IN THAT DIRECTION. AND OUR MOST RECENT LICENSE AGREEMENTS AND LEASES HAVE KIND OF, I THINK, ILLUSTRATED THE FORMAT THAT WE WANT TO UTILIZE. THERE ARE SOME LEGACY AGREEMENTS THAT ARE IN HOLDOVER. THERE ARE, YOU KNOW, SOME OTHER AGREEMENTS THAT AS WE KIND OF UNCOVER THE DETAILS THAT GO BACK MANY, MANY YEARS WITH CERTAIN ORGANIZATIONS, WE HAVE TO KIND OF BRING THOSE AGREEMENTS FORWARD. SO THAT'S AN OPPORTUNITY. AND THAT AGAIN WILL TAKE A LITTLE BIT LONGER. BUT IN TERMS OF ACTUALLY CREATING THE TOOL, THE BOILER PLATE OR THE TEMPLATE THAT ENSURES CONSISTENCY, IT'S NOT AN EASY TASK. THERE'S SOMETHING INVOLVED AND RESOURCES FROM THE CITY ATTORNEY'S OFFICE AND FROM SOME OF THE DEPARTMENTS. BUT THAT IS SOMETHING WE THINK WE CAN ACHIEVE RELATIVELY SHORT-TERM.

>> I. TREGUB: THANK YOU SO MUCH. AND THIS IS PROBABLY FOR THE CITY MANAGER. WILL THERE BE AN OPPORTUNITY TO HAVE A FUTURE TOUCH POINT JUST UPDATING US ON HOW STAFF IS WORKING THROUGH IMPLEMENTING THESE RECOMMENDATIONS, AND IF SO WHEN MIGHT THAT BE? MAYBE THIS IS A QUESTION FOR THE MAYOR AS WELL.

>> YES, COUNCILMEMBER. THEY WILL. I THINK IT'S PROBABLY CITY AUDITOR CAN HELP US WITH THAT TOO. THESE AUDITS DO COME BACK PERIODICALLY FOR UPDATES. WHEN IT COMES BACK AGAIN FOR AN UPDATE, WE WILL HAVE MORE INFORMATION ON THE STATUS OF ALL OF THE ITEMS

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THAT WE ARE WORKING ON.

>> I. TREGUB: THANK YOU. JUST WANTED TO, AGAIN, THANK STAFF. TO SEE HOW WE CAN BEST SUPPORT YOU IN IMPLEMENTING THESE IN AN ACTIONABLE AND EXPEDITIOUS WAY. I VERY MUCH THANK YOU FOR THIS EFFORT. I THANK THE CITY AUDITOR AND LOOK FORWARD TO THE NEXT UPDATE.

>> CAN I JUST QUICKLY ANSWER THE NEXT UPDATE?

>> MAYOR ISHII: THANK YOU.

>> WE HAVE OUR NEXT UPDATE, I BELIEVE, WILL BE IN FALL OF 2025. WE WANT TO MAKE SURE TO GIVE THE DEPARTMENT TIME TO IMPLEMENT SOME OF THESE RECOMMENDATIONS. AND SO, THAT'S WHEN WE ASKED FOR THEIR UPDATES TO COME BACK TO US.

>> MAYOR ISHII: THANK YOU FOR ANSWERING THE QUESTION. I KNOW THAT COUNCILMEMBER BARTLETT HAS A QUESTION OR MAYBE A FEW.

>> B. BARTLETT: THANK YOU, MADAM MAYOR. THANK YOU, AUDITOR WONG FOR ANOTHER GROUNDBREAKING EXAMINATION OF OUR CITY PROCESSES. AND I WANT TO THANK THE TEAM FOR BEING THERE. WE HAVE ACTUALLY GONE THROUGH SOME LEASE WORK TOGETHER AS A TEAM AND I'VE SEEN IT UP CLOSE. I CAN TELL YOU THE CITY IS WORKING HARD TO GET IT RIGHT. AND AS THE CITY MANAGER KNOWS, FROM OUR DISCUSSIONS AS WELL, WE HAVE DECADES AND DECADES OF LEGACY PAPER SYSTEMS THAT ARE HARD TO GET OUR HANDS AROUND. IT'S PROVEN VERY COSTLY AND DIFFICULT TO GO BACK AND REORGANIZE THINGS AND DIGITIZE THEM. WE MADE THE NEW

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WEBSITE A YEAR OR TWO AGO, WE LOST THE BEAUTIFUL ITEMS THIS COUNCIL HAS PRODUCED THROUGH THE YEARS. IT'S VERY SAD. SO I WILL SAY, WE HAVE A $13 MILLION DEFICIT THIS YEAR, FIRST OF ITS KIND DEFICIT. NOT ONE OF OUR USUAL INFRASTRUCTURE DEFICITS, THIS IS A NEW OPERATING BUDGET DEFICIT. $13 MILLION DOLLARS. SOME OF THE BUDGET HOGS ON THIS COUNCIL, COUNCILMEMBER KESARWANI AND TAPLIN, YES, I DO, BEAR WITH ME HERE. THIS DEFICIT WILL CONTINUE TO GROW AS OUR SCALE OR STRUCTURAL COSTS INCREASE. I THINK, YOU KNOW, ILLINOIS HAD AN OFFICE OF ASSET MAXIMIZATION BACK IN THE DAY WHEN THEY FACED SIMILAR DEFICIT CRUSHING PRESSURE. IT TOOK THESE FACILITIES AND THESE ASSETS AND REALLY MONETIZED THEM. SO I'M THINKING ABOUT IN THE EXAMPLE, AUDITOR WONG MENTIONED THE COURTHOUSE THAT WE ARE LEASING TO THE COUNTY FOR $1. IF THAT'S THE MARKET RATE WE ARE HERE PAYING THE SCHOOL DISTRICT HOW MUCH IS THAT $1200 A DAY? SO KIND OF GETTING INTO RATIONALIZING OUR ASSETS AND MAKING THEM WORK FOR US, I THINK, IS JOB ONE THIS YEAR. THANK YOU.

>> MAYOR ISHII: THANK YOU. ACTUALLY, CITY MANAGER, IF I COULD JUST ASK YOU TO ADDRESS THAT $1. I KNOW THAT'S SOMETHING THAT'S BEEN BROUGHT UP MULTIPLE TIMES. I KNOW A LITTLE BACK STORY BUT IF YOU COULD SHARE THAT.

>> CITY MANAGER: YEAH, AND IT MAY BE REAL PROPERTY MANAGER EARLY COULD TALK TO THIS, MY UNDERSTANDING IS THAT DATES BACK TO THE 50'S, WHEN IT WAS CREATED THERE WAS A VERY LOW $1 YEAR COST TO IT

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BECAUSE IT WAS, THE CITY OWNED THE LAND BUT THE COURTS BUILT THE BUILDING. IS THAT RIGHT, DIONNE? IT SEEMS LIKE THE DEAL WE WILL LEASE $1 A YEAR FOR A LONG TIME BUT YOU HAVE TO BUILD THE BUILDINGS AND AFTER THAT VERY LONG LEASE PERIOD THE CITY WILL TAKE POSSESSION. WHO KNOWS BACK IN THE 50'S THAT MAYBE SEEMED LIKE A GOOD DEAL AND WE ARE STUCK WITH THE LONG-TERM $1 A YEAR DEAL.

>> MAYOR ISHII: THANK YOU. APPRECIATE THAT. ARE THERE OTHER QUESTIONS FROM COUNCIL? OKAY, I WOULD LIKE TO OPEN PUBLIC COMMENT, IF FOLKS HAVE ANY COMMENTS ON THIS MATTER? ANYONE ONLINE?

>> CITY CLERK: WE DO HAVE THREE COMMENTERS. THIS IS PUBLIC COMMENT ON THE AUDITOR'S REPORT REGARDING THE LEASE AUDIT. SO THAT'S THE PUBLIC COMMENT AT THIS TIME. THERE IS TWO PUBLIC COMMENTERS NOW. THE FIRST ONE IS A PHONE NUMBER ENDING IN 211. PRESS *6 TO UNMUTE.

>> HELLO. NOTHING WORSE THAN OUR EXAMPLE, FOUR YEARS AGO THERE WERE SEVEN EMPTY SPACES AT CHANNING DURANT MALL, OFFER TO PAY ONE YEAR IN ADVANCE TO GIVE ME APPROVED LEASE. ACTING CITY MANAGER APPROVED THE LEASE. THIS WOMAN, I'M NOT GOING TO MENTION HER NAME. BY THE WAY, SOME OF THESE PEOPLE WORK FOR MEGA LANDLORDS IN TELEGRAPH AVENUE LIKE DAVID DRUIC AND THIS IS WHERE THE CORRUPTION CAME FROM ONCE KATE HARRISON RESIGNED. THEY ARE OUT OF BUSINESS, NOBODY LEFT. THEY ARE AWFUL PRICES AND HORRIBLE SERVICE. OTHER SUBJECT, SHOULD BE FIRED, DON'T TREAT THEM, THEY ARE NOT FOR THE CITY OF BERKELEY. SEVEN PLACES RENTED FOUR YEARS AGO. I CARE ABOUT

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BERKELEY, I'VE BEEN HERE 60 YEARS, MY BUSINESS CREATED -- WE PAID A LOT OF TAXES.

>> CITY CLERK: THANK YOU. ALSO SPEAKER ON ZOOM IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> YEAH, SO I DIDN'T HEAR THE REPORT, I WAS IN TRANSIT LEAVING YOUR CHAMBERS TO GO HOME. BUT $1, THAT'S INTERESTING. TO ALAMEDA COUNTY FOR A BUILDING. THAT SEEMS LIKE THE KIND OF DEAL YOU GIVE TO THE OTHER ARTISTS AT LIVE OAK PARK. I DON'T KNOW. IT JUST DOESN'T SEEM LIKE THAT'S A GOOD THING TO DO. YOU STILL HAVE TIME TO PASS A RESOLUTION TO FREE PALESTINE FROM THE RIVER TO THE SEA. THANKS FOR WEARING YOUR KAFFIYEH AGAIN, COUNCILMEMBER. I DON'T KNOW IF MY COMMENT HAD ANYTHING TO DO WITH THAT. ALSO FREE PALESTINE, FREE PALESTINE. PEOPLE ARE STILL GETTING MURDERED. THE CEASE FIRE IS REALLY IN JEOPARDY, NOT THAT THERE EVER WAS ONE. BECAUSE THEY ARE STILL BOMBING AND KILLING -- [OFF MIC]

>> CITY CLERK: THAT CONCLUDES THE PUBLIC COMMENTERS ON ZOOM.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TAPLIN HAS A COMMENT?

>> T. TAPLIN: THANK YOU, I WISH TO SPEAK MADAM AUDITOR AND HER TEAM AND PUBLIC WORKS. I WANT TO HIGHLIGHT FOR THE PUBLIC NONE OF US ON THE DAIS WERE HERE WHEN THE 2009 LEASES WERE ADOPTED NOR THESE LEASES. IT COULD BE EASY TO OVERLOOK THE MUNDANE NUTS AND BOLTS, THIS UNDERSCORES HAVING CLEAR PRIORITIES ON THE STRATEGIC PLAN GOALS. WE HAVE A NEW CITY MANAGER, NEW PUBLIC WORKS DIRECTOR

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AND WE HAVE THE OPPORTUNITY TO COURSE CORRECT. I LOOK FORWARD TO WORKING WITH MY COLLEAGUES AND CITY MANAGER TO ENSURE STAFF HAS THE RESOURCES FOR THE REPORT'S RECOMMENDATION AND WITH THAT I MOVE ADOPTION OF THE RECOMMENDATIONS.

>> SECOND.

>> MAYOR ISHII: OKAY. ANYONE OPPOSED? I WILL HAVE US LISTED ALL AS AYES THEN. THANK YOU SO MUCH. THANK YOU TO OUR CITY AUDITOR AND ALSO TO STAFF FOR BEING HERE. APPRECIATE IT. ALL RIGHT, WE ARE GOING TO MOVE ONTO ITEM #9, WHICH IS THE PROPOSED AMENDMENTS TO THE BUILDING EMISSIONS SAVING ORDINANCE OR BESO. WE WILL START WITH A PRESENTATION FROM STAFF. ALTHOUGH I KNOW YOU NEED TO GET SET UP, SO. READY? OKAY.

>> IS IT ON NOW? THERE WE ARE. THANK YOU AND GOOD EVENING, MAYOR, AND COUNCILMEMBERS. I'M AVA PEARSON, DEPUTY DIRECTOR OF THE PLANNING DEPARTMENT, JOINED BY SARAH MOORE, OFFICE OF THE MANAGEMENT OF ENERGY AND SUSTAINABLE DEVELOPMENT AND ANA REGAN SUSTAINABILITY PROGRAMS COORDINATOR. WE ARE PLEASED TO HAVE THE OPPORTUNITY TO ADVANCE FOR YOUR CONSIDERATION AMENDMENTS TO THE BUILDING EMISSION SAVINGS ORDINANCE, ALSO KNOWN AS BESO. WORKING ON THESE AMENDMENTS HAS BEEN UNDER WAY FOR SEVERAL YEARS FOLLOWING 2020 COUNCIL DIRECTIVE. AFTER A GREAT DEAL OF RESEARCH, OUTREACH, AND ITERATION WE THINK WE HAVE LANDED ON A PROPOSAL THAT WILL ACHIEVE SIGNIFICANT RESULTS IN BOOSTING RESILIENCE AND REDUCING

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THE CARBON FOOTPRINT OF EXISTING BUILDINGS WITHOUT BEING OVERLY BURDENSOME ON BUILDING OWNERS. MUNICIPAL LEADERSHIP ON CLIMATE ACTION IS ARGUABLY MORE IMPORTANT NOW THAN IT HAS EVER BEEN BEFORE, AND THIS POLICY WOULD REPRESENT A REAL ACHIEVEMENT OF BERKELEY'S LEADERSHIP. WITH THAT, I'M GOING TO HAND THINGS OVER TO ANNAN TO START THE PRESENTATION.

>> MY NAME IS ANNAN REAGAN, I'M WITH BERKELEY'S SAVINGS ORDINANCE, BESO. I WILL START BY GOING OVER BACKGROUND AND BESO'S CURRENT REQUIREMENTS. BERKELEY HAS A HISTORY WITH TIME OF SALE REQUIREMENTS. THERE WAS RECO, IT REQUIRED HOMEOWNERS TO COMPLETE A SET OF ENERGY AND WATER EFFICIENCY MEASURES AND UPGRADES AT POINT OF SALE AND REMODEL. WE HAD RECO FOR ABOUT 30 YEARS BUT THOSE UPGRADES WEREN'T GETTING TO GREENHOUSE GAS REDUCTIONS. THEY WERE PRESCRIPTIVE AND NO FLEXIBILITY. IT WASN'T MEETING THE STANDARDS OF THE CURRENT BUILDING CODES. ZERO NOX EMITTING GAS WATER HEATER AND FURNACES, PHASING IN 2027. STARTING IN A FEW YEARS IF SOMEONE'S GAS WATER HEATER BURNS OUT THEY WOULDN'T BE ABLE TO REPLACE IT WITH A NEW ONE, THEY WOULD HAVE TO PUT IN A ZERO NOX, CURRENTLY ELECTRIC HEAT PUMPS. WE ALSO KNOW SOME HOMES MAY NOT BE READY TO ELECTRIFY THESE SYSTEMS JUST YET. WE WANT THE NEXT PHASE OF BESO TO HELP BUILDING OWNERS PREPARE FOR THE HEAT PUMPS. BERKELEY ALSO HAS STRONG CLIMATE ACTION GOALS ACHIEVING ZERO NET EMISSIONS BY 2045 AND BECOMING A FOSSIL-FUEL CITY AS SOON AS POSSIBLE. THE

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BUILDING SECTOR IS THE SECOND LARGEST SOURCE OF EMISSIONS. WITHIN THAT SEKTD SECTOR SMALL BUILDINGS ACCOUNT FOR A THIRD OF THOSE EMISSIONS. IN 2021 BERKELEY CITY COUNCIL ADOPTED A STRATEGY WITH THE COMMUNITY AND IDENTIFIED TIME OF SALE UPGRADE POLICY AS ONE OF THE FOUR STRATEGIES TO DECARBONIZE OUR EXISTING BUILDINGS. AND THE BUILDING EMISSIONS SAVINGS ORDINANCE ALSO KNOWN AS BESO IS THE CITY'S PRIMARY POLICY FOCUSED ON REDUCING EMISSIONS FROM EXISTING BUILDINGS. IT OPERATES AS TWO PROGRAMS WITH VARYING REQUIREMENTS FOR BUILDING SIZES AND TYPES. FOR SINGLE FAMILY HOMES AND SMALL BUILDINGS BESO REQUIRES ENERGY AND ELECTRIFICATION ASSESSMENT PRIOR TO LISTING A BUILDING FOR SALE. WE SHIFTED FROM RECO WHICH REQUIRED INSTALLATION OF PRESCRIPTIVE MEASURES TO REQUIRING A COMPREHENSIVE ASSESSMENT. TO PROVIDE OWNERS AND BUYERS WITH INFORMATION HOW TO DECREASE EMISSIONS, AND DECREASE UTILITY COSTS WITH THE HOPE BUYERS WOULD VOLUNTARILY DO UPGRADES. SO FAR ONLY A SMALL NUMBER OF HOMEOWNERS HAVE TAKEN ACTION. WE NEED MANY MORE BUILDINGS TO REDUCE EMISSIONS TO MEET CLIMATE GOALS. IT WAS UPDATED WITH A VARIETY OF UPDATES INCLUDING REQUIREMENTS FOR COUNCIL'S CONSIDERATION. SO OVER THE LAST TWO YEARS WE HAVE BEEN DEVELOPING NEW UPGRADE REQUIREMENTS TO BE IMPLEMENTED AT TIME OF SALE. IF PASSED WE EXPECT IMPLEMENTATION TO START IN 2026. BEFORE WE STARTED DEVELOPING THE PROPOSAL WE CREATED SIX PRIMARY POLICY OBJECTIVES TO GUIDE THE DEVELOPMENT OF THE NEW REQUIREMENTS. A FEW KEY

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OBJECTIVES INCLUDE PROVIDING FLEXIBILITY, ENSURING A SMOOTH SALES PROCESS, PROVIDING EARLY COMPLIANCE. WE WANT OUR HOMEOWNERS TO VOLUNTARILY COMPLETE UPGRADES NOW SO THEY ARE READY FOR FUTURE SALE. AND TO INFORM THE PROPOSED REQUIREMENTS WE ASSEMBLED A TECHNICAL ADVISORY COMMITTEE TO WORK THROUGH WHAT IS FEASIBLE FOR BUILDINGS TO DO NOW AND PROVIDE INPUT ON VARIOUS COMPONENTS THIS INCLUDES, ARCHITECTS CONTRACTORS AND PEOPLE IN THE FIELD WORKING ON ELECTRIFICATION. WE HAVE ALSO DONE EXTENSIVE OUTREACH ON THE PROPOSAL, INCLUDING EXTENSIVE ENGAGEMENT THROUGH WEBINARS, DIRECT OFFICE PRESENTATIONS AND MEETINGS WITH THE BRIDGE ASSOCIATION OF REALTORS. IF UPGRADES ARE NEEDED A BUYER WOULD HAVE THREE YEARS FROM THE DATE OF SALE TO COMPLETE UPGRADES. THIS CHANGE FROM TWO TO THREE YEARS WAS RECOMMENDED BY THE LAND USE COMMITTEE. I WANT TO NOTE A SELLER IS NOT REQUIRED TO COMPLETE UPGRADES AND REQUIREMENTS ONLY APPLY TO BUILDINGS BEING SOLD. IF A BUILDING IS NOT BEING SOLD IT WOULD NOT BE REQUIRED TO COMPLETE UPGRADES. EMISSION SAVINGS, THE COST AND OTHER RESILIENT METRICS. BUILDINGS NEED TO ACHIEVE MINIMUM NUMBER OF CREDITS BY COMPLETING UPGRADES. BY HAVING THIS FULL LIST OF MEASURES HOMEOWNERS CAN CHOOSE FROM WE CAN ACCOMMODATE THE RANGE OF BUILDING CONDITIONS AS WELL AS RANGE OF BUYERS INTEREST, IT ALLOWS OWNERS TO PRIORITIZE WHICH UPGRADES TO COMPLETE IN THEIR HOME FIRST. HERE IS THE LIST OF POTENTIAL MEASURES AND CREDITS. WE DEVELOPED THIS LIST WITH THE TECHNICAL

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ADVISORY COMMITTEE, FULL COMPLIANCE WOULD BE SET AROUND THE BIGGEST EMISSION SAVINGS AND RESILIENCE MEASURES SUCH AS HEAT PUMP SYSTEM, REPLACING KNOB AND TUBE. WE WILL ADD MORE MEASURES AS MORE TECHNOLOGIES BECOME AVAILABLE. I KNOW THIS IS A LOT OF MEASURES ON THE SCREEN, I WILL WALK THROUGH SOME COMPLIANCE COSTS. THE SIMPLEST AND CHEAPEST IS TO INSTALL A HEAT PUMP WATER HEATER. THE AVERAGE COST IN ALAMEDA COUNTY RANGES BETWEEN $7,000-$8,000, THERE ARE REBATES INCLUDING A $2,000 TAX CREDIT AVAILABLE AND INCENTIVES THROUGH TECH CLEAN CALIFORNIA THAT BRINGS THE COST BELOW $5,000. THESE COSTS ARE BASED ON PERMANENT INSTALLED WATER HEAT PUMP INSTALLATIONS IN ALAMEDA COUNTY PROVIDED THROUGH THE PROGRAM FROM 2020-2024 AND TECH CLEAN CALIFORNIA PROGRAM WHOSE DATA WAS PROVIDED JULY 2021-NOVEMBER 2024, RECENT INSTALLATION DATA. ADDITIONALLY THERE ARE ALSO NEWER 120 VOLT MODELS THAT ALLOW YOU TO PLUG IN A WATER HEATER TO A STANDARD OUTLET, THIS ALLOWS YOU TO BYPASS ADDITIONAL PANEL UPGRADES OR ELECTRICAL PANEL SERVICE UPGRADES. ANOTHER IS TO COMPLETE ENVELOPE UPGRADES, THEY MAY HAVE A LEAKY HOME THEY WANT TO IMPROVE FOR INCREASED COMFORT AND DECREASE COSTS. THEY MAY CHOOSE ATTIC INSULATION. AS MENTIONED EARLIER, STARTING IN 2027, HOMEOWNERS WOULD NOT BE ALLOWED TO INSTALL NOX, WITH AIR DISTRICT NEW APPLIANCE STANDARDS. WE KNOW SOME HOMES AREN'T READY FOR HVAC SYSTEMS JUST YET. A HOMEOWNER COULD USE THIS TIME TO UPGRADE ELECTRICAL AND INSTALL OUTLETS SO THE SEAMLESS TRANSITION

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TO HEAT PUMP WHEN THE TIME COMES. BERKELEY 2.11.25 AMFA [9-10:50]

>> SO THE SEAMLESS TRANSITION FOR A HEAT PUMP WHEN THE TIME COMES. THE PROPOSED FLEXIBLE STANDARD CARRIES MANY BENEFITS TO THE HOMEOWNER AND IN ADDITION TO HELPING US ACHIEVE CLIMATE ACTION GOALS TO BECOME NET ZERO. SUCH AS INSULATION OR HVAC WILL IMPROVE THE COMFORT AND INDOOR AIR QUALITY AND PROTECT RESIDENTS FROM EXTREME HEAT AND WILDFIRE SMOKE EVENTS. MANY MEASURES INCREASE SAFETY BY ELIMINATING THE NEED FOR COMBUST OF GAS SOME UPGRADES WITH SOLAR AND STORAGE CAN ALSO REDUCE UTILITY BILLS. PART OF THE PROPOSAL IS TO UTILIZE THE ESCROW DEPOSIT PROCESS IT IS USED TO IMPLEMENT THE PROGRAM AND THAT'S KNOWN TO THE REAL ESTATE COMMUNITY THIS WAY THE UPGRADES ARE BUDGETED AND THE ESCROW DEPOSIT IS AT THE MINIMUM COST OF COMPLIANCE AROUND $7000 AND THE OWNER WOULD HAVE UP TO THREE YEARS TO COMPLETE THE UPGRADES AND THEN THAT ESCROW DEPOSIT IS REFUNDED WITHOUT INTEREST WHEN THE PROPERTY IS COMPLIANT WITH ALSO PROVIDED A PATHWAY TO ALLOW HOMEOWNERS TO ACCESS THE ESCROW DEPOSIT EARLYWOOD IN THE PROCESS THAT WAY TO HAVE FUNDS AVAILABLE TO PAY CONTRACTORS THE GOAL IS TO HAVE ALL NEW HOMEOWNERS USE THEIR DEPOSIT TO UPGRADE THEIR HOME AND NOT HAVE IT FORFEITED. WE KNOW THERE ARE SOME CIRCUMSTANCES BEYOND HOMEOWNERS CONTROL SUCH AS UTILITY TIMELINES OR SUPPLY CHAINS THAT CAN CAUSE DELAYS SO BASED ON THE RECOMMENDATION OF THE LAND USE COMMITTEE WE HAVE ADDITIONAL EXTENSIONS TO ACCOUNT FOR THOSE

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DELAYS. IF THE UPGRADES ARE NOT COMPLETED AFTER MANY NOTICES THE DEPOSIT IS FORFEITED AND SET ASIDE IN A SEPARATE FUND USED FOR LOW INCOME EDUCATION PROGRAMS IN BERKELEY. ULTIMATELY OUR GOAL IS TO GET PEOPLE TO REDUCE BUILDING ADMISSIONS AND GAS WATER HEATING AND SPACE HEATING ARE THE BOOK SO HEAT PUMPS ARE THE EXEMPTION PATHWAY WITH THIS EXEMPTION IF THE HOME HAS AT LEAST ONE HEAT PUMP SYSTEM THAT HOME WAS NOT NEED ADDITIONAL UPGRADES WHEN THE BUILDING CELLS SO I WALK THROUGH THE SCENARIOS OF THE HOME SALE. IN THE CASE IT DOES NOT HAVE A HEAT PUMP SYSTEM THE SELLER WOULD HAVE AN ASSESSMENT AND VERIFY THE CURRENT SYSTEMS AND HAVE UPGRADES AND OPTIONS AND UPGRADES. LISTED FOR SALE THE FUNDS WOULD BE SENT THROUGH THE PROCESS AND AFTER THE SALE THEY WOULD COMPLETE THE MINIMUM NUMBER OF CREDITS TO SET ASIDE THREE YEARS TO DO SO. IS THE HOME HAS A HEAT PUMP SYSTEM THAT WOULD CONFIRM A HEAT PUMP IS INSTALLED AND THEN TO PHOTO ELECTRIFIED THE BUILDING THEN SOLD THE PROPERTY IS COMPLIANT AND NO ESCROW DEPOSIT IS NEEDED AND NO FURTHER UPGRADES NEEDED. WHEN FULLY IMPLEMENTED THE FOLLOWS --THE POLICY WILL COVER 124 UNIT BUILDINGS AND IMPLEMENT IN TWO PHASES THE FIRST PHASE WOULD INCLUDE SINGLE-FAMILY HOMES AND DUPLEXES STARTING IN 2026 THEN THE SECOND EXPANSE OR 2028 SO PREVIOUSLY CONDOMINIUMS INCLUDED BUT BASED ON THE FEEDBACK AND OTHERS WE HAVE EXCLUDED THOSE FROM THE PROPOSED REQUIREMENTS WE KNOW THAT CONDOS ARE THE CHEAPEST ENTRY TO HOMEOWNERSHIP IN BERKELEY WITH MORE

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COMPLEXITIES TO THE -- AWAY OF THE SHARED SYSTEM. FOR QUICK ANALYSIS OF IMPACT COVERING 600 SINGLE-FAMILY HOMES AND 100 DUPLEXES AND THREE- OR FOUR-UNIT BUILDINGS. AND THEN WE ARE PROPOSING ADDITIONAL EXEMPTIONS AND SUPPORT. ELECTRIC HOMES CONTINUE TO BE EXEMPT AS WELL AS REFINANCE AND PARTIAL INHERITANCE TRANSFERS AND PURCHASING HOME IN BERKELEY IS A DREAM FOR MANY NEW RESIDENTS ME HAPPEN EXEMPTION FOR FIRST-TIME HOMEBUYERS PARTICIPATING IN THE DOWN PAYMENT ASSISTANCE FOR FIRST-TIME HOME QUALIFYING. HOMES ARE EFFICIENT AND WE WANT TO GIVE CREDIT FOR ANY PAST WORK COMPLETED SO IF A HOME HAS A HIGH SCORE ON THE ASSESSMENT THEY WILL RECEIVE CREDIT TOWARD MEETING THE MINIMUM REQUIREMENTS AND THIS IS A BIG CHANGE SO WE WILL CONTINUE TO DO SIGNIFICANT OUTREACH AND ENTER -- -- EDUCATION TO THE REAL ESTATE COMMUNITY. HE WILL BE CREATING COMPETENCE OF GUYS TO MAKE SURE EVERYTHING IS AS CLEAR AS POSSIBLE. TO END, WANT TO MENTION AS WE CONTINUE TO BURN FOSSIL FUELS WE WILL CONTINUE TO EXPERIENCE CLIMACTIC EVENTS. MANY OF WHICH WE HAVE SEEN THE LAST FEW YEARS SUCH AS HAZARDOUS AIR QUALITY THESE EVENTS HAVE SHOWN US HOW RESILIENT OUR HOMES NEED TO BE WE NEED TO ADAPT AND REDUCE EMISSIONS. WE KNOW THIS PROPOSAL CARRIES A COST TO NEW HOMEOWNERS BUT THOSE COST WILL HELP PREPARE HOMES FOR THE FUTURE WHILE DECREASING EMISSIONS AND TO BETTER RESILIENCE. WITH THAT I WILL PASS IT BACK IN.

>> WE WILL CONCLUDE THE PRESENTATION WITH THREE POINTS AT ADDRESS

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FEEDBACK WE HAVE RECEIVED SINCE PUBLISHED. FIRST WE HAVE RECEIVED A NUMBER OF INCREASE ABOUT THE ACTUAL COST OF COMPLIANCE. WE HAVE SEEN ESTIMATE CIRCULATING BETWEEN 15 THROUGH $30000 BUT WE WANT TO CLARIFY THOSE RANGES WERE DASH REFLECT TO FULLY ELECTRIFY A HOME AND REPLACE ALL APPLIANCES. IT DOES NOT REQUIRE FALL ELECTRIFICATION IT DOES NOT REQUIRE REPLACEMENT OF ALL APPLIANCE. THERE ARE OPTIONS THAT HOMEOWNERS CAN SELECT FROM TO ACHIEVE COMPLIANCE AND WE HAVE ESTIMATED THE MINIMUM COST OF COMPLIANCE TO BE A PART OF $7000 FOR REBATES AND INCENTIVES SO THE SECOND POINT IS THAT WE HAVE RECEIVED QUESTIONS ABOUT THE POLICY REQUIRES ZERO OMISSION APPLIANCES BEGINNING 2027 AND IF THOSE RULES MAKE THE REQUIREMENTS UNNECESSARY. THEY DO NOT. THEY TAKE EFFECT AT THE TIME OF REPLACEMENT WHERE BE SO IS AT POINT-OF-SALE. THIS WILL ACTUALLY HELP BUILDING OWNERS PREPARE FOR COMPLIANCE IN THE FUTURE GIVING THREE YEARS TO PLAN AHEAD, SHOP AROUND AND MAKE IMPROVEMENTS SO THEY ARE IN LESS OF A BIND IF AND WHEN THE WATER HEATER FAILS AND NEEDS IMMEDIATE REPLACEMENT. ALSO THE ESCROW PROGRAM IS INTENDED TO CREATE A REVOLVING SLUSH FUND FOR THE CITY TO USE TOWARD BUDGET SHORTFALLS PERK I WANT TO ADDRESS THIS HEAD ON BECAUSE THIS MESSAGE COULD NOT BE FURTHER FROM THE TRUTH. THE ORDINANCE CLEARLY STATES ESCROW FUNDS WILL BE DEPOSITED INTO A CITY FUND THAT CAN ONLY BE USED FOR LOCAL LOW INCOME BUILDING UPGRADE PROGRAMS THE GOAL IS FOR ESCROWED FUNDS TO BE USED BY

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PROPERTY OWNERS ON IMPROVEMENTS TO THEIR OWN HOMES. HOWEVER IF PROPERTY OWNERS OPT TO NOT USE THE FUNDS MONIES HAVE TO BE DIRECTED TO LOW INCOME ELECTRIFICATION RETROFIT PROGRAMS IN BERKELEY IN THE CODE. SO WITH THAT I WILL CONCLUDE OUR PRESENTATION AND AVAILABLE FOR QUESTIONS.

>> THANK YOU SO MUCH I WANT TO THANK YOU BOTH FOR YOUR PRESENTATION AT 9:00 O'CLOCK AT NIGHT AND THEN ALSO TO SAY THANK YOU FOR ALL THE WORK YOU DID TO GET US HERE. I WILL TAKE ANY CLARIFYING QUESTIONS FROM COUNCIL CALLINGS. ON DISH COLLEAGUES.

>> THANK YOU FOR THAT THOUGHTFUL PRESENTATION AND YEARS OF WORK TO HAVE A CREATIVE STRATEGY WITH GREENHOUSE GAS EMISSIONS FROM I'M SO EXCITED TO SEE THIS COME TO COUNSEL HAVE BEEN SO THANKFUL TO WORK ALONGSIDE COMMISSIONERS WITH THE LAND USE COMMITTEE MEMBERS TO COME TO THIS VERSION AND I HAD A GREAT MEETING WITH STAFF LAST WEEK SO I AM FOCUSED MOSTLY ON THE SUPPLEMENTAL MATERIAL IN THE SUPPLEMENTAL FIRST.

>> BETWEEN THE BUYER AND SELLER QUICKLY IF THE SELLER DOES SOME WORK BUT NOT ALL WORK TO REACH THE SIX.THRESHOLD FOR EXEMPTION IS THAT A COMBINATION BUYER AND SELLER POINTS TO REACH THE SIX? THAT WAS NOT CLEAR WITH THE IMPLEMENTATION.

>> YES WORK DONE WITHIN FIVE YEARS PREVIOUSLY WOULD COUNT. THEY HAVE TWO POINTS IN THE FIVE YEARS THAT WOULD COUNT.

>> BLACKABY: UNINTERESTED TO MAKE SURE THERE ARE INCENTIVES FOR

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THE SELLER TO PARTICIPATE IN THE BUYER CAN LEVERAGE THE FACT THAT WORK HAS BEEN DONE FOR WHAT THEY'RE EXPECTED TO DO IF THE SELLER HAS ALREADY DONE SOME.

>> IN QUESTION. THANK YOU. COUNCILMEMBER WOULD YOU LIKE TO INTRODUCE YOUR SUPPLEMENTAL?

>> YES JUST FOR TRANSPARENCY I'M GOING TO SHARE MY SCREEN BECAUSE IN ADDITION TO WHAT WAS POSTED I HAVE BEEN IN CONSULTATION WITH THE CITY ATTORNEY'S OFFICE AND HAVE SOME ADDITIONAL TWEAKS TO THE PUBLIC REPORTS. I WANT EVERYONE TO SEE IT CLEARLY AND I WILL WALK EVERYONE THROUGH THAT. SO THIS WILL SHOW UP ON OUR COMPUTERS AND IT SHOULD BE VISIBLE TO THE PUBLIC AND I WILL MAKE IT A LITTLE BIGGER. FIRST THANK YOU TO THE STAFF SO MUCH FOR ALL OF YOUR WORK. I THINK THE WORK BEGAN IN 2020? YOU HAD A VERSION OF THIS FOR DECADES. I APPRECIATE THE URGENCY OF WANTING TO DO THIS AND THIS REPORT HAS MINOR REVISIONS TO ADDRESS A POLICY CONCERN AROUND FIRST-TIME HOMEBUYERS AND WANTING TO BE SENSITIVE TO THE AMOUNT OF FUNDS THEY HAVE TO BRING TO A SALE IN TERMS OF THE DOWN PAYMENT CLOSING AND ESCROW COSTS. IN LIGHT OF THAT CONCERN FOR FIRST-TIME HOMEBUYERS TRYING DESPERATELY TO BUY INTO OUR COMMUNITY TO OUR COUNCILMEMBERS THEY HAD PUT FORWARD THE SUPPLEMENTAL AND WE ARE PROPOSING TO THINGS AND I AM REFERENCING THE EDITED VERSION ON SCREEN. ONE IS TO REDUCE THE ESCROW DEPOSIT SLIGHTLY THE STAFF REPORT TALKS ABOUT 7000 WE ARE SUGGESTING 5000 AND PUTTING INTO

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THE ORDINANCE. THE REASON AS WE EXPLAINED BELOW IT IS OUR UNDERSTANDING THAT WITH THE REBATES AND TAX CREDITS CURRENTLY EXIST, THE REPLACEMENT OF THE WATER HEATER WITH A HEAT PUMP WOULD BE UNDER 5000. WE WANT THE DEPOSIT TO REFLECT THE ACTUAL COST AS WE UNDERSTAND IT. THE OTHER PROPOSAL WE ARE NOW SEEKING TO REFER TO THE CITY ATTORNEY'S OFFICE IS TO SPLIT THE ESCROW DEPOSIT EVENLY BETWEEN THE BUYER AND SELLER SO THAT EACH PARTY IS CONTRIBUTING 2500 TO THE TOTAL ESCROW DEPOSIT IN THE EVENT THE WORK HAD NOT ALREADY BEEN COMPLETED PRIOR TO SALE THE REASON IS TO REDUCE THE FINANCIAL BURDEN ON THAT FIRST TIME HOMEBUYER AND I'M THINKING ABOUT A NURSE AND A FIREFIGHTER OR TEACHER OR SOMEBODY WHO HAS REALLY SAVED FOR YEARS TO TRY TO BUY INTO OUR COMMUNITY. THAT IS WHO I WAS THINKING ABOUT WITH THIS. WE WILL REFER THAT CONCEPT TO THE CITY ATTORNEY IF WE CHOOSE TO PASS THIS AND THINK THROUGH HOW WE MIGHT STRUCTURE THE 2500 ON THE SELLER, SUCH AS A PENALTY AND THAT WOULD RETURN TO THE COUNCIL AS SOON AS POSSIBLE. WE WILL STILL PASS THE ORDINANCE TONIGHT WITH THAT ISSUE UNDER ADVISEMENT WITH THE CITY ATTORNEY'S OFFICE AND THE HOPE IS WHEN WE DO THE SECOND READING WE WOULD HAVE THE CLARITY TO MAKE A DECISION THAT IS THE HOPE SO WE JUST NOTICED SOON AS POSSIBLE TO GET THE INFORMATION. I AM SCROLLING DOWN NOW THIS IS JUST THE ONE CHANGE OF CHANGING THE AMOUNT OF 5000. I DELETED SOME OF THE PRIOR CHANGES PROPOSED BECAUSE WE WANT TO LOOK INTO THE CONCEPT OF ASKING THE SILENT --

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-- THE SELLER TO CONTRIBUTE BEFORE WE MAKE ANY ORDINANCE CHANGES. THIS PARAGRAPH IS JUST EXPLAINING HOW COSTLY IT IS TO BUY INTO THE CITY OF BERKELEY. WE THOUGHT ABOUT THE OTHER COST INCURRED AT THE TIME OF SALE LIKE SEISMIC UPGRADES AND INCREASE THE IMPROVEMENTS THAT HAVE TO BE DONE FOR A BUYER TO OBTAIN HOMEOWNERS INSURANCE IN A FIRE ZONE SO ALL OF THAT QUICKLY ADDS UP TO TENS OF THOUSANDS OF DOLLARS. THAT IS WHY WE ARE TRYING TO BE COGNIZANT OF THE ESCROW DEPOSIT COST AND IN OUR CURRENT HIGHLY COMPETITIVE ENVIRONMENT IT IS MY UNDERSTANDING THE BUYER IN ORDER TO BE COMPETITIVE OFTEN HAS TO PUT FORWARD THE FULL 7000 IF WE DON'T MAKE THIS MODIFICATION. I ALSO FELT IT WAS IMPORTANT, THE MEDIAN HOME VALUE IS ONE.4 MILLION. MY HOPE THAT WOULD STABILIZE OR REDUCE IF WE COULD PASS A LITTLE HOUSING ORDINANCE AS WE HAVE EXPRESSED INTENTION TO DO SO. ALSO JUST LAST MONTH PASSED A REFERRAL TO LOOK AT SUBDIVISION TO MAKE SURE THAT WE COULD SUBDIVIDE THE HOMES TO HAVE THE SMALLER COTTAGES FOR SALE. THOSE ARE THE FUTURE BUYERS THAT WE HAVE IN MIND TO CONTROL THE ESCROW COST TO GIVE THOSE FOLKS A CHANCE TO COMPETE. HERE WE ARE TALKING ABOUT REQUIRING THE SELLER TO PROVIDE 2500 NOW IT'S A CONCEPT IS THAT OF A NEW REQUIREMENT WE NEED TO SEE IF THEY CAN BE STRUCTURED TO DO THAT. THAT'S WHAT I HAVE TO SAY ON THAT BUT VERY QUICKLY TO OTHER POINTS WE WANT TO INCLUDE, ONE WAS ON PANEL UPGRADES IN SOME OF THE FEEDBACK IS THAT TO DO THE HEAT PUMP WATER HEATER IN MANY CASES YOU HAVE TO UPGRADE THE

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ELECTRICAL PANEL TO HAVE THE AMPS. THAT'S NOT TRUE IN SOME CASES. SOME WOULD NOT BUT IN LIGHT OF THE BAY AREA AIR QUALITY REGULATIONS THAT WILL REQUIRE A PHASING OUT OF THEIR WATER HEATERS IN 2027 AND 2029 WE WANT TO MAKE A TWEAK TO SAY THE PANEL UPGRADES COULD GET THE FULL SIX POINTS. WE WANT TO ENCOURAGE PANEL UPGRADES AS SOON AS POSSIBLE SO THAT PEOPLE ARE READY SO THE CURRENT WATER HEATER OR FURNACE FAILS. THEY DON'T HAVE THE CAPACITY FOR WHATEVER THEY WANT OR NEED TO INSTALL IN THE EMERGENCY SITUATION THAT CAN PRESENT A TISSUE. 'S OF THE POINT SYSTEM WILL BE DEVELOPED. THAT IS OUR RECOMMENDATION. AND FINALLY BECAUSE THIS IS A NEW PROGRAM WE ARE REQUESTING THE EVALUATION REPORT THREE YEARS AFTER IMPLEMENTATION. ORIGINALLY IT WAS TO BUT WE WANT TO SAY THREE BECAUSE THEY HAVE THREE YEARS TO COMPLY. SO WE NEED SOME TIME. WE ARE HOPING AFTER THREE YEARS YOU CAN COME BACK TO US WITH A REPORT OF HOW THIS IS WORKING OUT AND WHAT ARE THE COSTS AT THE TIME. WILL GET A BETTER SENSE OF HOW THIS IS WORKING. WE ARE ASKING HOW MANY TIMES HAS THE ESCROW DEPOSIT BEEN FORFEITED? WE NEED TO MAKE SURE THEY ARE TAKING ADVANTAGE OF THE OPPORTUNITY. ALSO BEING SENSITIVE TO THE BUDGET SITUATION. WE ARE PROJECTING A DEFICIT SO ANY TYPE OF TRANSFER TAX REBATE HAS A REVENUE LOSS APPLICATION FOR THE CITY. WE ARE NOT PROPOSING A TRANSFER TAX REBATE AT THIS TIME. BUT WE ARE SAYING ONCE THE REPORT COMES BACK IT IS GOOD IF THERE ARE SOME OPTIONS FOR A FUTURE COUNCIL TO CONSIDER. NOT COMMIT BUT HAVE THE

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INFORMATION AVAILABLE. THAT DECISION WILL BE MADE IN THE FUTURE BASED ON FURTHER INFORMATION FROM THE FIRST FEW YEARS OF IMPLEMENTATION. THOSE ARE THE SUPPLEMENTAL RECOMMENDATIONS AND I'M HAPPY TO TAKE QUESTIONS AND LOOK FORWARD TO THE DISCUSSION. THANK YOU.

>> .

>> LUNAPARRA: MY QUESTIONS ARE FOR STAFF. I HAVE A COUPLE QUESTIONS ABOUT THE UNCERTAINTY OF THE CLIMATE RESILIENCY FUNDING SERVICE SURFACES THE REBATE AMOUNT SHOULD BE DECREASED TO $5000 DURING THE CURRENTLY AVAILABLE REBATES AND TAX CREDITS THAT I HAVE CONCERNS. HOW ARE THESE CURRENTLY AVAILABLE REBATES AND TAX CREDITS FINANCED AND HOW MANY WITH THE STATE AND FEDERAL GOVERNMENT?

>> IT IS A COMBINATION OF FEDERAL TAX CREDITS WHICH ARE IN EFFECT RIGHT NOW. BUT MAY NOT REMAIN. AND THEN STATE FUNDING WHICH SEEMS MORE SECURE AT THIS TIME.

>> LUNAPARRA: THAT TIES INTO MY FOLLOW-UP QUESTION DO YOU HAVE EXPECTATION OF THE FUTURE OF THE FEDERAL FUNDS?

>> WE DON'T UNFORTUNATELY. WE ARE WATCHING BUT WE DON'T KNOW.

>> LUNAPARRA: THE MEDIAN COST -- -- THE MEDIAN COST REPLACING THE READER GAS WATER HEATER REACHING UNDER 5000 BUT WE THINK IT IS IRRESPONSIBLE TO BASED ON SHAKY GROUND THE FEDERAL GOVERNMENT IS HANDING DOWN TO US. I DO HAVE SOME MORE QUESTION ON STAFF RECOMMENDATION AND PERSPECTIVE OF THE SUPPLEMENTAL CHANGES IS

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THERE ANY POTENTIAL IMPLICATIONS TO REDUCING IT AT 5000.

>> WE TRYING TO PLAY OUT IN OUR EXAMPLES IT REALLY IS INTENDED TO BE WHAT WE THINK IS THE ACCURATE ASSESSMENT OF MINIMUM COST OF COMPLIANCE BASED ON A FEW DIFFERENT AVENUES WHETHER ENVELOPE IMPROVEMENTS AND INSTALLATION AND AIR AND DUCT SEALING OR A HEAT PUMP WATER HEATER OR ELECTRIC READINESS. THOSE ARE THE THREE EXAMPLES. WE KNOW THAT COST CAN GO BEYOND THAT AND IT IS POSSIBLE IN SOME CIRCUMSTANCES IT CAN BE BELOW IN THE CASE WHERE UPGRADES HAVE OCCURRED SUCH THAT NOT AS MANY POINTS ARE NEEDED FOR COMPLIANCE FEWER UPGRADES WILL BE NEEDED AT LESS COST. WE DO EXPECT THERE IS A RANGE. BUT WE DO THINK ABOUT $7000 AT THIS POINT IN TIME IS A REASONABLE ESTIMATE OF A MINIMUM COST OF COMPLIANCE.

>> IF I CAN ADD TO THAT THE COST WAS DONE AT THE MINIMAL COMPLIANCE LEVEL AND PART OF THE CONCERN IS IF IT'S CHEAPER TO COMPLY AND NOT TO COMPLY THEN WE WILL HAVE LESS COMPLIANCE.

>> LUNAPARRA: THANK YOU. MY NEXT QUESTION IS ABOUT THE 50/50 SPLIT BETWEEN BUYER AND SELLER. I AM CURIOUS THE FEEDBACK INCORPORATED INTO THE MORE FLEXIBLE RECOMMENDATION AND WHAT ARE THE POTENTIAL IMPACTS ON THE POLICY AFTER SENT TO THE CITY ATTORNEY'S OFFICE?

>> THE CURRENT RECOMMENDATION IS TO BE NEGOTIATED BETWEEN THE BUYER AND SELLER WHICH IS A SIMILAR PROCESS SO WE MIRROR THAT PROGRAM WHAT WHY IT IS UP FOR NEGOTIATION.

>> THAT MIRRORS WHAT WE HAVE SEEN IN OTHER COMMUNITIES.

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>> LUNAPARRA: THANK YOU. I AM NOT NECESSARILY CONCERNED BUT I AM CONCERNED WHY WAS NOT RECOMMENDED IN STAFF RECOMMENDATION FOR FULL COMPLIANCE.

>> PANEL UPGRADES ARE IT IS CURRENTLY FOUR POINTS IN THE OTHER TWO POINTS TO GET TO FULL COMPLIANCE WOULD BE TO INSTALL THE OUTLETS BASICALLY WHEN DOING ELECTRICAL WORK YOU CAN DO WIRING AS WELL TO MAKE SURE YOUR HOME IS ACTUALLY READY FOR YOUR HEAT PUMPS.

>> BUT ALL AGAIN THOSE MEASURES AND CREDITS IS SOMETHING ME WORKED ON IN 2023 AND IT WOULD BE REEVALUATED IF THIS IS ADOPTED WE WANT TO MAKE SURE WE ARE LOOKING AT THE MOST RECENT INFORMATION ON COST AND OMISSIONS THERE WOULD BE A REASSESSMENT AND WE ARE GLAD TO CONSIDER ADDITIONAL MEASURES AS WELL AS GREATER CREDITS.

>> LUNAPARRA: THANK YOU SO MUCH. THOSE ARE MY QUESTIONS.

>> I HAVE QUESTIONS BUT THEY HAVE BEEN ASKED MY COLLEAGUES I HAVE ONE REMAINING QUESTION. THIS IS WITH RESPECT TO THE SUPPLEMENTAL AROUND THE 50/50 CONCEPT. WHICH ACTUALLY THAT SOUNDS LIKE A GOOD CONCEPT TO ME. I DO WANT TO ASK, IF WE WERE TO SPLIT THE DIFFERENCE BETWEEN BUYER AND SELLER, WHAT, IF ANY IS THE ENFORCEMENT MECHANISM ON THE SELLER?

>> .

>> I THINK THAT IS A QUESTION WE WILL BE RESEARCHING. IT IS A GOOD QUESTION.

>> THANK YOU FOR YOUR QUESTION. BUT I DO REMEMBER COUNCILMEMBER

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PRESS THE BUTTON EARLIER.

>> BLACKABY: TWO QUICK POINTS IN RESPONSE. I APPRECIATE BY THE WAY I DO SUPPORT THIS. I AM TRYING TO BALANCE THE MISSION OF GETTING THE WORK DONE BUT NOT TRYING TO IMPEDE THE BUYERS GETTING INTO THE MARKET. YES, TECHNICALLY SPEAKING THE ESCROW IS NEGOTIABLE BUT WE ALL KNOW THAT IN THIS MARKET IT WILL BE THE BUYER THAT PAYS. THAT'S JUST HOW THIS WILL WORK. I DON'T WANT THERE TO BE THE ILLUSION THAT YES IT IS POSSIBLE. BUT I DON'T THINK IN REALITY THAT WILL HAPPEN. THAT WILL BE A $7000 ESCROW PAYMENT BY THE BUYER. I'VE ONLY BOUGHT ONE HOUSE 20 YEARS AGO I MAY NEVER BUY ANOTHER BUT THE SCRIMPING AND SAVING TO GET TO THAT POINT ISRAEL AND EVERY EXTRA DOLLAR DOES MAKE A DIFFERENCE I KNOW THESE ARE BIG TRANSACTIONS AND 7000 DOES NOT SEEM LIKE A LOT BUT IT DOES MAKE A DIFFERENCE. SO I AM SENSITIVE TO THAT CONCERN WHAT APPEALS TO ME OF THE 50/50 ON THE BUYER AND SELLER, IF WE CAN GET THERE IT ENCOURAGES EARLY COMPLIANCE BY THE SELLER. IF YOU WAIT UNTIL THE TRANSACTION AND THEN MAKE THE BUYER PAY THE 7000 THE SELLER HAS NO INCENTIVE TO DO THE WORK. THE SELLER KNOWS THEY PAY A 2500-DOLLAR ESCROW PAYMENT AT TIME OF SALE MAY BE THAT MAY MAKE THEM THINK MAYBE I SHOULD JUST GO AHEAD AND DO THIS ANYWAY AND ENJOY THIS FOR THE NEXT FEW YEARS BEFORE I SELL IT.

>> I'M SORRY YOU HAVE A QUESTION. WE ARE TAKING QUESTIONS.

>> BLACKABY: WHAT DO YOU THINK ABOUT THAT?

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>> THAT WAS A HOPE WITH THE WAY THE ORDINANCE IS DESIGNED.

>> BLACKABY: THANK YOU FOR ENFORCING THE RULES, MAYOR.

>> HUMBERT: I DON'T HAVE ANY QUESTIONS I JUST HAVE A STATEMENT TO MAKE.

>> MAYOR ISHII: AND WANT TO GIVE AN OPPORTUNITY TO OPEN TO PUBLIC COMMENTS IF THERE ARE ANY ON THIS MATTER?

>> THANK YOU FOR STAYING SO LATE AND LISTENING TO US SO PATIENTLY I'M IN DISTRICT THREE I APPLIED ALL OF YOUR WORK CLEAR IT IS THE ASPECT THAT MIGHT ONLY HESITATION IS THAT WHY CAN'T WE DO IT FASTER? I DON'T THINK WE WILL EVER SAY WE WENT TO FAST WITH DECARBONIZATION AND CLIMATE EFFORTS EVERY LITTLE BIT HELPS TO SAVE LIVES AND DISASTER COST. I WANT TO BOAST A LITTLE BIT I LIVE IN A FOUR PLEX ELECTRIFIED LAST YEAR WE LOVE IT AND WE LOVE THE HEAT PUMPS. THE AIR QUALITY IS SO MUCH BETTER AND THE TENANTS LOVE IT SO I AM WONDERING WHY WE HAVE TO WAIT UNTIL 2028 FOR THE UNITS? I'M JUST HAPPY THIS DISCUSSION IS HAPPENING. THANK YOU. KEEP GOING.

>> I WANT TO THANK THE STAFF FOR ALL THEIR HARD WORK AND I WANT TO LIFT SPIRITS A LITTLE BIT I THINK YOU KNOW WHERE THIS IS GOING IT'S TIME TO UPGRADE THE BESO. 'S BEFORE. ♫♫ ♫♫ IT'S TIME TO UPGRADE THE BESO COUNCIL THERE IS NO NEED TO DELAY. COUNCIL, YOU CAN DO IT TODAY. BESO. OKAY THAT IS ENOUGH. THANK YOU STAFF FOR ALL OF YOUR HARD WORK.

>> MAYOR ISHII: I FEEL THAT WAS THE BEST COMMENT.

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>> I CANNOT FOLLOW THAT. THANK YOU TO COUNSEL WE HAVE BEEN WORKING WITH STAFF AND TALKING ABOUT THIS IT IS A FANTASTIC WAY TO MOVE BERKELEY TO ALL ELECTRIC BUILDINGS FOR A WAY THAT WORKS AND ALIGNS WITH THE AIR DISTRICT RULES. I AM SAM FISHMAN AND I WORK WITH'S PER WORKING WITH AIR DISTRICT RULES FOR A LONG TIME AND IT IS GREAT TO SEE ORDINANCES LIKE THIS TO HELP BRING HOMES INTO A PLACE WHERE THEY ARE READY TO ELECTRIFY ALONG WITH THE REGULATIONS ALREADY MOVING US IN THAT DIRECTION AND THE GREAT THING IS THERE IS SO MUCH HAPPENING AT THE STATE AND REGIONAL LEVEL TO MOVE US TOWARDS ALL ELECTRIC BUILDINGS THAT BERKELEY WILL FEEL THEY ARE WAY AHEAD OF WHAT IS HAPPENING AROUND THE STATE YOU ARE AHEAD OF THE GAME AND WILL BE REWARDED FOR IT AND COME OUT ON TOP. THANK YOU.

>> I AM REPRESENTING THE 100 MEMBERS OF THE ELECTRIFICATION WORKING GROUP AS PART OF THE CLIMATE ACTION COALITION AND WE HAVE BEEN WANTING ELECTRIFICATION SINCE AT LEAST 2016 WHERE WE PARTICIPATED IN BERKLEY'S FIRST ELECTRIFICATION FARES SO THOSE 100 THAT WE SUPPORT WANT YOU TO IMPLEMENT AS SOON AS POSSIBLE THIS COUNCIL SET THE CLIMATE GOALS AND THIS IS THE MECHANISM FOR YOU TO REACH THOSE CLIMATE GOALS. WITHOUT THIS BERKELEY WILL NOT GET THERE. PLEASE BESO. ♫♫

>> MAYOR ISHII: THANK YOU.

>> IT OUT IF -- -- GOOD EVENING AGAIN COUNCILMEMBERS I AM RESIDENT AND CLIMATE COMMISSIONER I SUPPORT THE PROPOSED AMENDMENTS TO THE

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BUILDING A MISSION'S ORDINANCE AND TO ENSURE RESILIENCE MEASURES THROUGH THE TRANSACTION IN 2026 AS A PROACTIVE MEASURE I HEARD THE CONCERNS OF THE COST FOR FIRST-TIME HOMEBUYERS. I DO THINK HAVING IT AS A PROACTIVE MEASURE BUILT INTO THE TIME OF SALE TRANSACTION COULD HELP SAVE THE NEW BUYER COST DOWN THE ROAD IS WHEN THE CRISIS OF WHEN THE WATER HEATER BREAKS OR THE HEATER BREAKS IT HAS TO QUICK SWITCHOVER NOW DO IT AT A HIGHER COST WITHOUT THE PREEMPTIVE PLANNING IN ADDITION TO THE SAVINGS THAT WOULD OCCUR IF THEY DO IT EARLIER AS FAR AS THE REDUCED ENERGY COST. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING WEARING COUNCILMEMBERS. THANK YOU TO THOSE WHO HAVE COMMUNICATED WITH US. BEFORE THIS MEETING WE APPRECIATED EVEN THEN A SIMPLE I CANNOT MEET FOR THIS MEETING IS APPRECIATED BUT I AM HERE ALSO TO THINK OF THE OVER 140 REALTORS AND RESIDENTS AT HAVE E-MAILED YOU IN OPPOSITION TO THIS PROPOSAL AND I AND I'M HERE TO STAND AND STRONG OPPOSITION TO THE ESCROW DEPOSIT IS AN UNNECESSARY AND UNFAIR BURDEN ON HOMEBUYERS PERSHING OWNERSHIP OUT OF REACH AT THE LAST COUNCIL MEETING THE BODY UNANIMOUSLY VOTED TO EXPAND OPPORTUNITIES FOR MIDDLE UPPER INCOME EARNERS. MULTIUNIT HOUSING IS PROBABLY OF THE MORE AFFORDABLE UNITS YOU CAN BUY AND TO FIRST RESPONDERS COULD QUALIFY FOR THE FHA LOAN OF THE CLOSING COSTS WERE LOW ENOUGH AND ACTUALLY BECOME HOMEOWNERS IN THE CITY OF BERKELEY I WANT YOU TO TAKE THAT INTO CONSIDERATION BEFORE YOU

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PASS THIS.

>> MAYOR ISHII: THANK YOU.

>> HELLO AGAIN. I AM IN DISTRICT SIX AND I AM HERE WITH MY COLLEAGUE.

>> I GIVE MY TIME TO HER.

>> I AM ALSO A REALTOR IN THE CITY OF BERKELEY. I AM HERE TO OPPOSE THIS AS WELL. AS REALTORS WE ACTIVELY ENCOURAGE HOMES TO ADDRESS CLIMATE CHANGE AND WHOLEHEARTEDLY SUPPORT POLICIES AND PROGRAMS TO HELP AND ENABLE HOMEOWNERS TO REACH THE GOAL BUT THE PROPOSED AMENDMENT WILL DO IT. $7000 IS NOT ENOUGH TO MAKE A DIFFERENCE ESPECIALLY NEW HOMEOWNERS. THE BIGGEST ISSUE IS IT DOES NOT TOUCH THE ASSOCIATED COST THAT, THESE IMPROVEMENTS. LAST YEAR I REPLACED MY FURNACE AND MY WATER HEATER AND BY THE TIME I HAD DONE THE PLUMBING AND THE PANEL AND THE DUCTWORK REQUIRED TO GET IT DONE THE TOTAL WAS $50000. IT IS NEVER JUST A SINGLE ITEMS. THESE COST WILL ONLY RISE OF INCREDIBLE DEMANDS ON THE SUPPLY CHAIN AND LABOR THAT WILL RESULT FROM THE TARIFFS, THE FIRE SEASON AND THE INEVITABLE LOSS OF THE GRANTS THAT WE WILL LOSE. ALSO THE TIMING IS UNREALISTIC TWO YEARS WITH AN EXTENSION WE WILL LIKELY HAVE TO PAY FOR. WE ARE STILL FINISHING THE WORK ON MY HOUSE BECAUSE IT TAKES A YEAR TO GET A PERMIT AND THE CITY IS SLOW. THE PERMITTING AND CLOSING OUT PROCESS IS FAR TOO LONG FOR THIS TO WORK. WE SAID IT IS ANALOGOUS BUT OTHER THAN BERKELEY YOU CAN DO IT IN SIX MONTHS

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THE COST IS ACCURATELY REFLECTING THE COST OF GETTING THE WORK DONE AND THEN ALSO RETURNS MONEY AND 48 HOURS AND YOU CAN PAY THE HOMEOWNER WITH THE MANY. THE CREDIT MATRIX IS CONFUSING.

>> MAYOR ISHII: YOU HAVE HAD TWO MINUTES.

>> WE HAVE A LIST OF ALTERNATIVES WE HAVE SENT TO YOU AND WE SUPPORT THIS BUT WE WANT THIS DONE IN A WAY THAT WORKS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HIGH. CAN YOU VOTE YES, PLEASE? IT IS MY FUTURE AND I AM SCARED ABOUT CLIMATE CHANGE. I CAN SEE THE REST OF MY TIME TO MY DAD.

>> MAYOR ISHII: THANK YOU FOR BEING HERE AND SPEAKING.

>> HELLO. I'M A REALTOR IN BERKELEY. I WAS ON THE CLIMATE ACTION COMMITTEE BEFORE WE DISBANDED. I'M HERE TO SUPPORT BESO THE POINTS I WANT TO MAKE, LET'S FACE IT FOR SOMEBODY WHO CAN AFFORD THE MEDIAN SINGLE-FAMILY HOME IN BERKELEY. THEY ARE NOT GOING TO BE MIDDLE INCOME PROBABLY THERE IS AN EXEMPTION FOR THEM AS WELL SO THAT IS A RED HERRING. THAT ASIDE THERE IS A LOT OF GREAT OPTIONS THE EASIEST ONE IS THE WATER HEATER. I JUST CHECKED HOME DEPOT HAS 38 IN STOCK AND GET A 700-DOLLAR REBATE GET 50 GALLONS OR BIGGER. I JUST DID ONE AT MY PLACE. IT WAS $6500 FOR A HYBRID NOT INCLUDING THE HYBRID THERE IS A LOT OF OPTIONS BUT TONIGHT THERE IS A BERKELEY COMPANY. THEY ARE AMAZING THE WORLD'S FIRST HYBRID INDUCTION RANGE YOU MAY SEE THEM AT DIFFERENT EVENTS. THERE ARE SO MANY OPTIONS TO INSTALL THESE THINGS THAT DON'T BLOW UP THE PANEL. YOU HAVE HEARD

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IT BEFORE BUT I AM A REALTOR AND I AM IN SUPPORT OF THIS. THANK YOU FOR ALL YOUR WORK.

>> MAYOR ISHII: THANK YOU. NO SONG? JUST KIDDING. NEXT COMMENT.

>> HELLO, I AM IN DISTRICT THREE MY NAME IS MATTHEW. I DON'T HAVE AS LONG OF A COMMENT BUT I AM HERE IN SUPPORT ELECTRIFICATION IS IMPORTANT FOR OUR FUTURE. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. OTHER COMMENTS ONLINE?

>> CURRENTLY NINE RAISED HANDS. THIS IS FOR PUBLIC COMMENT ON THE BUILDING EMISSION SAFETY AND YOU HAVE ONE MINUTE EACH AND THE FIRST SPEAKER IS A FORMER COUNCILMEMBER.

>> IT IS HARD TO SEE THE CLOCK. I WILL TAKE BACK MY NINE SECONDS. I WAS SO SURPRISED TO SEE THE PICTURE THAT THE STAFF USE THAT HAD A PICTURE OF MY SON IN THERE FROM 2018. THANK YOU FOR THAT. THIS IS IMPORTANT. I LIVE IN A FOUR PLEX. AND I HAVE TO SMELL GAS BECAUSE MY LANDLORD DECIDE YOU VERY MUCH. $7000 IS NOT THAT MUCH WHEN YOU PLAY ONE -- -- WHEN YOU PAY ONE.$4 MILLION. I AGREE. BUT YOU SHOULD GET THIS DONE IT IS IMPORTANT FOR THE ENVIRONMENT AND FREE PALESTINE AND SHAME ON YOU BARTLETT.

>> MAYOR ISHII: WE DON'T USE PROFANITY IN PUBLIC COMMENT. THAT IS AN APPROPRIATE. CHECKING ON THE WOMAN IN THE BACK. IS SHE OKAY?

>> CAP NEXT AND BREANNA MAGUIRE.

>> THANK YOU FOR THE OPPORTUNITY I CURRENTLY SERVE AS CHAIR FROM DISTRICT THREE SPEAKING AS A PERSONAL CAPACITY SPEAKING OF STRONG

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SUPPORT OF STAFF PLAN FOR THESE AMENDMENTS I HAVE BEEN ABLE TO BE PRESENT AND I AM EXCITED TO SEE THEM FINALLY COMING TO COUNSEL AND ALSO TO. SENTIMENTS THE DIFFERENT BETWEEN 5,007,000 I AM DEFTLY IN MEDIAN INCOME PERSON I CANNOT AFFORD THAT THAT $2000 DIFFERENCE SO I AM IN SUPPORT OF MAINTAINING THE $7000 ESCROW DEPOSIT AND VERY GRATEFUL AGAIN FOR THE STAFF TO COMMENT.

>> I AM ALSO A REALTOR AND WHEN YOU LOOK AT EVERYTHING ELSE THE BUYER HAS TO PICK UP THE SEWER, $6000 AND PUT ESCROW, SOME PORTION OF $7000 MAYBE IT'S ONLY 250. THEN YOU HAVE THE TRANSFER TAX ALTHOUGH WHEN ORIGINALLY PUT IN THERE WAS A COUNCILMEMBER WHO ACTUALLY THOUGHT YOU WOULD GET MORE WITH THE CARROT AND STICK AND HE INSTIGATED THE HALF A PERCENT FOR SEISMIC. WHY NOT MAKE IT A CARROT? WHY NOT GIVE PEOPLE THE INCENTIVE TO DO IT RATHER THAN THE STICK? THAT IS MY COMMENT. THANK YOU.

>> I AM HERE AS A REALTORS SPEAKING IN FAVOR OF BESO JUST TO GIVE SOME HISTORY IN 1989 NANCY SKINNER HELP BERKELEY PASS THE RICOH PROGRAM HAD MANDATORY MEASURES TO DO ENERGY UPGRADES UP AT $7000 THAT PROGRAM WENT ON THROUGH 2016 WHEN IT STOPPED SO FOR SOME REASON WE LOST OUR MANDATORY MEASURES IN THIS NEW ITERATION WILL GET THEM BACK AND MAKE IT A REALLY SUCCESSFUL PROGRAM ALSO POINTING OUT OAKLAND HAS TWO POINT-OF-SALE MITIGATIONS AND ONE IS THE SEWER AND ONE IS SIDEWALKS IS ALMOST ALWAYS GOES TO THE BUYER AND THE SIDEWALK CAN EASILY COST AND THOUSAND DOLLARS ALSO INSURANCE.

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>> PLEASE CONCLUDE.

>> THERE ARE MANDATES THAT THEY REPLACE THE KNOB AND TUBE RIGHT IN LINE WITH INSURANCE MANDATES FOR PEOPLE PUTTING HOMES IF NOT THEN THEY WILL HAVE TO TAKE IT OUT.

>> OKAY. NEXT IS DANIEL.

>> I'M A RESIDENT DISTRICT EIGHT. I WANT TO SPEAK IN SUPPORT AND ALSO HIGHLIGHT WAYS IN WHICH WE CAN GO FURTHER MAINLY REQUIRING EVERY SUBSEQUENT SALE HAS ADDITIONAL MEASURES EVEN IF THEY HAVE A HEAT PUMP AND THEN GENERALLY TO COMBINE REQUIREMENTS ARE MORE HEAVILY WEIGHTED FOR PRODUCTION BENEFITS TOO MANY OF THOSE WERE BUILT AND THEY NEED IMMEDIATE REDUCTIONS ALONG THOSE LINES ALLOWING THE SUPPLEMENTAL TO CONTINUE TO UNDERMINE WHICH IS SUBMISSIONS SHOULD BE FOLLOWING THE RECOMMENDATION OF NOT GOING FURTHER THAN WITH THE ESCROW DEPOSIT WOULD BE FORFEITED IF THE COST LESS THAN THE UPGRADE AND REDUCING THE ESCROW $5000 MAKES IT MORE LIKELY IN GENERAL I WOULD RECOMMEND SETTING ESCROW SOMETHING CLOSER TO ACTUAL COST BECAUSE THEN THEY COULD RAISE IT AND IT NEEDS TO BE PROACTIVE. THANK YOU.

>> NEXT IS EMILY ROSS.

>> GOOD EVENING COUNSEL AND COMMUNITY. I AM A LIFELONG BAY AREA RESIDENT WHO CANNOT AFFORD TO BUY A HOME IN THE PLACE THAT I LOVE. I SUPPORT THE PROPOSED AMENDMENTS AND THE STAFF REPORT AND PRESENTATION I APPRECIATE YOUR EFFORTS. I AM CAUTIOUS ABOUT THE

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SUPPLEMENTAL IN PART BECAUSE I AM A NERD THAT CANNOT REVIEW THE MATERIALS THAT THANK YOU COUNCILMEMBER FOR SHARING YOUR SCREEN AND IN PART BECAUSE I DON'T FEEL COMFORTABLE WITH THE CONTENTS. I DON'T KNOW THE FIRST TIME HOMEBUYERS ON THE WHOLE AT 7000 ESCROW DEPOSIT IS NOT THAT MAKES HOMEOWNERSHIP UNATTAINABLE I THINK THE EMPHASIS SHOULD BE ON EXEMPTIONS FOR LOW INCOME WORKING-CLASS HOMEOWNERS AS OPPOSED TO A BROAD BUCKET THAT CAPTURES ALL FIRST TIME HOMEOWNERS. SO YES IT IS TO SUPPORT YOU FOR STAFF RECOMMENDATIONS. THANK YOU.

>> UP NEXT IS HANDS.

>> .

>> HELLO, THANK YOU FOR THE OPPORTUNITY TO SPEAK TODAY. IM WORKING WITH LOCAL GOVERNMENT LEADERS AND ADVOCATES ACROSS THE US AND CANADA HOPING TO PASS POLICIES INCLUDING DECREASING CLIMATE POLLUTION TO MAKE BUILDINGS OR HEALTHY AND SAFE WE SUPPORT THE AMENDMENTS TO BESO THE FIRST OF ITS KIND POLICY THE APPROACH TO CUTTING EMISSIONS IS INNOVATIVE AND WILL HAVE TREMENDOUS IMPACT WITH CLIMATE POLLUTION AND LOCAL AIR POLLUTION. BERKELEY START OF THE MOVEMENT TO DECREASE POLLUTION AND INCREASE EFFICIENCY AND HEALTH AND THE AMENDMENT SHOW YOUR CONTINUED LEADERSHIP TO BRING REAL BENEFITS TO THE COMMUNITY AND PLANET WE HOPE TO HELP MANY OTHER LOCAL GOVERNMENTS PURSUE THIS APPROACH WE URGE PASSAGE ON THE FINAL VOTE. THANK YOU.

>> I LIVE IN DISTRICT THREE AND SPEAKING AND STRONG SUPPORT OF THE

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BESO ORDINANCE THAT CAN DRASTICALLY CHANGE A THREAT OF FIRES WITH WILDFIRE RISK AND NOT HAVING BERKELEY GO TO THE GROUND ALSO TO MAKE HOMEOWNERSHIP MORE DIFFICULT TO ACHIEVE AND THEN TO EXPAND HOMEOWNERSHIP OPPORTUNITIES I AM WELL AWARE OF THE CHALLENGES OF THE FIRST TIME HOME BUYER BUT I DON'T THINK THE CITY IS DOING UNDUE HARM I ENCOURAGE YOU TO PURSUE OTHER OPTIONS TO MAKE IT OUT OF REACH THE MAJORITY OF THE OPPOSITION IS REALTORS WHO PROFIT FROM HOME SALES WHICH IS AN EMPLOYMENT RISK SECOND I REMIND YOU THAT WHILE SOME MAY SAY THEY DO NOT AGREE THE VAST MAJORITY DID NOT CONSENT TO THE BUSINESSES BURNING DOWN BECAUSE OF A WILD FIRE STARTED IN THE HILLS. LOOKING AT AGAINST THE PROPOSED COST IT IS A MINUSCULE AND WORTHY SACRIFICE. THANK YOU FOR YOUR HARD WORK.

>> NEXT?

>> GOOD EVENING. I DO SUPPORT THIS ITEM AND WE MUST CONNECT THE DOTS. WE ARE DOING SOMETHING GOOD FOR THE ENVIRONMENT HERE IN BERKELEY AND IT IS NECESSARY THERE IS AN ECO- SIDE GOING ON IN GAZA AND PALESTINE. THE INFRASTRUCTURE OF GAZA IS DEVASTATED THE WATER TREATMENT FACILITIES AND SEWAGE SYSTEMS AND RAINWATER AND WASTE FACILITIES IS FOR SAFE DISPOSAL IS ALL GONE.

>> MAYOR ISHII: YOU HAVE A COMMENT.

>> I'M TRYING TO CONNECT THE DOTS BECAUSE IT IS IMPORTANT IT IS AS IMPORTANT TO PASS BESO AS IT IS TO DO SOMETHING ABOUT THAT ECO-SIDE AND GAZA. PLEASE ACT. THANK YOU.

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>> NEXT IS RECLAIM OUR POWER.

>> MAYOR ISHII: WHEN WE HAVE COMMENTS THAT ARE SUPPOSED TO BE ABOUT A SPECIFIC ITEM IT IS DISRESPECTFUL TO STAFF WHEN WE SPEAK ABOUT THINGS THAT ARE OFF TOPIC AND WE TRY TO MAKE THEM CONNECT. I UNDERSTAND FOLKS WHEN A CHANCE TO SPEAK ABOUT THAT BUT THERE IS TIME FOR THAT AT THE END OF THE MEETING AND WANT TO BE RESPECTFUL OF STEPS TIMES AS THEY ARE TAKING THE TIME TO BE HERE WITH US AT 10:00 O'CLOCK AT NIGHT PLEASE WHEN YOU HAVE YOUR COMMENTS PLEASE KEEP THEM FOCUSED ON THE ITEM WE ARE ADDRESSING. THANK YOU.

>> RECLAIM OUR POWER YOU CAN UNMUTE.

>> GOOD EVENING MAYOR AND COUNCIL MEMBERS AND STAFF AND COMMUNITY. I AM SPEAKING IN SUPPORT OF BESO THANK YOU FOR YOUR LEADERSHIP FOR WHAT THE COUNCIL PASSED TAKING INVESTMENTS AWAY FROM PG AND E-ALSO TOWARD THE NOT-FOR-PROFIT UTILITY AND WE ARE IN FULL SUPPORT OF BESO. WITHOUT ORDINANCE AND SUPPLEMENTALS IT IS AN EXEMPLARY MEASURE REPLICATED ACROSS CITIES ACROSS CALIFORNIA TO REDUCE CLIMATE POLLUTION. WE ARE IN SOLIDARITY WITH LOW INCOME RENTERS AND HOMEOWNERS TO HAVE DECARBONIZATION AFFORDABLY. THANK YOU STAFF AND COUNCILMEMBERS FOR CLIMATE JUSTICE. THANK YOU.

>> THAT CONCLUDES THE ONLINE PUBLIC COMMENT.

>> MAYOR ISHII: WE WILL TAKE COUNSEL COMMENTS.

>> THANK YOU. I WANT TO THANK STAFF FOR ALL OF THEIR EFFORTS. I WAS INVOLVED I THINK STARTING IN 2014 WORKING WITH STAFF IN THE

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EFFORT TO COME UP WITH THE ENFORCEABLE MECHANISM AROUND THIS. AND I WAS PLEASED WITH HOW AT EVERY STEP OF THE WAY THAT THE FACES MAY HAVE CHANGED ON THE STAFF SIDE AND ON THE COUNCIL BUT THE COMMITMENT HAS NOT TO REALLY TRY TO FIND THE APPROPRIATE BALANCE IN A TIME OF RISING HOME PRICES TO STILL PROVIDE HOMEOWNERSHIP OPPORTUNITIES AND KEEP HOMEOWNERSHIP COSTS DOWN WHILE RESPONDING TO THE EVER-GROWING CLIMATE CATASTROPHE THAT WE FACE TODAY. AND I WAS PARTICULARLY PLEASED WHEN STAFF PRESENTED THIS. AND THEN WE WERE ON THE ENERGY AND CLIMATE COMMISSION AND I WAS PLEASED TO HAVE RESPONSIVE STAFF HAS BEEN FROM FEEDBACK FROM THAT CONDITION AND FROM THE DISBANDED BERKELEY CLIMATE COALITION THAT WE USE TO WORK TOGETHER TO PROVIDE FEEDBACK AS WELL. AND I REALLY FEEL THAT THIS STRIKES THE APPROPRIATE BALANCE. I WILL NOTE I AM KEENLY SENSITIVE TO ANY UPWARD PRESSURE AS AN ASPIRING FIRST-TIME HOMEOWNER. I'M NOT SURE ON THE COUNCIL'S SALARY BECAUSE IT DID INVOLVE A PAY CUT IF I MAY QUALIFY AS A LOW-INCOME HOMEOWNER BUT MAYBE I AM IN THAT DON'T WHOLE. BUT WHAT I DO KNOW FOR A FACT TRYING TO ASSEMBLE THE FUNDS IS THIS. $7000 IS NOT GOING TO MAKE ANY SUBSTANTIVE DIFFERENCE TO ME. I WAITED RATHER PAY A COUPLE THOUSAND DOLLARS MORE TO MAKE SURE I HAVE A FUTURE HOME THAT IS MORE CLIMATE RESILIENT IN THIS TIME. I WILL ALSO NOTE AND I ALSO JUST WANT TO APPRECIATE MY FRIENDS IN THE REAL ESTATE BUSINESS AND MY CHIEF OF STAFF AND I MET WITH THEM AND WE APPRECIATE THE

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DISCUSSION. I DO THINK ALONG THE WAY STAFF HAS ADOPTED SEVERAL OF THE RECOMMENDATIONS THAT WERE MADE BY THE REALTORS. I AM PARTICULARLY SENSITIVE HAVING WORKED IN THIS SPACE IN THE PAST TWO THINGS NOT BEING DONE DUE TO THINGS OUTSIDE OF OUR CONTROL LIKE PG AND HE YOU CANNOT GO FORWARD BECAUSE WE HAVE BUILT UP ALL OF THE CAPACITY ON THE BLOCK AND YOU NEED TO PAY FOR A NEW TRANSFORMER UPGRADE. IN THAT CASE NOW THERE IS THE EXEMPTION THERE IS EXEMPTIONS FOR TIME AS WELL SHOULD ANOTHER TRADE WAR START AND THE SUPPLY CHAIN FOR EQUIPMENT TIES AND EVEN MORE THERE IS THE EXEMPTION FOR THAT. SO I REALLY THINK THIS STRIKES THE APPROPRIATE BALANCE AND I WILL MAKE A MOTION THAT I HOPE COMBINES THE BEST ALL THE DIFFERENT PROPOSALS WE WILL SEE MY COLLEAGUES MAY DISAGREE BUT I WILL THE STAFF RECOMMENDATION EXCEPT FOR THE FOLLOWING CHANGES. DIRECTING STAFF TO ASSESS THE FEASIBILITY OF THE 50/50 BUYER SELLER SPLIT PRIOR TO IMPLEMENTATION OF THE ORDINANCE. THIS WOULD ALLOW STAFF TO DO THE REST OF THE GROUNDWORK NEEDED WITH HIS ABILITY BECAUSE I DO THINK IF THERE IS A WAY TO ENFORCE IT I DO THINK IT IS A INTERESTING CONCEPT AND THEN THE BUYER ONLY HAS TO PAY THREE.FIVE K. AND THEN THEY GET IT BACK SURE THEY GET THE SIX POINTS AND THEN THE SECOND CHANGE PROPOSAL IS TO REQUEST THE EVALUATION REPORT THREE YEARS AFTER IMPLEMENTATION BUT I THINK IN GENERAL WITH ALL OF THE POLICIES WE PASS AFTER SOME PERIOD OF TIME IS SOUND POLICYMAKING. THAT'S MY MOTION.

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>> A SECOND.

>> MAYOR ISHII: CITY CLERK I WANT TO CONFIRM WE HAVE A MOTION AND A SUPPLEMENTAL AND ALSO.

>> THIS IS THE ONLY PENDING MOTION.

>> .

>> AND THEN TO CLARIFY THE MOTION SO THE 50/50 SPLIT AS PART OF THE ORDINANCE AMENDMENTS. THE IDEA IS NOT TO HOLD THINGS UP BUT FOR STAFF TO COME BACK AND THEN GIVE US ALTERNATIVES BETWEEN THE 50/50 SPLIT OR NOT WITH AN EYE TOWARDS THE FEASIBILITY OF IMPLEMENTATION UNLESS THERE IS THE ENFORCEMENT MECHANISM.

>> THE 50/50 SPLIT IS IN THE ORDINANCE AMENDMENTS?

>> MR. CITY CLERK AND THEN TO REVIEW THE LEGALITY AND ENFORCEMENT YOU DON'T HAVE THE ORDINANCE LANGUAGE TONIGHT. IF I MAY I THINK YOUR MOTION IS PASSING AS IS WITH THE REFERRAL AND THE EVALUATION REPORT.

>> CORRECT.

>> MAYOR ISHII: YOU ARE NEXT.

>> I WILL MAKE A SUBSTITUTE MOTION TO DO THE SUPPLEMENTAL IN FULL AS SHOWN ON THE SCREEN SO TO REVIEW THAT AGAIN THE ESCROW DEPOSIT OF 5000 REFERRING THE CONCEPT OF SPLITTING THE DEPOSIT SO THE SELLER WILL ABSORB 2500 AND WITH THE ENFORCEMENT OF THAT DOING THE PANEL UPGRADE AT SIX POINTS IN THE EVALUATION AFTER THREE YEARS. THAT IS MY MOTION.

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>> SECOND.

>> I WOULD LIKE TO CONTINUE THE CONVERSATION. I WANT TO RESERVE A SPOT TO SPEAK.

>> HUMBERT: THANK YOU MADAME MAYOR. I WANT TO THANK THE STAFF FOR THE MASSIVE AMOUNT OF WORK YOU HAVE DONE AND OTHER MEMBERS HAVE DONE IN THE PAST SEVERAL YEARS. YOU'VE DONE THE AN INCREDIBLE AMOUNT OF TECHNICAL RESEARCH AND COMMUNITY OUTREACH DRAFTING OF A VERY COMPLICATED MEASURE AND TAKING INPUT FROM THE LAND USE POLICY AS WELL. I SAT ON THE COMMITTEE AND I THINK THIS IS MADE THE MEASURE SIGNIFICANTLY BETTER. I APPRECIATE THE COLLABORATIVE WORK AND I WILL ASSOCIATE MYSELF WITH THE COMMENTS MADE BY COUNCILMEMBER. I SUPPORT ELECTRIFICATION OF HOUSING EMISSIONS THOSE ARE THE SOURCE OF A SIGNIFICANT PERCENTAGE OF THE CO2 WE PUMP INTO THE ATMOSPHERE. CLIMATE CHANGE IS REAL. WE KNOW THAT DESPITE THE RIDICULOUS LIES PROMULGATED BY A CURRENT PRESIDENTIAL ADMINISTRATION. AND THIS IS A GOOD THING TO DO. POINT-OF-SALE IS THE RIGHT TIME TO DO IT AND I JOIN WITH THE COUNCILMEMBER AND HER SUPPLEMENTAL AS MODIFIED ON THE DAIS THAT TWEAKS THE MEASURE IN THE WAY SHE HAS DESCRIBED AND EXPLAINED THESE ARE WELL JUSTIFIED AND I DON'T THINK THAT FRANKLY IN ANY WAY AND ARE CUT OUR COMMITMENT TO ACTION AND I APPRECIATE ALL THE HARD WORK AND ALSO THANK YOU TO THE COUNCILMEMBERS WHO BOTH HIT THE GROUND RUNNING FOR YOUR COSPONSORSHIP OF THE ITEM.

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>> O'KEEFE: AS MENTIONED I AM COSPONSORING THE SUPPLEMENTAL EXPLAINING THE RATIONALE IT SEEMS THE THREE-YEAR REPORTING REQUIREMENT AND 50/50 IS NONCONTROVERSIAL. THE ONLY REMAINING ISSUE IS 5000 VERSUS 7000. THE REASON I AM MORE COMFORTABLE WITH THE 5000 IS I AM A BIG BELIEVER IN THE THEORY OF. [INAUDIBLE] IT'S A GREAT ESSAY AND THE IDEA IS WELL-MEANING LIBERALS LIKE ALL OF US I THINK IN BERKELEY HAVE A TENDENCY TO PUT WELL-MEANING SMALL HOOPS AND FEES ON TO A PROCESS THAT INDIVIDUALLY ARE GREAT. IT IS JUST ANOTHER THING THEY HAVE TO DO OR ANOTHER LITTLE FEE FOR THIS GREAT REASON. BUT WHAT CAN HAPPEN IS ITS DEATH BY A THOUSAND CUTS THAT CAN ACTUALLY SUPPRESS A MARKET WE DON'T WANT TO SUPPRESS AND THAT IS WHAT I AM CONCERNED ABOUT. I AM MORE COMFORTABLE WITH THE LOWER AMOUNT IF IS WASN'T SO LOCAL I WOULD VOTE AGAINST IT I AM VERY SUSPICIOUS OF THIS TYPE OF LEGISLATING BUT I DO THINK THAT BESO IS A GREAT IDEA AND THE STAFF DID A GOOD JOB TO DESIGN THE EFFECTIVE PROGRAM AND THE ENFORCEMENT MECHANISM AND IT IS REASONABLE AND OF COURSE CLIMATE RESILIENCE IS THE MOST IMPORTANT ISSUE. I AM ABSOLUTELY SUPPORTIVE. I JUST WOULD LIKE TO ERROR ON THE SIDE OF MAKING IT LESS OF A BARRIER DUE TO THE HOLISTIC APPROACH I LIKE TO TAKE WHEN THINKING ABOUT THINGS LIKE THIS. T16 THANK YOU VERY MUCH I CONCUR AND I THINK I AM NOT A HOMEOWNER OR THE ENERGY EXPORT BUT SOMEBODY GREW APPEAR MY FOLKS ARE FROM HERE AND I AM A TWO-PERSON DOUBLE INCOME HOUSEHOLD WE COULD NEVER AFFORD A HOME HERE. PEOPLE

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SAY IF YOU ARE IN THE POSITION TO BUY A HOUSE HERE A COUPLE THOUSAND MAY NOT MAKE OR BREAK A DIFFERENCE BUT FOR SOMEONE LIKE ME IT DECIDES IF I LIVE HERE OR SOMEWHERE ELSE. ONE OF THE GOALS AS A CITY IS TO DEMONSTRATE THE EQUITY. IF WE WANT TO REDUCE THE NUMBER OF PEOPLE WHO LOOK LIKE ME IN THIS TOWN WE WOULD DO THAT BY DEATH OF A THOUSAND CUTS SO I WOULD BE SUPPORTING THE SUPPLEMENTAL. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS.

>> BARTLETT: THANK YOU TO THE STAFF FOR YOUR DILIGENT WORK IN CRAFTING THE JEFF BESO LEGISLATION VERY CLEVER MANEUVERING FROM THE COURT BLOCK BEFORE. BUT I DO BELIEVE THAT THE PASSAGE OF THE COST OF THE SOCIETAL GOALS BEYOND THE ORDINARY PEOPLE IS REACHING ITS APEX. THERE IS MORE PLANS TO INCREASE TOOLS ON THE BRIDGE AND THE REDUCTIVE FINANCING STRATEGIES. THEY ARE NOT FUN. SO THIS COUNCIL SPENT YEARS HONING IN ON THE BARRIERS TO HOMEOWNERSHIP AND THE SHEER DIFFICULTY OF MAKING THE DOWN PAYMENT AND THEN TO BE BROUGHT OUT. WE HAVE STRATEGIES WE TEND TO EMPLOY TO MAKE AFFORDABLE HOMEOWNERSHIP A REALITY. STEP-BY-STEP WE ARE GETTING THERE. THIS COST IS AN OBSTACLE FOR LOW INCOME PEOPLE TO BECOME HOMEOWNERS AND WE ARE ENABLING THAT. SO I DO NOT BELIEVE SPLITTING THE FEE BETWEEN THE BUYER AND SELLER, LOWERING IT TO 5000 WILL INCREASE THE GREENHOUSE GASES IN BERKELEY. BUT I DO BELIEVE IT WILL ENABLE MORE OF THE ECONOMIC EXPANSION IN THIS COMMUNITY TO

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MORE AND RICH PEOPLE WHICH IS A SINCERE GOAL OF MY OFFICE. SO I WILL BE SUPPORTING THE SUPPLEMENTAL. THANK YOU.

>> MAYOR ISHII: COUNCILMEMBER?

>> THANK YOU. I HAVE A QUESTION FOR STAFF. YOU MENTIONED SEVERAL TIMES THAT $7000 IS ROUGHLY INDEX TO THE COST OF ENFORCEMENT BY THE CITY. HOW CONFIDENT ARE YOU THAT IF WE PRICE THIS OUT BELOW $7000 THAT THE CITY WILL BE EQUIPPED GIVEN THE LIMITED RESOURCES TO ENFORCE THIS TO ENSURE THE ORDINANCE SUCCESS?

>> WE STATED WE THINK THE MINIMUM COST OF COMPLIANCE IS LIKELY ABOUT 7000 SO I THINK YOU ARE ASKING IF ESCROW WAS SET AT 5000 INSTEAD THEN THAT DIFFERENCE, ASSUMING THAT WOULD COME FROM THE HOMEOWNER AT THE TIME THEY ARE MAKING UPGRADES TO COMPLY WITH THOSE BESO REQUIREMENTS THERE IS LIKELY A RANGE OF COST WITH THE HOMEOWNER CHOOSES TO DO IT IS POSSIBLE THEY MAY BE ABLE TO COMPLY AT 5000 SO THEY WOULD SPEND WHAT THEY WOULD GET BACK WITH THE ESCROW DEPOSIT BUT IT'S ALSO POSSIBLE THEY COULD SPEND MORE THAN WHAT THEY WOULD GET BACK.

>> TREGUB: YES. I APPRECIATE ALL OF MY COLLEAGUES' COMMENTS. I KNOW THAT WE ALL WANT BESO TO SUCCEED TO THE EXTENT THERE ARE DIFFERENCES OF OPINION OF $2000 OR REALLY $1000 FOR THE BUYER, PLEASE KNOW THAT I THINK WE ARE TRYING TO GET TO THE SAME PLACE AND WE MAY JUST HAVE DIFFERENT FEELINGS ABOUT WHAT IS THE APPROPRIATE BALANCE. I WILL BE VOTING NO ON THE SUBSTITUTE MOTION

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BUT I DO APPRECIATE ALL THE THOUGHT THAT WENT INTO THIS AND I SUPPORT THE GOALS OF THE ORDINANCE.

>> BLACKABY: COMMENTS AND NO QUESTIONS. I APPRECIATE THE DISCUSSION I THINK THIS HAS BEEN AND INFORMATIVE DISCUSSION IN THE SPIRIT OF WHICH WE DID IT IS A PLEASURE TO BE A PART OF THIS DISCUSSION. THANK YOU FOR THAT. SECOND I WANT TO ASSOCIATE MYSELF WITH COUNCILMEMBER O'KEEFE AND TAPLIN ON THE POINT OF THE FEE OF THE ESCROW. I'M NOT CRAZY ENOUGH TO THINK THIS WILL CHANGE THE ULTIMATE ABILITY OF A BUYER TO BUY. BUT IT MIGHT CHANGE THEIR MIND WHETHER THEY BUY HERE. WHY NOT BUY IN KENSINGTON OR OAKLAND? IF IT IS EASIER TO BUY SOMEWHERE ELSE THEN WHY NOT? TO ME THAT IS WHY IT'S IMPORTANT TO GET THE BALANCE RIGHT. I SUPPORT THE POLICY THAT IF WE CAN DO IT IN A WAY THAT REDUCES THE BURDEN I THINK IT IS GOOD FOR US. LASTLY IN TERMS OF THE AMOUNT, THE OTHER REASON I SUPPORT THE AMOUNT EVEN IF THE 5000 DOESN'T QUITE COVER IT IS THINKING OF MY OWN EXPERIENCE, IT'S A LOT EASIER TO AFFORD THESE IN YEAR TWO AND THREE OF HOMEOWNERSHIP AND ON DAY ZERO WHEN YOU TRY TO CLOSE THE DEAL. SO EVEN IF THE TOTAL DEPOSIT AMOUNT DOESN'T COVER WHAT IS DUE, I CAN SHELL OUT MORE MONEY HERE TWO OR THREE MAYBE I GOT THE RAYS AT WORK OR I FIGURE THINGS OUT. WHATEVER BUT IT'S EASIER OVER TIME TO EASE INTO THE ADDITIONAL PAYMENT THAN FRONT AS A DEPOSIT. THAT'S THE THREE THINGS I LEAVE MY COLLEAGUES WITH.

>> MAYOR ISHII: THANK YOU AND THEN I RESERVE MY SPOT.

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>> LUNAPARRA: A COUPLE OF THINGS I WANT TO MENTION. FIRST THE ITEM PAST LAST MEMBER -- -- LAST MONTH WOULD CREATE MULTIUNIT CONDOS THAT ARE EXEMPT I HEARD IN PUBLIC COMMENT YOU HAVE TO PAY FOR THIRD YOUR EXEMPTION IF YOU NEED IT. JUST WANT TO CLARIFY AS I SAID EARLIER WHEN WE SEE FEDERAL FUNDING I AM GENUINELY CONCERNED ABOUT THE REBATE PROGRAM BEING RENDERED IMPOTENT IF IT'S THE CHEAPEST AND EASIEST AND ANDERSON MY COLLEAGUES CONCERNS. I AM HOPEFUL AND PROUD THE CITY IS TAKING MEANINGFUL STEPS TO REDUCE EMISSIONS FROM SMALLER RESIDENTIAL BUILDINGS. WE ARE AT A POINT IN TIME HE WAS THINKING ABOUT OUR PERSONAL COMPLICITY OF THE DESTRUCTION OF THE ENVIRONMENT AND THIS IS CLOSE TO MY HEART. PROTECTING THE ENVIRONMENT PROTECTING THE PLANET WILL REQUIRE SOME TRADE-OFFS WE MUST ASK THAT WE ARE WILLING TO SACRIFICE FOR THE WELL-BEING OF OUR ENVIRONMENT. EVEN IF THE FUTURE OF A MORE EQUITABLE HOUSING MARKET IS RELIANT ON A STABLE AND HEALTHY PLANET TO LIVE ON IN THE FIRST PLACE. EARLIER WE WERE WARNED OF THE HARM OF HYPER-INDIVIDUALISM AND CAN APPLY TO OUR COMMUNITY I'M THANKFUL TO STAFFING COMMUNITY TO PURSUE THIS AND I LOOK FORWARD TO VOTE AFFIRMATIVELY TONIGHT.

>> MAYOR ISHII: I WANT TO CHECK WITH MOTIONS -- -- WITH THE TWO MOTIONS? HOW WILL WE VOTE FIRST?

>> IF THE SUPPLEMENTAL OR THE SUBSTITUTE MOTION PASSES THEN WE DON'T VOTE.

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>> MAYOR ISHII: IF IT PASSES. SO BECAUSE WE ARE VOTING ON THE COUNCILMEMBERS FIRST I WILL VOTE IN SUPPORT HOWEVER I HAVE SOME POINTS I WOULD LIKE TO MAKE IT IS IMPORTANT TO ME THAT IT PASSES AND THAT WE ARE ALIGNED ON THIS BUT I DO HAVE SOME POINTS I WANT TO BRING UP THAT I THINK IS IMPORTANT TO SAY. KNOW THERE ARE CONCERNS ABOUT LOW INCOME HOME BUYERS AIMING INCREDIBLY CONCERT AS WELL WE KNOW HOW - - ARE EXPENSIVE IT IS TO LIVE IN THE COMMUNITY AND THERE ARE EXEMPTIONS. I KNOW YOU HAVE THAT ON ONE OF YOUR SLIDES AND WANT TO MAKE SURE THAT IT IS HIGHLIGHTED FOR FOLKS SO THEY KNOW IT EXISTS. FROM PERSONAL EXPERIENCE I HAVE BEEN FORTUNATE TO BEEN ABLE TO BUY A HOME IN THE LAST YEAR AND A HALF SO I AM QUITE FAMILIAR WITH WHAT IS GOING ON WITH BESO AND WHAT THE PROCESS IS TO GET THE REIMBURSEMENT. I WANT TO SAY THAT THE REALTOR THING LOCATION LOCATION IF YOU WANT TO LIVE IN BERKELEY AND YOU TRY TO LIVE HERE YOU WILL BE LOOKING FOR A PLACE TO LIVE HERE. WANT TO BRING THAT UP BECAUSE IT'S IMPORTANT TO JUST COMMENT ON THE FACT THAT MANY PEOPLE WHO ARE TRYING TO LIVE HERE ARE NOT NECESSARILY LOOKING INTO THE ORDINANCES. I DON'T SEE THIS AS A DETERRENT GENERALLY AND ALSO I WANT TO MAKE SURE IT IS CLEAR YOU CAN USE THE FUNDING AND ESCROW IF YOU HAVE THE PERMITS AND HAVE A CONTRACT FOR THE CONSTRUCTION SO THAT MEANS UNLIKE THAT I COULD NOT USE FUNDS FOR, THIS IS SOMETHING THAT PEOPLE CAN ACTUALLY USE THE FUNDS IN ESCROW TO GO TOWARDS THE WORK WHICH IS WHY I'M COMFORTABLE WITH

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THE $7000 AND ALSO I JUST WANT TO PUSH BACK BECAUSE AFTER A COUPLE OF YEARS OF HOMEOWNERSHIP YOU REALIZE THERE ARE A LOT OF PROBLEMS AND THEN YOU HAVE TO PAY A LOT OF MONEY AFTER A COUPLE OF YEARS TO PAY FOR ANY CHANGES AND UPGRADES. I'M JUST WORRIED THAT GOING FROM 7,005,000 WILL DETER PEOPLE FROM MAKING THE CHANGES. AND I WORRY THIS WILL NOT BE ENOUGH TO COVER THE COST BECAUSE AS BROUGHT UP WE HAVE SOME GREAT UNCERTAINTY WHEN IT COMES TO FEDERAL CREDITS AND ALSO WANT TO COMMENT ON THE FACT THAT 7000 WAS PICKED BECAUSE THAT IS THE MINIMUM COST OF COMPLIANCE. WANT TO CLOSE BY JUST SAYING THAT WE ALL THINK CLIMATE CHANGE IS IMPORTANT. THANK YOU ALL FOR ENGAGING IN THIS DISCUSSION. I WANT US TO BE ALIGNED AND KNOWING THAT WE ARE VOTING ON THE SUPPLEMENTAL FIRST, I WILL BE VOTING YES. KNOW WE HAVE A MOTION ON THE TABLE SO I WOULD LIKE IF I WERE CLERK COULD TAKE ROLE.

>> ON THE SUBSTITUTE MOTION. [ROLL CALL]

>> MAYOR ISHII: THANK YOU ALL SO MUCH AND THANK YOU FOR STAYING IN ALL THE WORK YOU HAVE DONE. THANK YOU I SHOULD HAVE DONE THIS EARLIER WE HAD A CLOSE SESSION I'VE BEEN ASKED TO READ COMMENTS OR REPORT BACK ON THAT. THE CITY COUNCILMAN CLOSED SESSION PURSUANT TO GOVERNMENT CODE SECTION AND PROVIDE DIRECTION TO IMPROVE A SETTLEMENT BY COMPROMISING RELEASE OF FUTURE MEDICAL CARE AS TO WORKERS COMPENSATION BER 220 AND THE CASE NUMBER 16295740 THE CITY COUNCILMAN AND CLOSED SESSION PURSUANT TO GOVERNMENT CODE SESSION

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TO PROVIDE DIRECTIONS TO OUTSIDE COUNSEL AND APPROVED A SETTLEMENT BY COMPROMISING RELEASE OF FUTURE MEDICAL CARE AS TO WORKERS COMPENSATION BER 010-0193 AND WC CASE NUMBER A DJ 371-0721. THANK YOU SO MUCH. WE ARE NOW MOVING ONTO INFORMATION REPORTS DO YOU WANT TO TAKE A THREE-MINUTE STRETCHER ARE YOU OKAY TO MOVE FORWARD? IT SEEMS LIKE FOLKS WANT TO MOVE FORWARD IF YOU WANT TO TAKE A STRETCH PLEASE FEEL FREE TO STAND UP BUT WE DO HAVE THREE INFORMATION REPORTS AND WE'RE GOING TO GO TO NUMBER 10 WHICH IS FOR YEAR 2244TH YEAR INVESTMENT REPORT.

>> THERE IS THE PRESENTATION THEY ARE JUST ACCEPTED.

>> MAYOR ISHII: OKAY. IS THERE A MOTION?

>> THESE ARE JUST RECEIVED AND FILED BY THE COUNCIL. THERE IS NO NEED FOR COUNSEL TO TAKE ANY ACTION ON THE INFORMATIONAL REPORTS. THEY DO NOT REQUIRE A MOTION FOR ACTION.

>> TREGUB: MOTION TO ADJOURN.

>> MAYOR ISHII: WE STILL HAVE PUBLIC COMMENT IS THERE ANY ITEMS NOT ON THE AGENDA THAT WE DO NOT HEAR EARLIER IN THE MEETING?

>> IF YOU HAVE NON- AGENDA PUBLIC COMMENT PLEASE COME FORWARD IF YOU DID NOT ALREADY SPEAK AT THE BEGINNING.

>> HELLO MAYOR AND COUNCIL. THANK YOU FOR STAYING. DOWNTOWN BERKELEY IS AN EMBARRASSMENT. YOU HAVE SEEN IT. PLYWOOD, EMPTY STOREFRONTS, CRATES, DISTRICT FOUR WE IMPLORE YOU TO CONSIDER THE EIR FOR THE WAY BERKELEY THE LAST REMAINING THEATER IN DOWNTOWN

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BERKELEY. IT DOESN'T LOOK LIKE IT HAS BEEN A DEMOCRATIC PROCESS. THERE IS AN APPEAL WHICH YOU ALL KNOW ABOUT THE DEVELOPER PLANS TO DEMOLISH TO THE ART DECO IRREPLACEABLE THEATER BUILT 1932 BY CHARLIE CHAPLIN. WHY IS THE DISTRICT LOOKING FOR A NEW THEATER? THE UA BERKELEY COULD BE RESTORED AS A LIVE PERFORMANCE VENUE ALONG WITH OAKLAND IT COULD HAVE MANY POSSIBILITIES. THE DEVELOPMENT PROPOSALS RETAIN A FRACTION OF THE THEATER JUST THE THEATER ITSELF. SAVE THE YOU A BERKELEY AND DO IT RIGHT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS OTHER COMMENTS IN PERSON OR ONLINE?

>> WE HAVE ONLINE COMMENTERS AND 14 ONLINE. FIRST IS CHRISTINA.

>> HI MY NAME IS CHRISTINE A PALESTINIAN AMERICAN WHO WORKS IN BERKELEY I AM CALLING IN BECAUSE I HEARD THE RESOLUTION PASSED BY THE PEACE AND JUSTICE COMMISSION HAS BEEN POSTPONED WHEN IT SHOULD HAVE BEEN AGENDA TO THE CITY COUNCIL TO VOTE I JUST WANT TO SAY YOU HAVE TWO CHOICES RIGHT NOW YOU CAN SUPPORT FASCISM OR YOU CAN RESIST FASCISM AND DOING SOMETHING STUPID LIKE TABLING A RESOLUTION ANTI- GENOCIDE SUPPORTS FASCISM. THERE IS NO POINT TO HAVE A PROGRESSIVE DIVERSE BODY ON CITY COUNCIL WHEN YOU JUST DO THINGS THAT CAPITULATE TO RACIST APOLOGIST GENOCIDE APOLOGIST. I AM SO DISGUSTED BY THE CITY COUNCIL THAT AFTER 16 MONTHS OF GENOCIDE YOU CANNOT EVEN PUT A WELL RESEARCHED RESOLUTION THAT IS PRO-PALESTINIAN LIBERATION ONTO THE TABLE FOR YOU TO VOTE ON AND

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EXPOSURE CELLS PROVE YOURSELF TO BE RACIST.

>> THANK YOU FOR YOUR COMMENT. SUZANNE YOU ARE THE NEXT SPEAKER.

>> I WOULD LIKE TO RESPECTFULLY SAVE MY TIME TO SHEILA.

>> OKAY. NEXT? PLEASE STATE YOUR COMMENTS. WE WILL COME BACK.

>> MAYOR ISHII: I KNOW THERE IS TIME BEFORE THE PERSON SEATED JUST MAKE SURE THAT SHE IS ON THERE.

>> I DO NOT HAVE A RAISED HAND FOR SOMEBODY NAMED SHEILA. I AM NOT SURE.

>> JUST WHEN SHE COMES BACK UP I WANT TO MAKE SURE WE DO NOT LOSE TRACK.

>> UP NEXT IS THE LETTER I.

>> HELLO THIS IS GEORGE. AS A FORMER MEMBER OF THE PEACE AND JUSTICE COMMISSION PARTICIPATING IN THE MAJORITY VOTE FOR THIS RESOLUTION TO BE DISCUSSED I WAS DISTRESSED TO HEAR THE CEASE-FIRE RESOLUTION WILL NOT BE HEARD AND IN THE INTEREST OF CLEAR CAMPAIGN TO REMOVE PRO- HUMAN RIGHTS COMMISSIONS FROM PEACE AND JUSTICE AND AT THIS POINT IT IS CLEARLY A STEP TO SAY WE DON'T WANT ANY RESOLUTION.

>> ONE MINUTE. YOU SHOULD NOT NEED A COMMISSION RESOLUTION TO TAKE A STAND AGAINST THE KILLING OF 200,000 GAZA AND THE PALESTINIANS WHETHER DIRECTLY OR INDIRECTLY THROUGH STARVATION.

>> PLEASE FINALIZE YOUR COMMENTS.

>> IT'S CLEAR YOU DON'T WANT TO TAKE ANYTHING ON BUT NOW THAT YOUR

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PRESIDENT HAS BEEN REPLACED BY TRUMP AND YOU DIDN'T WANT TO TAKE A STAND AGAINST A CONTRADICTION TO YOUR DEMOCRATIC LEADER.

>> NEXT. THERE IS SUZANNE. THERE IS ANOTHER ONE. SHE WAS AT THE VERY BOTTOM. SHEILA HAS TWO MINUTES.

>> THANK YOU FOR LETTING ME SPEAK. I JUST WANT TO SAY THAT I AM DISAPPOINTED TO HEAR THERE WAS A COMMENT AT THE BEGINNING OF THE MEETING INDICATING THE RESOLUTION THAT WAS PASSED IN THE FALL AND SHOULD HAVE BEEN AGENDA ICED A COMPANION REPORT SHOULD HAVE BEEN WRITTEN AND THE CITY COUNCIL SHOULD HAVE TAKEN THIS TO COUNSEL AND DID NOT WITH THE LAST AND THIS ADMINISTRATION I'M DISAPPOINTED TO HEAR THAT FOR SOME REASON THAT FOLKS THINK THAT NEEDS TO GO BACK TO THE PEACE AND JUSTICE COMMISSION AND I WOULD LIKE TO SAY THAT EVERYTHING IN THAT RESOLUTION IS STILL EXTREMELY RELEVANT ASKING FOR PERMANENCY AND ARMS TO STOP ISRAEL AND TOLD THERE IS SELF-DETERMINATION FOR PALESTINIANS NONE OF THOSE HAVE BEEN RESOLVED AND IN FACT THERE IS AN INDICATION THAT THE CEASE-FIRE WILL NOT HOLD. SO IN ADDITION TRUMP HAS SAID HE WILL MAKE GAZA THE RIVIERA OF THE MIDDLE EAST AND ETHNICALLY CLEANSE IT WE ARE AT AN IMPORTANT MOMENT IN TIME FOR BERKELEY TO TAKE A STAND IT SHOULD AND HISTORICALLY HAS AGAINST SO MANY INTERNATIONAL ISSUES THAT IS WITH THE PEACE AND JUSTICE COMMISSION IS HERE FOR AND I THINK IT IS IMPORTANT WHEN A RESOLUTION PASSES LEGALLY IT SHOULD BE TAKEN FORWARD. THERE IS NO REASON TO BE TAKEN BACK TO THE PEACE AND

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JUSTICE COMMISSION TO RENEGOTIATE SOMETHING THAT IS COMPLETELY RELEVANT TODAY. THANK YOU.

>> NEXT?

>> CAN YOU HEAR ME? I AM SORRY. I CHANGE MY ID BUT IT REVERTED. I AM IN THE BERKELEY PUBLIC EYE SINCE MAY OF LAST YEAR WE HAVE BEEN RECORDING THE PLANNING COMMISSION MEETINGS ON YOUTUBE CHANNEL SEARCHING FOR BERKELEY PUBLIC EYE YOU WILL SEE ARCHIVED ALL THE MEETINGS SINCE MAY INCLUDING THE MOST RECENT ONE IN FEBRUARY 5TH. BERKELEY PUBLIC EYE IS A NONPROFIT OPERATING ON DONATIONS BECAUSE THE PROCEEDINGS THEY SHARE THE SAME LEGAL STANDING AS A CITY COUNCIL MEETINGS AND WHILE THE'S MEETINGS ON ZOOM THE PUBLIC IS NOT IF THEY HAD POLICY FORMULATED ACCESS IT WOULD EXPEDITE CONSENSUS ON ISSUES BEFORE THEY ARRIVE AT CITY COUNCIL AND PRETENTIOUS ISSUES TO BE ELIMINATED OR GREATLY REDUCED THIS IS A MATTER OF TRANSPARENCY. COUNCILMEMBER 2024 BUDGET REFORM WAS PASSED AND I HOPE IT IS INCORPORATED THROUGH 25 AND 26 IN THE MEANTIME BERKELEY PUBLIC EYE REQUEST IT SUBMITS EACH VIDEO WITH TIMESTAMPS IT COST $800.

>> MAYOR ISHII: EXCUSE ME. I THINK WE HAVE MANY PEOPLE WHO ARE SPEAKING IN THE ZOOM CALL AND I WOULD LIKE TO ASK ME LIMITED AT 10. I DID MAKE COMMENTS EARLIER WANT TO REITERATE THEM THAT STAFF HAS BEEN MEETING WITH VARIOUS STAKEHOLDERS WE ARE IN THE MIDDLE OF A PROCESS THAT WE SAID WE WOULD CARRY OUT AND HAVE MORE MEETING

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SET UP OVER THE NEXT MONTH. I'M SORRY THERE HAS BEEN MISCOMMUNICATION ABOUT THE PEACE AND JUSTICE COMMISSION RESOLUTION I HEAR WHAT YOU ARE SAYING TO FOLKS YOU ARE ON AND WERE ON THE COMMISSION BUT MY UNDERSTANDING WAS THAT THE RESOLUTION WOULD BE BROUGHT UP AGAIN AT THE NEXT PEACE AND JUSTICE COMMISSION MEETING AND I'M LOOKING FORWARD TO SEE WHAT FOLKS BRING BACK I JUST WANT TO MAKE THOSE COMMENTS AND THEN CITY CLERK TAKE THE REST OF THE 10 COMMENTS.

>> WE HAVE FOUR MORE SPEAKERS TO GO. NEXT WE HAVE THE FORMER COUNCILMEMBER.

>> I THINK IT'S FAIR YOU CHANGE THE RULES FOR THOSE WHO WERE WAITING UNTIL THE END OF THE MEETING TO SPEAK AND NOW LIMITING IT AT 10. THAT WAS NOT SAID PREVIOUSLY. IS IT IS PAINFUL TO WATCH YOU NOT EVEN LISTENING TO PUBLIC COMMENTS AND EATING AND TALKING AND NOT TAKING FULL CHARGE OF THE MEETING, MAYOR. YOU ARE THE MIRROR. YOU SHOULD NOT GIVE YOUR POWER TO THE CLERK. THAT IS INTERESTING AND SAD THAT YOU ARE NOT BEING THE LEADER THAT YOU SHOULD BE IN THIS MOMENT. I AM JUST WORRIED ABOUT WHAT WILL HAPPEN.

>> MAYOR ISHII: COUNCILMEMBER.

>> YOU ARE TAKING UP MY TIME. AND I WAS NOT FINISHED. LET'S NOT BE RUDE ALL THE TIME. DON'T CONTINUE WITH THESE BAD PRACTICES IT LOOKS LIKE YOU ARE DOING THAT. MY POINT IS WHAT WILL HAPPEN WHEN PALESTINIANS.

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>> MAYOR ISHII: COUNCILMEMBER YOUR TIME IS UP. WE HAVE GIVEN YOU MANY OPPORTUNITIES TO SPEAK SINCE WE HAVE LIMITED TO 10 I DO THINK IT WOULD BE APPROPRIATE TO TAKE FOR INSTEAD OF THE THREE THAT WE ARE AT.

>> BRYCE MILLER IS NEXT.

>> GOOD EVENING COUNSEL. I AM A STUDENT AT UC BERKELEY ALSO THE PRESIDENT OF TELEGRAPH FOR PEOPLE AND A RESIDENT BERKELEY DISTRICT FOR I AM HERE COMMENTING TONIGHT TO ASK YOU TO RANK THE REFERRAL SOUTHSIDE COMPLETE STREETS FIVE OUT OF FIVE WITH YOUR ANNUAL REFERRAL RANKINGS. MY HOMETOWN SANTA BARBARA PEDESTRIAN RISE STATE STREET IN 2020 GIVING BUSINESSES SPACE TO EXPAND ONTO THE STREET PEDESTRIANS AND CYCLISTS BASE TO MOVE OUTSIDE THE SIDEWALKS AND REPRESENT A MAJOR SHIFT AWAY FROM CAR DEPENDENCY IN THE CITY GIVES ALL PRIORITIES TO CARS IN 2022 THE COUNCIL VOTED UNANIMOUSLY IN SUPPORT OF RESOLUTION TO EXPLORE MAKING TELEGRAPH AVENUE CAR FREE BUT WITH NO PLANS OR DESIGNS OR MONEY TO BACK THE PROJECT SINCE NO PROJECT HAS BEEN MADE AND NOW CLOGGED BY VEHICLES WITH UNNECESSARY NOISE AND VIOLENCE THE TELEGRAPH PERIOD EXPERIENCE 35 VEHICLE CRASHES YOU HAVE THE OPPORTUNITY THIS YEAR TO FOLLOW THROUGH ON THE HOPE YOU GAVE SOUTHSIDE BERKELEY 2022 BY MAKING THE REFERRAL CALLS OUTSIDE COMPLETE STREET LIMITING CARS ON TELEGRAPH FIVE OUT OF FIVE ON YOUR ANNUAL.

>> NEXT IS SUZANNE.

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>> I WOULD LIKE TO DIRECT THE COMMENT TO THE MIRROR. YOUR COMMENTS ARE A COMPLETE DISREGARD AND A SLAP IN THE FACE TO THE HARD WORK OF THE PEACE AND JUSTICE COMMISSIONERS BUT MORE IMPORTANTLY IT IS UNDEMOCRATIC. THE PEOPLE ON THIS DAIS, MAYOR ARE NOT YOUR ALLIES AND YOU WILL NOT GET FAR BY APPEALING TO THEM OR TO THE ZIONISTS THAT LINE THEIR POCKETS WITH THE NICETIES OR PROCESS. YOU BRING SHAME TO THE SURVIVORS OF JAPANESE INTERNMENT CAMPS BY TELLING A CALLER EARLIER TO STICK TO THE SUBJECT INSTEAD OF CONNECTING IT TO A GENOCIDE WE ARE FUNDING WITH TAX DOLLARS? ALL OF YOU WOULD DO WELL TO REMEMBER WHAT HAPPENED TO THE LAST CITY COUNCIL STOP RUNNING IT LIKE A CORPORATION WE ARE A COMMUNITY AND THE PEOPLE ARE COMING IT IS TIME FOR YOU TO DECIDE IF YOU WILL HAVE MORE CLARITY ENCOURAGED TO REPRESENT US OR THE COWARDICE TO KOWTOW TO FANATICS OF A FOREIGN FASCIST GOVERNMENT PUT THE RESOLUTION ON YOUR AGENDA NOW.

>> THE LAST SPEAKER.

>> I AM CALLING TO EXPRESS MY DISAPPOINTMENT IN THE CITY COUNCIL NOT TO AGENDA EYES THAT WITH THE PEACE AND JUSTICE COMMISSION CALLING FOR A PERMANENT CEASE-FIRE IN GAZA AND THE RECOGNITION OF SELF-DETERMINATION AS IT WAS WRITTEN. I UNDERSTAND THAT THE ANTI-GENOCIDE PRO ARMS EMBARGO RESOLUTION WAS ALREADY SENT BACK TO THE PEACE AND JUSTICE COMMISSION IT WAS A HUGE MISTAKE IT IS JUST AS RELEVANT NOW AS WHEN IT WAS PASSED IT ALREADY GARNERED SUPPORT OF

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AN EVER-GROWING NUMBER BERKELEY RESIDENTS FROM DIVERSE BACKGROUNDS AND WHEN I ATTENDED THAT COMMISSION MEETING IT WAS CRYSTAL CLEAR THEY NEEDED TO ACT THEN AND THAT REMAINS TODAY SO SENDING THIS BACK IS A HUGE MISTAKE. CENSORSHIP OF PEOPLE WHO ARE HERE TO SPEAK OUT ABOUT IT IS A HUGE MISTAKE. THIS JUST STANDS FROM CONSERVATIVE EXTREMIST AND THAT SHOULD NEVER BE THE VOICE OF BERKELEY. THANK YOU.

>> OKAY.

>> MAYOR ISHII: WAS THE FINAL COMMENT I WANT TO ADDRESS ONE OF THE COMMENTS MADE EARLIER I FEEL IT IS INCREDIBLY INAPPROPRIATE TO BRING UP SOMEONE'S PERSONAL FAMILY BACKGROUND AS A WAY TO INSULT THEM FOR REASONS THAT WE ARE TRYING TO RUN A COUNCIL MEETING. KEEPING IN MIND WE'RE ALL HUMAN BEINGS IT IS 10:45 P.M. WE HAVE BEEN SITTING HERE SINCE 4:00 O'CLOCK P.M. AND I HAVE OFFERED FOLKS AND I WILL CONTINUE TO OFFER FALSE OPPORTUNITIES TO COME SPEAK WITH MY OFFICE. AS SOMEONE WHO CARES ABOUT THIS ISSUE AND IS INCREDIBLY CONCERNED ABOUT WHAT IS HAPPENING IN THE MIDDLE EAST, I WANT TO SAY THAT YOU ARE NOT DOING YOURSELVES ANY FAVORS BY INSULTING US AND CALLING US NAMES AND USING PROFANITY IN OUR DIRECTION THAT I AS SOMEONE WHO CARES A LOT ABOUT THIS ISSUE AND WILLING TO MEET WITH PEOPLE AND HAPPY TO TAKE FOLKS I REALLY DO HOPE YOU TAKE ME UP ON THE OFFER AS OPPOSED TO JUST SITTING HERE AND INSULTING ME FROM BEHIND A SCREEN AND QUITE FRANKLY DON'T KNOW

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ANYTHING ABOUT MY FAMILY'S HISTORY AND THE THINGS I HAVE BEEN THROUGH. I WOULD LIKE TO ASK THAT FOLKS BE THOUGHTFUL WHEN YOU GIVE COMMENTS. I AM HAPPY TO HAVE A ONE-ON-ONE CONVERSATION BUT IT IS INAPPROPRIATE FOR YOU TO GIVE COMMENTS MAKING ASSUMPTIONS ABOUT WHO WE ARE AND WHAT WE BELIEVE IN. I WANT TO MAKE THOSE COMMENTS AND ASK IF THERE IS A MOTION TO ADJOURN.

>> IF THERE IS NO OPPOSITION.

>> WE ARE ADJOURNED.

>> THE MEETING IS ADJOURNED

Unofficial Text File